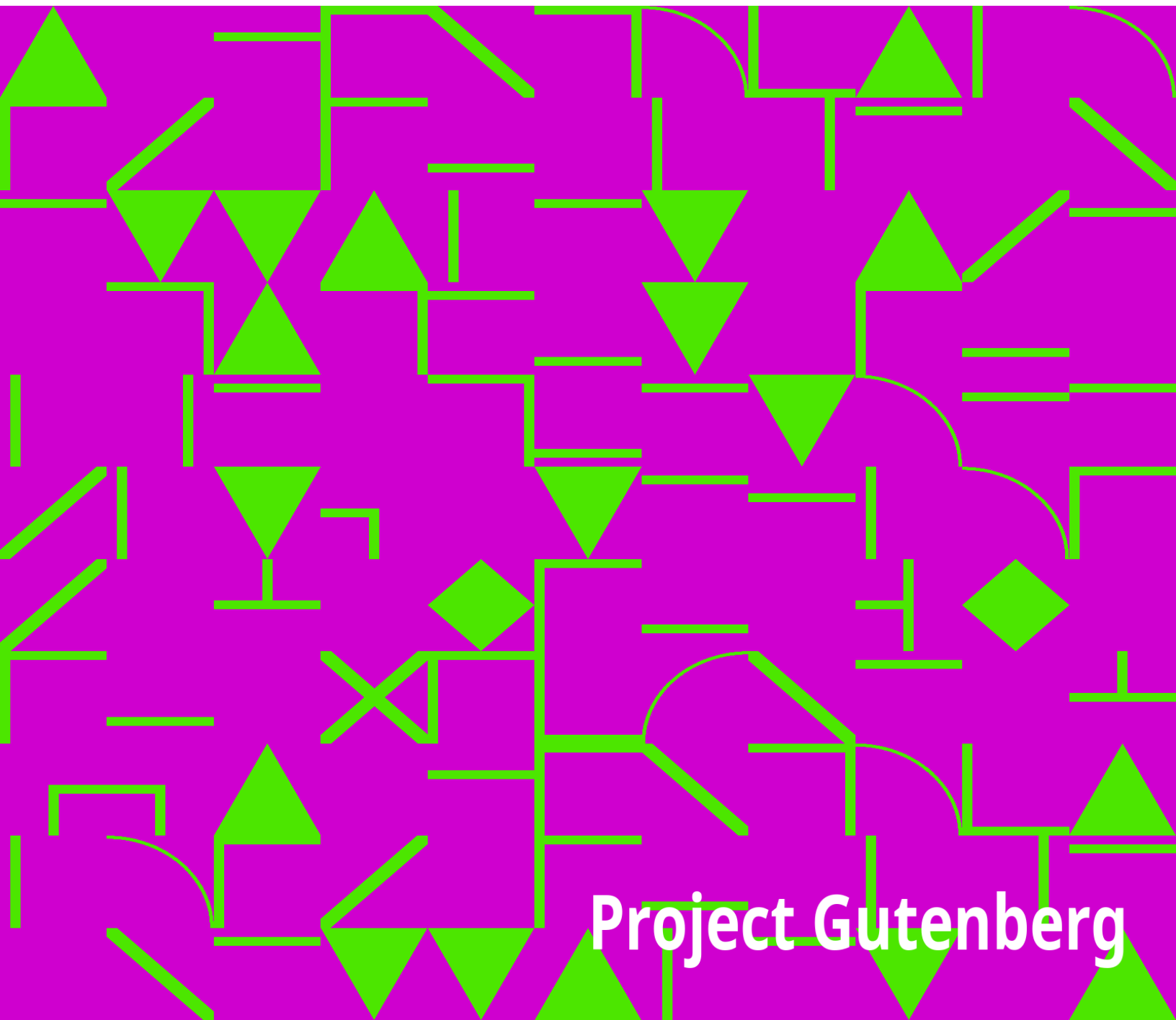


A Compilation of the Messages and Papers of the Presidents. Section 1 (of 3) of Volume 10.

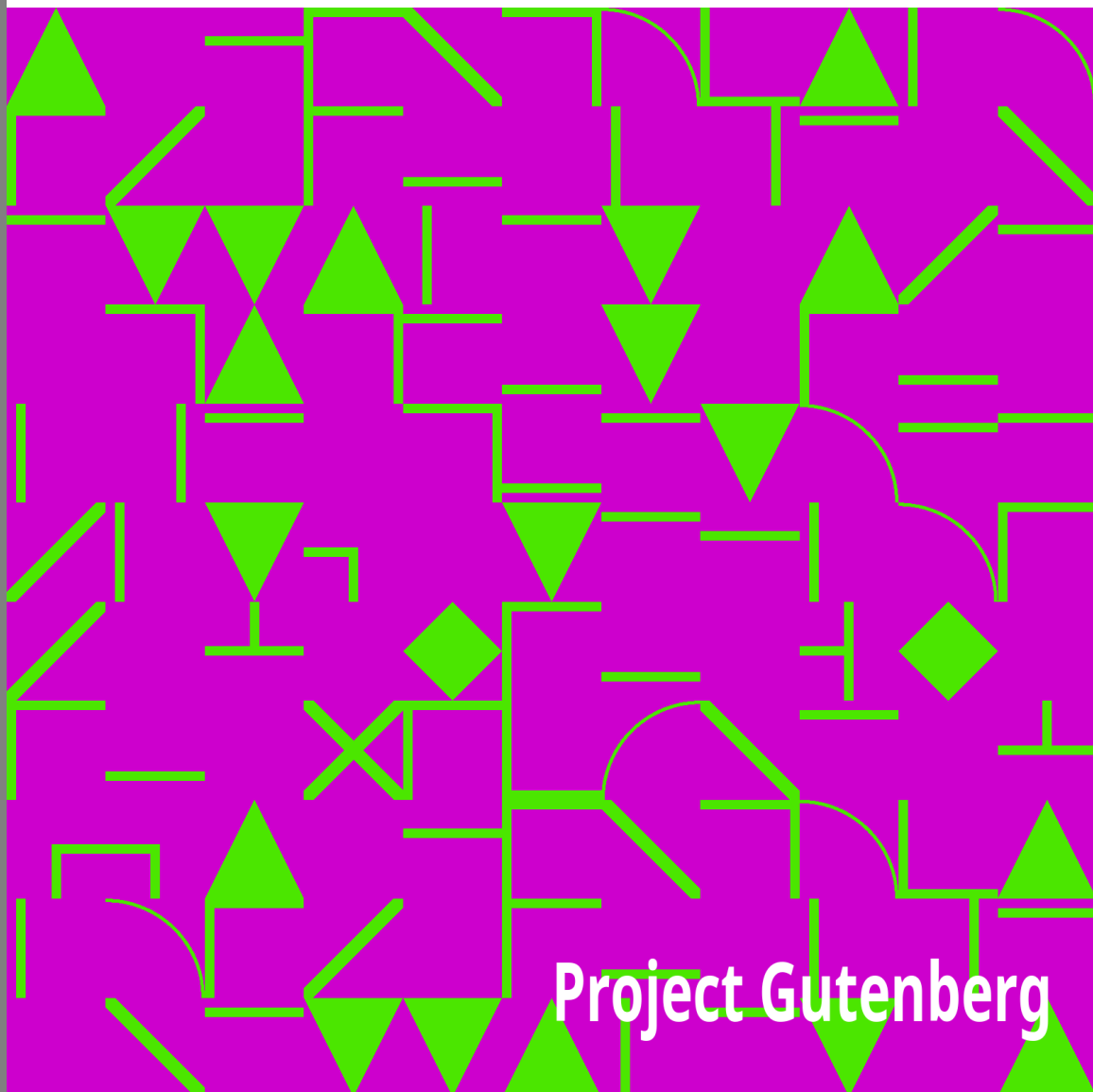
James D. Richardson



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**A Compilation of the Messages and Papers
of the Presidents. Section 1 (of 3) of Volume
10.**

James D. Richardson



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COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS. SECTION 1 (OF 3) OF VOLUME 10. ***

A COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS

BY JAMES D. RICHARDSON
A REPRESENTATIVE FROM THE STATE OF TENNESSEE

VOLUME X

1902

Prefatory Note

This volume closes the task, entered upon by me in April, 1895, of compiling all the official papers of the Presidents. Instead of finding it the labor of a year, as I supposed it would be when I undertook it, the work has occupied me closely for more than four years. A great portion of this time has been consumed in the preparation of the Index. The Index is mainly the work of my son, James D. Richardson, jr., who prepared it with such assistance as I could give him. He has given his entire time to it for three years. Every reference in it has been examined and compared with the text by myself. We have endeavored to make it full, accurate, and comprehensive, with numerous cross references. There will be found in this Index a large number of encyclopedic articles, which are intended, in part at least, to furnish the reader definitions of politico-historical words and phrases occurring in the papers of the Chief Magistrates, or to develop more fully questions or subjects to which only indirect reference is made or which are but briefly discussed by them. There will also be found short accounts of several hundred battles in which the armies of the United States have been engaged; also descriptions of all the States of the Union and of many foreign countries. We have striven earnestly to make these encyclopedic articles historically correct, and to this end have carefully compared them with the most eminent authorities. This feature was not within the scope of the work as contemplated when the resolution authorizing the compilation was passed, nor when the act was passed requiring the preparation of the Index; but with the approval of the Joint Committee on Printing I have inserted the articles, believing that they would be of interest. They contain facts and valuable information not always easily accessible, and it is hoped that they will serve to familiarize the young men of the country who read them with its history and its trials and make of them better citizens and more devoted lovers of our free institutions. There has been no effort or inclination on my part to give partisan bias or political coloring of any nature to these articles. On the other hand, I have sought only to furnish reliable historical data and well-authenticated definitions and to avoid even the appearance of an expression

of my own opinion. It is proper to add that these articles have all been read and approved by Mr. A.R. Spofford, Chief Assistant Librarian of Congress, to whom I now make acknowledgment of my indebtedness.

In pursuance of the plan originally adopted certain papers were omitted from the earlier volumes of this work. Referring to these papers, the following statement occurs in the Prefatory Note to Volume I: "In executing the commission with which I have been charged I have sought to bring together in the several volumes of the series all Presidential proclamations, addresses, messages, and communications to Congress excepting those nominating persons to office and those which simply transmit treaties, and reports of heads of Departments which contain no recommendation from the Executive." In the Prefatory Note to Volume IX the statement was made that this course was a mistake, and "that the work to be exhaustive should comprise every message of the Presidents transmitting reports of heads of Departments and other communications, no matter how brief or unintelligible the papers were in themselves, and that to make them intelligible I should insert editorial footnotes explaining them. Having acted upon the other idea in making up Volume I and a portion of Volume II, quite a number of such brief papers were intentionally omitted. Being convinced that all the papers of the Executives should be inserted, the plan was modified accordingly, and the endeavor was thereafter made to publish all of them. In order, however, that the compilation maybe 'accurate and exhaustive,' I have gone back and collected all the papers—those which should have appeared in Volumes I and II as well as such as were unintentionally omitted from the succeeding volumes—excepting those simply making nominations, and shall publish them in an appendix in the last volume." These omitted papers, with editorial footnotes, have been inserted in the Appendix, and appear in the Index in alphabetical order, so that no serious inconvenience will result to the reader.

The compilation properly closed with President Cleveland's second Administration, March 4, 1897, but as the Spanish-American War excited great interest I determined, after conferring with the Joint Committee on Printing, to publish the official papers of President McKinley which relate exclusively to that war. These will be found in the Appendix.

I have been greatly assisted in the work of compilation by Mr. A.P. Marston, of the Proof Room of the Government Printing Office. Without his valuable assistance in searching for and obtaining the various papers and his painstaking care in the verification of data the work would not have been so complete. Mr. Charles T. Hendler, of the State Branch of the Government Printing Office, rendered timely aid in procuring proclamations from the archives of the State Department. To these gentlemen I make proper acknowledgments.

The work has met with public favor far beyond all expectations, and words of praise for it have come from all classes and callings. Those who possess it may be assured that they have in their libraries all the official utterances of the Presidents of the United States from 1789 to 1897 that could possibly be found after the most diligent search, and that these utterances are not to be found complete in any other publication.

I close by quoting from the Prefatory Note to Volume I: "If my work shall prove satisfactory to Congress and the country, I will feel compensated for my time and effort."

JAMES D. RICHARDSON.

JULY 4, 1899.

APPENDIX

**Messages, Proclamations, Executive Orders, etc.,
Omitted from Volumes I to IX**

SPECIAL MESSAGES, ETC.

SATURDAY, *August 22, 1789.*[1](#)

The President of the United States came into the Senate Chamber, attended by General Knox, and laid before the Senate the following state of facts, with the questions thereto annexed, for their advice and consent:

"To conciliate the powerful tribes of Indians in the southern district, amounting probably to 14,000 fighting men, and to attach them firmly to the United States, may be regarded as highly worthy of the serious attention of Government.

"The measure includes not only peace and security to the whole southern frontier, but is calculated to form a barrier against the colonies of a European power which in the mutations of policy may one day become the enemy of the United States. The fate of the Southern States, therefore, or the neighboring colonies may principally depend on the present measures of the Union toward the southern Indians.

"By the papers which have been laid before the Senate it will appear that in the latter end of the year 1785 and the beginning of 1786 treaties were formed by the United States with the Cherokees, the Chickesaws, and Choctaws. The report of the commissioners will show the reasons why a treaty was not formed at the same time with the Creeks.

"It will also appear by the papers that the States of North Carolina and Georgia protested against said treaties as infringing their legislative rights and being contrary to the Confederation. It will further appear by the said papers that the treaty with the Cherokees has been entirely violated by the disorderly white people on the frontiers of North Carolina.

"The opinion of the late Congress respecting the said violation will sufficiently appear by the proclamation which they caused to be issued on the 1st of September, 1788.

"By the public newspapers it appears that on the 16th of June last a truce was concluded with the Cherokees by Mr. John Steele on behalf of the State of North Carolina, in which it was stipulated that a treaty should be held as soon as possible and that in the meantime all hostilities should cease on either side.

"As the Cherokees reside principally within the territory claimed by North Carolina, and as that State is not a member of the present Union, it may be doubted whether any efficient measures in favor of the Cherokees could be immediately adopted by the General Government.

"The commissioners for negotiating with the southern Indians may be instructed to transmit a message to the Cherokees, stating to them as far as may be proper the difficulties arising from the local claims of North Carolina, and to assure them that the United States are not unmindful of the treaty at Hopewell, and as soon as the difficulties which are at present opposed to the measure shall be removed the Government will do full justice to the Cherokees.

"The distance of the Choctaws and Chickesaws from the frontier settlements seems to have prevented those tribes from being involved in similar difficulties with the Cherokees.

"The commissioners may be instructed to transmit messages to the said tribes containing assurances of the continuance of the friendship of the United States and that measures will soon be taken for extending a trade to them agreeably to the treaties of Hopewell. The commissioners may also be directed to report a plan for the execution of the said treaties respecting trade.

"But the case of the Creek Nation is of the highest importance and requires an immediate decision. The cause of the hostilities between Georgia and the Creeks is stated to be a difference in judgment concerning three treaties made between the said parties, to wit, at Augusta in 1783, at Galphinton in 1785, and at Shoulderbone in 1786. The State of Georgia asserts and the Creeks deny the validity of the said treaties.

"Hence arises the indispensable necessity of having all the circumstances respecting the said treaties critically investigated by commissioners of the

United States, so that the further measures of Government may be formed on a full knowledge of the case.

"In order that the investigation may be conducted with the highest impartiality, it will be proper, in addition to the evidence of the documents in the public possession, that Georgia should be represented at this part of the proposed treaty with the Creek Nation.

"It is, however, to be observed, in any issue of the inquiry, that it would be highly embarrassing to Georgia to relinquish that part of the lands stated to have been ceded by the Creeks lying between the Ogeeche and Oconee rivers, that State having surveyed and divided the same among certain descriptions of its citizens, who settled and planted thereon until dispossessed by the Indians.

"In case, therefore, the issue of the investigation should be unfavorable to the claims of Georgia, the commissioners should be instructed to use their best endeavors to negotiate with the Creeks a solemn conveyance of the said lands to Georgia.

"By the report of the commissioners who were appointed under certain acts of the late Congress by South Carolina and Georgia it appears that they have agreed to meet the Creeks on the 15th of September ensuing. As it is with great difficulty the Indians are collected together at certain seasons of the year, it is important that the above occasion should be embraced if possible on the part of the present Government to form a treaty with the Creeks. As the proposed treaty is of great importance to the future tranquillity of the State of Georgia as well as of the United States, it has been thought proper that it should be conducted on the part of the General Government by Commissioners whose local situations may free them from the imputation of prejudice on this subject.

"As it is necessary that certain principles should be fixed previously to forming instructions for the commissioners, the following questions arising out of the foregoing communications are stated by the President of the United States and the advice of the Senate requested thereon:

"First. In the present state of affairs between North Carolina and the United States will it be proper to take any other measures for redressing the

injuries of the Cherokees than the one herein suggested?

"Second. Shall the commissioners be instructed to pursue any other measures respecting the Chickesaws and Choctaws than those herein suggested?

"Third. If the commissioners shall adjudge that the Creek Nation was fully represented at the three treaties with Georgia, and that the cessions of land were obtained with the full understanding and free consent of the acknowledged proprietors, and that the said treaties ought to be considered as just and equitable, in this case shall the commissioners be instructed to insist on a formal renewal and confirmation thereof, and in case of a refusal shall they be instructed to inform the Creeks that the arms of the Union shall be employed to compel them to acknowledge the justice of the said cessions?

"Fourth. But if the commissioners shall adjudge that the said treaties were formed with an inadequate or unauthorized representation of the Creek Nation, or that the treaties were held under circumstances of constraint or unfairness of any sort, so that the United States could not with justice and dignity request or urge a confirmation thereof, in this case shall the commissioners, considering the importance of the Oconee lands to Georgia, be instructed to use their highest exertions to obtain a cession of said lands? If so, shall the commissioners be instructed, if they can not obtain the said cessions on better terms, to offer for the same and for the further great object of attaching the Creeks to the Government of the United States the following conditions:

"First. A compensation, in money or goods, to the amount of \$——, the said amount to be stipulated to be paid by Georgia at the period which shall be fixed, or in failure thereof by the United States.

"Second. A secure port on the Altamaha or St. Marys rivers, or at any other place between the same as may be mutually agreed to by the commissioners and the Creeks.

"Third. Certain pecuniary considerations to some and honorary military distinctions to other influential chiefs on their taking oaths of allegiance to the United States.

"Fourth. A solemn guaranty by the United States to the Creeks of their remaining territory, and to maintain the same, if necessary, by a line of military posts.

"Fifth. But if all offers should fail to induce the Creeks to make the desired cessions to Georgia, shall the commissioners make it an ultimatum?

"Sixth. If the said cessions shall not be made an ultimatum, shall the commissioners proceed and make a treaty and include the disputed lands within the limits which shall be assigned to the Creeks? If not, shall a temporary boundary be marked making the Oconee the line, and the other parts of the treaty be concluded? In this case shall a secure port be stipulated and the pecuniary and honorary considerations granted? In other general objects shall the treaties formed at Hopewell with the Cherokees, Chickesaws, and Choctaws be the basis of a treaty with the Creeks?

"Seventh. Shall the sum of \$20,000 appropriated to Indian expenses and treaties be wholly applied, if necessary, to a treaty with the Creeks? If not, what proportion?"

Whereupon the Senate proceeded to give their advice and consent.

The first question, viz, "In the present state of affairs between North Carolina and the United States will it be proper to take any other measures for redressing the injuries of the Cherokees than the one herein suggested?" was, at the request of the President of the United States, postponed.

The second question, viz, "Shall the commissioners be instructed to pursue any other measures respecting the Chickesaws and Choctaws than those herein suggested?" being put, was answered in the negative.

The consideration of the remaining questions was postponed till Monday next.

MONDAY, August 24.

The President of the United States being present in the Senate Chamber, attended by General Knox—

The Senate resumed the consideration of the state of facts, and questions thereto annexed, laid before them by the President of the United States on

Saturday last; and the first question, viz, "In the present state of affairs between North Carolina and the United States will it be proper to take any other measures for redressing the injuries of the Cherokees than the one herein suggested?" being put, was answered in the negative.

The third question, viz, "If the commissioners shall adjudge that the Creek Nation was fully represented at the three treaties with Georgia, and that the cessions of land Were obtained with the full understanding and free consent of the acknowledged proprietors, and that the said treaties ought to be considered as just and equitable, in this case shall the commissioners be instructed to insist on a formal renewal and confirmation thereof, and in case of a refusal shall they be instructed to inform the Creeks that the arms of the Union shall be employed to compel them to acknowledge the justice of the said cessions?" was wholly answered in the affirmative.

The fourth question and its four subdivisions, "But if the commissioners shall adjudge that the said treaties were formed with an inadequate or unauthorized representation of the Creek Nation, or that the treaties were held under circumstances of constraint or unfairness of any sort, so that the United States could not with justice and dignity request or urge a confirmation thereof, in this case shall the commissioners, considering the importance of the Oconee lands to Georgia, be instructed to use their highest exertions to obtain a cession of said lands? If so, shall the commissioners be instructed, if they can not obtain the said cessions on better terms, to offer for the same and for the further great object of attaching the Creeks to the Government of the United States the following conditions: First. A compensation, in money or goods, to the amount of \$ ———, the said amount to be stipulated to be paid by Georgia at the period which shall be fixed, or in failure thereof by the United States. Second. A secure port on the Altamaha or on St. Marys River, or at any other place between the same as may be mutually agreed to by the commissioners and the Creeks. Third. Certain pecuniary considerations to some and honorary military distinctions to other influential chiefs on their taking oaths of allegiance to the United States. Fourth. A solemn guaranty by the United States to the Creeks of their remaining territory, and to maintain the same, if necessary, by a line of military posts," was wholly answered in the affirmative. The blank to be filled at the discretion of the President of the United States.

The fifth question, viz, "But if all offers should fail to induce the Creeks to make the desired cessions to Georgia, shall the commissioners make it an ultimatum?" was answered in the negative.

The sixth question being divided, the first part, containing as follows, viz, "If the said cessions shall not be made an ultimatum, shall the commissioners proceed and make a treaty and include the disputed lands within the limits which shall be assigned to the Creeks?" was answered in the negative.

The remainder, viz: "If not, shall a temporary boundary be marked making the Oconee the line, and the other parts of the treaty be concluded?"

"In this case shall a secure port be stipulated and the pecuniary and honorary considerations granted?"

"Is other general objects shall the treaties formed at Hopewell with the Cherokees, Chickesaws, and Choctaws be the basis of a treaty with the Creeks?" were all answered in the affirmative.

On the seventh question, viz, "Shall the sum of \$20,000 appropriated to Indian expenses and treaties be wholly applied, if necessary, to a treaty with the Creeks? If not, what proportion?" it was agreed to advise and consent to appropriate the whole sum, if necessary, at the discretion of the President of the United States.

The President of the United States withdrew from the Senate Chamber, and the Vice-President put the question of adjournment, to which the Senate agreed.

UNITED STATES, *September 26, 1789.*

Gentlemen of the Senate and of the House of Representatives:

Having yesterday received a letter written in this month by the governor of Rhode Island at the request and in behalf of the general assembly of that State, addressed to the President, the Senate, and the House of

Representatives of the eleven United States of America in Congress assembled, I take the earliest opportunity of laying a copy of it before you.

Go. WASHINGTON.

STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS,
In General Assembly, September Session, 1789.

To the President, the Senate, and the House of Representatives of the Eleven United States of America in Congress assembled:

The critical situation in which the people of this State are placed engage us to make these assurances on their behalf of their attachment and friendship to their sister States and of their disposition to cultivate mutual harmony and friendly intercourse. They know themselves to be a handful, comparatively viewed; and although they now stand, as it were, alone, they have not separated themselves or departed from the principles of that Confederation which was formed by the sister States in their struggle for freedom and in the hour of danger. They seek by this memorial to call to your remembrance the hazards which we have run, the hardships we have endured, the treasure we have spent, and the blood we have lost together in one common cause, and especially the object we had in view—the preservation of our liberty; wherein, ability considered, they may truly say they were equal in exertions with the foremost, the effects whereof, in great embarrassments and other distresses consequent thereon, we have since experienced with severity; which common sufferings and common danger we hope and trust yet form a bond of union and friendship not easily to be broken.

Our not having acceded to or adopted the new system of government formed and adopted by most of our sister States we doubt not have given uneasiness to them. That we have not seen our way clear to do it consistent with our idea of the principles upon which we all embarked together has also given pain to us. We have not doubted but we might thereby avoid present difficulties, but we have apprehended future mischief. The people of this State from its first settlement have been accustomed and strongly

attached to a democratical form of government. They have viewed in the Constitution an approach, though perhaps but small, toward that form of government from which we have lately dissolved our connection at so much hazard and expense of life and treasure; they have seen with pleasure the administration thereof from the most important trust downward committed to men who have highly merited and in whom the people of the United States place unbounded confidence. Yet even in this circumstance, in itself so fortunate, they have apprehended danger by way of precedent. Can it be thought strange, then, that with these impressions they should wait to see the proposed system organized and in operation, to see what further checks and securities would be agreed to and established, by way of amendments, before they could adopt it as a constitution of government for themselves and their posterity? These amendments, we believe, have already afforded some relief and satisfaction to the minds of the people of this State, and we earnestly look for the time when they may with clearness and safety be again united with their sister States under a constitution and form of government so well poised as neither to need alteration or be liable thereto by a majority only of nine States out of thirteen—a circumstance which may possibly take place against the sense of a majority of the people of the United States. We are sensible of the extremes to which democratical government is sometimes liable, something of which we have lately experienced; but we esteem them temporary and partial evils compared with the loss of liberty and the rights of a free people. Neither do we apprehend they will be marked with severity by our sister States when it is considered that during the late trouble the whole United States, notwithstanding their joint wisdom and efforts, fell into the like misfortune; that from our extraordinary exertions this State was left in a situation nearly as embarrassing as that during the war; that in the measures which were adopted government unfortunately had not that aid and support from the moneyed interest which our sister States of New York and the Carolinas experienced under similar circumstances; and especially when it is considered that upon some abatement of that fermentation in the minds of the people which is so common in the collision of sentiments and of parties a disposition appears to provide a remedy for the difficulties we have labored under on that account. We are induced to hope that we shall not be altogether considered as foreigners having no particular affinity or connection with the United States, but that trade and commerce, upon

which the prosperity of this State much depends, will be preserved as free and open between this and the United States as our different situations at present can possibly admit; earnestly desiring and proposing to adopt such commercial regulations on our part as shall not tend to defeat the collection of the revenue of the United States, but rather to act in conformity to or cooperate therewith, and desiring also to give the strongest assurances that we shall during our present situation use our utmost endeavors to be in preparation from time to time to answer our proportion of such part of the interest or principal of the foreign and domestic debt as the United States shall judge expedient to pay and discharge.

We feel ourselves attached by the strongest ties of friendship, kindred, and of interest with our sister States, and we can not without the greatest reluctance look to any other quarter for those advantages of commercial intercourse which we conceive to be more natural and reciprocal between them and us.

I am, at the request and in behalf of the general assembly, your most obedient, humble servant,

JOHN COLLINS, *Governor*.

His Excellency the PRESIDENT OF THE UNITED STATES.

UNITED STATES, *February 9, 1790.*

Gentlemen of the Senate:

Among the persons appointed during the last session to offices under the National Government there were some who declined serving. Their names and offices are specified in the first column of the foregoing list.² I supplied these vacancies, agreeably to the Constitution, by temporary appointments, which you will find mentioned in the second column of the list. These appointments will expire with your present session, and, indeed, ought not to endure longer than until others can be regularly made. For that purpose I now nominate to you the persons named in the third column of the list as

being, in my opinion, qualified to fill the offices opposite to their names in the first.

Go. WASHINGTON.

UNITED STATES, *December 14, 1790.*

Gentlemen of the Senate and House of Representatives:

Having informed Congress of the expedition which had been directed against certain Indians northwest of the Ohio, I embrace the earliest opportunity of laying before you the official communications which have been received upon that subject.

Go. WASHINGTON.

[The following was transmitted with the message of January 26, 1791 (see Vol. I, p. 95).]

[From Annals of Congress, Vol. II, 2116-2118.]

PARIS, *June 20, 1790.*

Mr. PRESIDENT:

The National Assembly has worn during three days mourning for Benjamin Franklin, your fellow-citizen, your friend, and one of the most useful of your cooperators in the establishment of American liberty. They charge me to communicate their resolution to the Congress of the United States. In consequence I have the honor to address to you, Mr. President, the extract from the proceedings of their session of the 11th which contains the deliberations.

The National Assembly have not been stopped in their decree by the consideration that Franklin was a stranger. Great men are the fathers of

universal humanity; their loss ought to be felt as a common misfortune by all the tribes of the great human family; and it belongs without doubt to a nation still affected by all the sentiments which accompany the achievement of their liberty, and which owes its enfranchisement essentially to the progress of the public reason, to be the first to give the example of the filial gratitude of the people toward their true benefactors. Besides that, these ideas and this example are so proper to disseminate a happy emulation of patriotism, and thus to extend more and more the empire of reason and virtue, which could not fail promptly to determine a body devoted to the most important legislative combinations. Charged with assuring to the French the rights of men and citizens, it has believed without doubt that fruitful and great truths were likewise numbered among the rights of man.

The name of Benjamin Franklin will be immortal in the records of freedom and philosophy, but it is more particularly dear to a country where, conducted by the most sublime mission, this venerable man grew very soon to acquire an infinite number of friends and admirers as well by the simplicity and sweetness of his manners as by the purity of his principles, the extent of his knowledge, and the charms of his mind.

It will be remembered that every success which he obtained in his important negotiation was applauded and celebrated (so to express it) all over France as so many crowns conferred on genius and virtue.

Even then the sentiment of our rights existed in the bottom of our souls. It was easily perceived that it feelingly mingled in the interest which we took in America and in the public vows which we preferred for your liberty.

At last the hour of the French has arrived. We love to think that the citizens of the United States have not regarded with indifference our steps toward liberty. Twenty-six millions of men breaking their chains and seriously occupied in giving themselves a durable constitution are not unworthy the esteem of a generous people who have preceded them in that noble career.

We hope they will learn with interest the funeral homage which we have rendered the Nestor of America. May this solemn act of fraternal friendship serve more and more to bind the tie which ought to unite two free nations. May the common enjoyment of liberty shed itself over the whole globe and

become an indissoluble chain of connection among all the people of the earth. For ought they not to perceive that they will march more steadfastly and more certainly to their true happiness in understanding and loving each other than in being jealous and fighting?

May the Congress of the United States and the National Assembly of France be the first to furnish this fine spectacle to the world! And may the individuals of the two nations connect themselves by a mutual affection worthy of the friendship which unites the two men at this day most illustrious by their exertions for liberty—Washington and Lafayette!

Permit me, Mr. President, to offer on this occasion my particular homage of esteem and admiration.

I have the honor to be, with respectful consideration, Mr. President, your most humble and most obedient servant,

SIEVÈS, *President.*

DECREE OF THE NATIONAL ASSEMBLY OF THE 11TH OF JUNE,
1790.

The National Assembly decree that their members shall wear during three days mourning for Benjamin Franklin, to commence on Monday next; that the discourse pronounced on this occasion be printed, and that the president write to the American Congress in the name of the National Assembly.

Compared with the original by us, president and secretaries of the National Assembly, at Paris, June 10, 1790.

SIEVÈS, *President.*
GOUDAU,
FÉLIX DE PARDIEU,
DUMOUCHEZ,
Secretaries.

UNITED STATES, *February 18, 1791.*

Gentlemen of the Senate and House of Representatives:

I have received from the Secretary of State a report on the proceedings of the governor of the Northwestern Territory at Kaskaskia, Kahokia, and Prairie under the resolution of Congress of August 29, 1788, which, containing matter proper for your consideration, I lay the same before you.³

Go. WASHINGTON.

UNITED STATES, *February 22, 1791.*

Gentlemen of the Senate:

I lay before you a report of the Secretary of War, relative to the appointment of two brigadier-generals of militia in the territory of the United States south of the Ohio, and I nominate John Sevier to be brigadier-general of the militia of Washington district and James Robertson to be brigadier-general of the militia of Miro district, both within the said territory.

Go. WASHINGTON.

UNITED STATES, *December 28, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you, for your consideration, the copy of a letter⁴ which I have received from the Attorney-General of the United States.

Go. WASHINGTON.

UNITED STATES, *January 2, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you an official statement of the expenditures to the end of the year 1791 from the sum of \$10,000 granted to defray the contingent expenses of Government by an act passed on the 26th of March, 1790.

Go. WASHINGTON.

UNITED STATES, *November 7, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you copies of certain papers relative to the Spanish interference in the execution of the treaty entered into in the year 1790 between the United States and the Creek Nation of Indians, together with a letter from the Secretary of State to the President of the United States on the same subject.

Go. WASHINGTON.

UNITED STATES, *December 30, 1793.*

Gentlemen of the House of Representatives:

I now transmit you a report by the Secretary of State of such laws, decrees, and ordinances,⁵ or their substance, respecting commerce in the countries with which the United States have commercial intercourse as he has received and had not stated in his report of the 16th instant.

Go. WASHINGTON.

UNITED STATES, *December 30, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I communicate to you the translation of a letter⁶ received from the representatives of Spain here in reply to that of the Secretary of State to them of the 21st instant, which had before been communicated to you.

Go. WASHINGTON.

UNITED STATES, *December 31, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I now lay before you a letter from the Secretary of State, with his account of the expenditure of the moneys appropriated for our intercourse with foreign nations from the 1st of July, 1792, to the 1st of July, 1793, and other papers relating thereto.

Go. WASHINGTON.

UNITED STATES, *January 6, 1794.*

Gentlemen of the Senate:

I herewith transmit the copy of a letter from the Secretary of War, stating the circumstances which have hitherto prevented any explanation of the fourth article of the treaty with the Wabash Indians.

Go. WASHINGTON.

UNITED STATES, *January 7, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you an official statement of the expenditure to the end of the year 1793 from the sum of \$10,000 granted to defray the contingent expenses of Government by an act passed on the 26th of March, 1790.

Go. WASHINGTON.

UNITED STATES, *January 15, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you, as being connected with the correspondence already in your possession between the Secretary of State and the minister plenipotentiary of the French Republic, the copy of a letter from that minister of the 25th of December, 1793, and a copy of the proceedings of the legislature of the State of South Carolina.[7](#)

Go. WASHINGTON.

UNITED STATES, *January 16, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit for your information certain intelligence[8](#) lately received from Europe, as it relates to the subject of my past communications.

Go. WASHINGTON.

UNITED STATES, *January 22, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I forward to you extracts from the last advices from our minister in London⁹, as being connected with communications already made.

Go. WASHINGTON.

UNITED STATES, *January 30, 1794.*

Gentlemen of the House of Representatives:

I lay before you the copy of a letter from the governor of the State of North Carolina, together with two petitions,¹⁰ to which it refers, and which I am requested by the legislature of that State and himself to transmit to Congress.

Go. WASHINGTON.

UNITED STATES, *March 12, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you the translation of two letters from the commissioners of His Catholic Majesty to the Secretary of State, and of their inclosures.¹¹

Go. WASHINGTON.

UNITED STATES, *March 25, 1794.*

Gentlemen of the Senate and of the House of Representatives:

The two letters^{[12](#)} which I now forward to Congress were written by a consul of the United States, and contain information which will probably be thought to require some pecuniary provision.

Go. WASHINGTON.

UNITED STATES, *May 23, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you the copy of a letter from the minister plenipotentiary of His Britannic Majesty, in answer to a letter from the Secretary of State communicated to Congress yesterday, and also the copy of a letter from the Secretary which is referred to in the above-mentioned letter of the minister.^{[13](#)}

Go. WASHINGTON.

UNITED STATES, *June 4, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress the copy of a letter, with its inclosures, from the Secretary of State to the minister plenipotentiary of His Britannic Majesty, it being an answer to a letter from the minister to him bearing date the 22d ultimo and already communicated.^{[14](#)}

Go. WASHINGTON.

UNITED STATES, *December 3, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you an official statement of the expenditure to the 30th of September last from the sums heretofore granted to defray the contingent expenses of Government by acts passed the 26th day of March, 1790, and the 9th of June, 1794.

Go. WASHINGTON.

UNITED STATES, *December 11, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you, for consideration, a representation made to me by the Secretary of the Treasury on the subject of constituting an officer to be specially charged with the business of procuring certain public supplies.[15](#)

Go. WASHINGTON.

UNITED STATES, *December 16, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to Congress the copy of a letter from the Secretary of State, with his account, as adjusted with the Treasury Department, of the expenditure of moneys appropriated for our intercourse with foreign nations up to the 1st of July, 1794.

Go. WASHINGTON.

UNITED STATES, *December 30, 1794.*

Gentlemen of the Senate:

I lay before you, for your consideration, certain additional articles of the treaty with the Cherokees, stipulated the 28th of June last, together with the conferences which occasioned the formation of the said articles.

Go. WASHINGTON.

UNITED STATES, *January 12, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress, for their consideration, the copy of a letter from the Secretary of War, accompanied by an extract from a memorandum of James Seagrove, agent of Indian affairs.[16](#)

Go. WASHINGTON.

[The following was transmitted with the message of January 4, 1796 (see
Vol. I, pp. 189-190).]

[From American State Papers, Foreign Relations, Vol. I, pp. 527-528.]

PARIS, *30th Vendémiaire, Third Year of the French Republic, One and
Indivisible (October 21, 1794).*

*The Representatives of the French People composing the Committee of
Public Safety of the National Convention, charged by the law of the 7th
Fructidor with the direction of foreign relations, to the Representatives of
the United States of America in Congress assembled.*

CITIZENS REPRESENTATIVES: The connections which nature, reciprocal wants, and a happy concurrence of circumstances have formed between two free nations can not but be indissoluble. You have strengthened those sacred ties by the declarations which the minister plenipotentiary of the United States has made in your name to the National Convention and to the French people. They have been received with rapture by a nation who know how to appreciate every testimony which the United States have given to them of their affection. The colors of both nations, united in the center of the National Convention, will be an everlasting evidence of the part which the United States have taken in the success of the French Republic.

You were the first defenders of the rights of man in another hemisphere. Strengthened by your example and endowed with an invincible energy, the French people have vanquished that tyranny which during so many centuries of ignorance, superstition, and baseness had enchained a generous nation.

Soon did the people of the United States perceive that every victory of ours strengthened their independence and happiness. They were deeply affected at our momentary misfortunes, occasioned by treasons purchased by English gold. They have celebrated with rapture the successes of our brave armies.

None of these sympathetic emotions have escaped the sensibility of the French nation. They have all served to cement the most intimate and solid union that has ever existed between two nations.

The citizen Adet, who will reside near your Government in quality of minister plenipotentiary of the French Republic, is especially instructed to tighten these bands of fraternity and mutual benevolence. We hope that he may fulfill this principal object of his mission by a conduct worthy of the confidence of both nations and of the reputation which his patriotism and virtues have acquired him.

An analogy of political principles; the natural relations of commerce and industry; the efforts and immense sacrifices of both nations in the defense of liberty and equality; the blood which they have spilled together; their avowed hatred for despots; the moderation of their political views; the

disinterestedness of their counsels, and especially the success of the vows which they have made, in presence of the Supreme Being, to be free or die, all combine to render indestructible the connections which they have formed.

Doubt it not, citizens, we shall finally destroy the combination of tyrants—you by the picture of prosperity which in your vast country has succeeded to a bloody struggle of eight years; we by that enthusiasm which glows in the breast of every Frenchman. Astonished nations, too long the dupes of perfidious kings, nobles, and priests, will eventually recover their rights, and the human race will owe to the American and French nations their regeneration and a lasting peace.

The members of the Committee of Public Safety,

J.S.B. DELMAS,
MERLIN (OF DOUAI), ETC., ETC.

The minister plenipotentiary of the French Republic to the President of the United States.

Mr. PRESIDENT: I come to acquit myself of a duty very dear to my heart. I come to deposit in your hands and in the midst of a people justly renowned for their courage and their love of liberty the symbol of the triumphs and of the enfranchisement of my nation.

When she broke her chains; when she proclaimed the imprescriptible rights of man; when in a terrible war she sealed with her blood the covenant she had made with liberty, her own happiness was not alone the object of her glorious efforts; her views extended also to all free people. She saw their interest blended with her own, and doubly rejoiced in her victories, which in assuring to her the enjoyment of her rights became to them new guaranties of their independence.

These sentiments, which animated the French nation from the dawn of their revolution, have acquired new strength since the foundation of the

Republic. France at that time, by the form of its Government, assimilated to, or rather identified with, free people, saw in them only friends and brothers. Long accustomed to regard the American people as her most faithful allies, she has sought to draw closer the ties already formed in the fields of America, under the auspices of victory, over the ruins of tyranny.

The National Convention, the organ of the will of the French nation, have more than once expressed their sentiments to the American people, but above all these burst forth on that august day when the minister of the United States presented to the National Representation the colors of his country. Desiring never to lose recollections as dear to Frenchmen as they must be to Americans, the Convention ordered that these colors should be placed in the hall of their sittings. They had experienced sensations too agreeable not to cause them to be partaken of by their allies, and decreed that to them the national colors should be presented.

Mr. President, I do not doubt their expectation will be fulfilled, and I am convinced that every citizen will receive with a pleasing emotion this flag, elsewhere the terror of the enemies of liberty, here the certain pledge of faithful friendship, especially when they recollect that it guides to combat men who have shared their toils and who were prepared for liberty by aiding them to acquire their own.

P.A. ADET.

Answer of the President of the United States.

UNITED STATES, *January 1, 1796.*

Born, sir, in a land of liberty; having early learned its value; having engaged in a perilous conflict to defend it; having, in a word, devoted the best years of my life to secure its permanent establishment in my own country, my anxious recollections, my sympathetic feelings, and my best wishes are irresistibly excited whensoever in any country I see an oppressed nation unfurl the banners of freedom. But above all, the events of the French Revolution have produced the deepest solicitude as well as the

highest admiration. To call your nation brave were to pronounce but common praise. Wonderful people! Ages to come will read with astonishment the history of your brilliant exploits! I rejoice that the period of your toils and of your immense sacrifices is approaching. I rejoice that the interesting revolutionary movements of so many years have issued in the formation of a constitution designed to give permanency to the great object for which you have contended. I rejoice that liberty, which you have so long embraced with enthusiasm—liberty, of which you have been the invincible defenders—now finds an asylum in the bosom of a regularly organized Government, a Government which, being formed to secure the happiness of the French people, corresponds with the ardent wishes of my heart, while it gratifies the pride of every citizen of the United States by its resemblance to their own. On these glorious events accept, sir, my sincere congratulations.

In delivering to you these sentiments I express not my own feelings only, but those of my fellow-citizens, in relation to the commencement, the progress, and the issue of the French Revolution, and they will cordially join with me in purest wishes to the Supreme Being that the citizens of our sister Republic, our magnanimous allies, may soon enjoy in peace that liberty which they have purchased at so great a price, and all the happiness which liberty can bestow.

I receive, sir, with lively sensibility the symbol of the triumphs and of the enfranchisement of your nation, the colors of France, which you have now presented to the United States. The transaction will be announced to Congress, and the colors will be deposited with those archives of the United States which are at once the evidences and the memorials of their freedom and independence. May these be perpetual, and may the friendship of the two Republics be commensurate with their existence.

Go. WASHINGTON.

UNITED STATES, *January 13, 1796.*

Gentlemen of the Senate and House of Representatives:

I lay before you an official statement of the expenditure to the end of the year 1795 from the sums heretofore granted to defray the contingent expenses of the Government.

Go. WASHINGTON.

UNITED STATES, *February 29, 1796.*

Gentlemen of the Senate:

I send herewith the papers relating to the negotiation of the treaty with Spain, to which I referred in my message of the 26th instant.[17](#)

Go. WASHINGTON.

Gentlemen of the Senate:

I send herewith a copy of the treaty of friendship, limits, and navigation between the United States and His Catholic Majesty, which has been ratified by me with your advice and consent. A copy of the treaty will be immediately communicated to the House of Representatives, it being necessary to make provision in the present session for carrying into execution the third and twenty-first articles, particularly the former, seeing that execution must commence before the next meeting of Congress.

Estimates of the moneys necessary to be provided for the purposes of this and several other treaties with foreign nations and the Indian tribes will be laid before you by the proper Department.

Go. WASHINGTON.

MARCH 29, 1796.

UNITED STATES, *February 15, 1797.*

Gentlemen of the Senate and House of Representatives:

I lay before you an official statement of the expenditure to the end of the year 1796 from the sums heretofore granted to defray the contingent charges of the Government.

Go. WASHINGTON.

UNITED STATES, *June 22, 1797.*

Gentlemen of the Senate:

Having sent the report and documents which accompany this message to the House of Representatives,[18](#) in compliance with their desire expressed in their resolution of the 10th of this month, I think it proper to send duplicates to the Senate for their information.

JOHN ADAMS.

UNITED STATES, *May 4, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I now transmit to Congress copies of all the communications[19](#) from our envoys extraordinary received since their arrival in Paris, excepting those before presented by me to both Houses.

JOHN ADAMS.

UNITED STATES, *May 29, 1798.*

Gentlemen of the Senate:

An article explanatory of the treaty of amity, commerce, and navigation between the United States and His Britannic Majesty has been signed by the plenipotentiaries of the two powers, which I now submit to the Senate for their consideration.

JOHN ADAMS.

UNITED STATES, *June 5, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I now transmit to both Houses the communications²⁰ from our envoys at Paris received since the last which have been presented by me to Congress.

JOHN ADAMS.

UNITED STATES, *June 18, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I now transmit to Congress the dispatch No. 8 from our envoys extraordinary to the French Republic,²¹ which was received at the Secretary of State's office on Thursday, the 14th day of this month.

JOHN ADAMS.

DECEMBER 31, 1798.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

A report of the Secretary of War made to me on the 24th of this month, relative to the military establishment,^{[22](#)} I think it my duty to transmit to Congress and recommend to their consideration.

JOHN ADAMS.

JANUARY 8, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In obedience to the law, I now lay before you my annual account of the application of the grant made by Congress for the contingent charges of Government from the 1st of January to the 31st of December, 1798.

JOHN ADAMS.

JANUARY 21, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

According to an intimation in my message of Friday last,^{[23](#)} I now lay before Congress a report of the Secretary of State, containing his observations on some of the documents which attended it.

JOHN ADAMS.

JANUARY 30, 1799.

Gentlemen of the Senate:

I send you, for your consideration, a treaty with the Oneida Nation of Indians, made on the 1st day of June, 1798, at their village.

JOHN ADAMS.

JANUARY 31, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received a report from the Director of the Mint on the state of the business committed to his superintendence, and a statement of the coinage of the Mint of the United States for the year 1798, which it is proper to lay before Congress.

JOHN ADAMS.

UNITED STATES, *December 13, 1799.*

Gentlemen of the Senate:

In conformity with your recommendation expressed in your resolution of March 6, 1798, I have entered into a friendly negotiation with the Bey and Government of Tunis on the subject²⁴ of the fourteenth article of the treaty of peace and friendship between the United States and that power. The result of that negotiation I now lay before the Senate for their consideration.

JOHN ADAMS.

UNITED STATES, *January 8, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

A report made to me on the 1st day of this month by the Director of the Mint, through the office of the Secretary of State, with the documents attending it, I transmit to both Houses of Congress for their consideration.

JOHN ADAMS.

UNITED STATES, *January 20, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In obedience to law, I transmit to Congress my annual account of the contingent fund.

JOHN ADAMS.

UNITED STATES, *February 7, 1800.*

Gentlemen of the House of Representatives:

In consequence of your request to me conveyed in your resolution of the 4th of this month, I directed the Secretary of State to lay before me copies of the papers intended.^{[25](#)} These copies, together with his report, I now transmit to the House of Representatives, for the consideration of the members.

JOHN ADAMS.

UNITED STATES, *February 17, 1800.*

Gentlemen of the Senate:

I now lay before you the instructions given to our minister at the Court of Berlin, with the correspondence, respecting the negotiation of the treaty with Prussia, according to your request of the 12th of this month.

JOHN ADAMS.

UNITED STATES, *April 17, 1800.*

Gentlemen of the Senate:

In conformity with your request, I transmit you a return from the War Office of those officers who have been appointed under the act entitled "An act to augment the Army of the United States, and for other purposes," designating such officers who have accepted their appointments and those who have declined accepting, resigned their commissions, died, etc.

A report from the Secretary of War, which accompanied this return, as it contains observations which may throw some light upon the subject, I transmit with it.

JOHN ADAMS.

UNITED STATES, *December 22, 1800.*

Gentlemen of the Senate:

In conformity with your request in your resolution of the 19th of this month, I transmit you the instructions given to our late envoys extraordinary and ministers plenipotentiary to the French Republic.

It is my request to the Senate that these instructions may be considered in strict confidence and returned to me as soon as the Senate shall have made

all the use of them they may judge necessary.

JOHN ADAMS.

UNITED STATES, *January 16, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I now transmit to both Houses of Congress, in conformity to law, my annual account of the application of grants for the contingent charges of Government for the year 1800.

JOHN ADAMS.

UNITED STATES, *February 20, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The inclosed report²⁶ to me, made by the Acting Secretary of War on the 14th of this month, appears to be so well founded in all respects that I recommend it to the consideration of Congress.

JOHN ADAMS.

UNITED STATES, *February 20, 1801.*

Gentlemen of the Senate:

I request of the Senate that the letter and journal of our late envoys to France and the copy of their instructions and other documents relative to that negotiation may be returned to me or to the Office of State.

JOHN ADAMS.

UNITED STATES, *February 27, 1801.*

Gentlemen of the House of Representatives:

I transmit you a report of the Secretary of State, with sundry documents, relative to the subject of your resolution of the 24th instant.[27](#)

JOHN ADAMS.

UNITED STATES, *February 27, 1801.*

Gentlemen of the House of Representatives:

I transmit to you, in conformity with your request of the 17th instant, two reports, one from the Acting Secretary of War, the other from the Secretary of the Treasury, of the 26th,[28](#) with details of the expenditure of the moneys appropriated by the acts of the 20th [4th] of May and 6th of July, 1798, and of the 10th of May, 1800.

JOHN ADAMS.

JANUARY 12, 1802.

Gentlemen of the House of Representatives:

According to the request in your resolution of the 8th instant, I now lay before you a letter from the Secretary of State, containing an estimate of the expenses necessary for carrying into effect the convention between the United States of America and the French Republic.

TH: JEFFERSON.

FEBRUARY 8, 1802.

Gentlemen of the House of Representatives:

In compliance with your resolution of the 2d instant, I have to inform you that early in the preceding summer I took measures for carrying into effect the act passed on the 19th of February, 1799, and that of the 13th of May, 1800, mentioned in your resolution. The objects of these acts were understood to be to purchase from the Indians south of the Ohio some portions of land peculiarly interesting to the Union or to particular States and the establishment of certain roads to facilitate communication with our distant settlements. Commissioners were accordingly appointed to treat with the Cherokees, Chickasaws, Choctaws, and Creeks. As these nations are known to be very jealous on the subject of their lands, the commissioners were instructed, as will be seen by the inclosed extract, to enlarge, restrain, or even to suppress propositions as appearances should indicate to be expedient. Their first meeting was with the Cherokees. The extract from the speech of our commissioners and the answers of the Cherokee chiefs will show the caution of the former and the temper of the latter, and that though our overtures to them were moderate and respectful of their rights, their determination was to yield no accommodation.

The commissioners proceeded then to the Chickasaws, who discovered at first considerable alarm and anxiety lest land should be asked of them. A just regard for this very friendly nation, whose attachment to us has been invariable, forbade the pressure of anything disagreeable on them, and they yielded with alacrity the road through their country which was asked and was essential to our communication with the Mississippi Territory.

The conferences with the Choctaws are probably ended, but as yet we are not informed of their result. Those with the Creeks are not expected to be held till the ensuing spring.

TH: JEFFERSON.

FEBRUARY 17, 1802.

Gentlemen of the Senate and of the House of Representatives:

I lay before both Houses of Congress, for their information, the report from the Director of the Mint, now inclosed.

TH: JEFFERSON.

MARCH 25, 1802.

Gentlemen of the Senate:

The act fixing the military peace establishment of the United States rendering it necessary that the officers retained in service should in most cases be transferred into regiments different from those to which their commissions attach them, new commissions are deemed necessary for them, as well as for those entitled to promotion and for the ensigns newly nominated. The inclosed report from the Secretary of War exhibits the transfers, promotions, and new appointments proposed in conformity with the law, and I accordingly nominate the several persons named in the report for commissions according to its tenor.

TH: JEFFERSON.

APRIL 3, 1802.

Gentlemen of the Senate:

According to the request expressed in your resolution of yesterday, I now transmit to the Senate the proceedings of the court-martial lately held for

the trial of Captain Cornelius Lyman, asking the favor of their return at the convenience of the Senate, as they are the originals.

TH: JEFFERSON.

APRIL 17, 1802.

Gentlemen of the Senate:

I now transmit you a report of the Secretary of State, with the document accompanying it, on the subject of your resolution of the 12th instant, concerning the seventh article²⁹ of the treaty between the United States and Great Britain.

TH: JEFFERSON.

APRIL 20, 1802.

Gentlemen of the Senate and of the House of Representatives:

The object of the inclosed letter from the Director of the Mint at Philadelphia being within legislative competence only, I transmit it to both Houses of Congress.

TH: JEFFERSON.

JANUARY 11, 1803.

Gentlemen of the Senate and of the House of Representatives:

I transmit you a report received from the Director of the Mint on the subject of that institution.

TH: JEFFERSON.

MARCH 1, 1803.

Gentlemen of the House of Representatives:

According to the request stated in your resolution of December 20, I communicated to you such returns of the militia of the different States as had then been received.³⁰ Since that date returns have been received from New Hampshire, Massachusetts, Connecticut, New York, North Carolina, Georgia, and Kentucky, which are now transmitted to you.

TH: JEFFERSON.

DECEMBER 7, 1803.

To the Senate and House of Representatives of the United States:

Since the last communication made to Congress of the laws of the Indiana Territory I have received those of which a copy is now inclosed for the information of both Houses.

TH: JEFFERSON.

JANUARY 13, 1804.

To the Senate and House of Representatives of the United States:

The Director of the Mint having made to me his report of the transactions of the Mint for the year 1803, I now lay the same before you for your information.

TH: JEFFERSON.

MARCH 7, 1804.

To the Senate and House of Representatives of the United States:

I communicate to Congress an extract of a letter from Governor Claiborne to the Secretary of State, with one which it covered, for their information as to the present state of the subject to which they relate.[31](#)

TH: JEFFERSON.

MARCH 15, 1804.

To the House of Representatives of the United States:

Agreeably to the request of the Senate and House of Representatives, delivered me by their Joint Committee of Enrolled Bills, I now return the enrolled bill entitled "An act for the relief of the captors of the Moorish armed ships *Meshouda* and *Mirboha*" to the House of Representatives, in which it originated.

TH: JEFFERSON.

[The same message was sent to the Senate.]

DECEMBER 6, 1804.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, a report of the Surveyor of the Public Buildings at Washington on the subject of those buildings and the application of the moneys appropriated for them.

TH: JEFFERSON.

JANUARY 25, 1805.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operations of that institution during the last year.

TH: JEFFERSON.

JANUARY 31, 1805.

To the Senate of the United States:

According to the desire expressed in your resolution of the 28th instant, I now communicate a report of the Secretary of State, with documents, relative to complaints³² against arming the merchant ships and vessels of the United States and the conduct of the captains and crews of such as have been armed.

TH: JEFFERSON.

FEBRUARY 23, 1805.

To the House of Representatives of the United States:

In further compliance with the desire of the House of Representatives, expressed in their resolution of December 31, I now transmit the report and map of Isaac Briggs referred to in my message of the 1st instant,³³ and received by the last post from New Orleans.

TH: JEFFERSON.

DECEMBER 6, 1805.

The PRESIDENT OF THE SENATE.

SIR: In order to give to Congress the details necessary for their full information of the state of things between Spain and the United States, I send them the communication and documents now inclosed. Although stated to be confidential, that term is not meant to be extended to all the documents, the greater part of which are proper for the public eye. It is applied only to the message itself and to the letters from our own and foreign ministers, which if disclosed might throw additional difficulties in the way of accommodation. These alone, therefore, are delivered to the Legislature in confidence that they will be kept secret.

TH: JEFFERSON.

[The same message was addressed to the Speaker of the House of Representatives.]

DECEMBER 10, 1805.

To the Senate and House of Representatives of the United States:

The inclosed documents,³⁴ relating to my message of the 6th instant, not being ready at that date, I thought it better not to detain the message, but to

communicate these papers afterwards, as supplementary to those then sent. They are not of a nature to be deemed confidential.

TH: JEFFERSON.

DECEMBER 27, 1805.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Surveyor of the Public Buildings, stating the progress made on them during the last season and what may be expected to be accomplished in the ensuing one.

TH: JEFFERSON.

JANUARY 15, 1806.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operations of that institution during the last year.

TH: JEFFERSON.

JANUARY 24, 1806.

To the Senate of the United States:

According to the request of your resolution of yesterday, I again communicate the letter of the minister plenipotentiary of the United States at London to the secretary of that Government for foreign affairs dated

October 18, 1805, with a postscript of October 25, but still in confidence that the matter of it shall not be made public.

TH: JEFFERSON.

FEBRUARY 4, 1806.

To the Senate of the United States:

I now transmit the letters desired by the resolution of the Senate of January 20 so far as they exist in the offices, to wit:

Extract of a letter from the Department of State to Mr. Eaton, May 20, 1801.

The letter from Mr. Cathcart to Mr. Eaton dated Leghorn, June 15, 1801, is not in the offices, but the substance of it is supposed to be recited in those of Mr. Cathcart to the Secretary of State of August 15, 1802, and July 2, 1801, extracts of both of which are transmitted.

The letter of Mr. Eaton of September 5, 1801, supposed to be that intended by the Senate, as it answers their description. There is no letter of his of September 15.

Extract of a letter from William Eaton to the Secretary of State, December 13, 1801.

Extract from Captain Murray's letter of August 18, 1802.

Extract of a letter from Mr. Cathcart to the Secretary of State, August 25, 1802.

Extract of a letter from Mr. Morris to the Secretary of the Navy, March 30, 1803.

The letter from the Swedish admiral to Hamet Bashaw designated in the resolution of the Senate is not in possession of the Executive.

The extracts above mentioned give the whole matter contained in the respective letters relating to Hamet B. Caramalli. The parts omitted are on subjects entirely foreign to what concerns him.

TH: JEFFERSON.

FEBRUARY 4, 1806.

To the House of Representatives of the United States:

Sundry letters relative to Hamet Caramalli, in addition to the documents which accompanied my message of January 13,³⁵ having been sent to the Senate on their particular request, the same are now transmitted to the House of Representatives also, as the same subject is before them.

TH: JEFFERSON.

FEBRUARY 7, 1806.

To the Senate of the United States:

I transmit, for the consideration of the Senate, a treaty entered into on behalf of the United States with the Piankeshaw Indians, whereby our possessions on the north bank of the Ohio are entirely consolidated; and I ask the advice and consent of the Senate as to its ratification.

TH: JEFFERSON.

FEBRUARY 18, 1806.

To the House of Representatives of the United States:

I now communicate to the House of Representatives the information desired by their resolutions of January 24, relative to the fortifications erected at the several ports and harbors of the United States and their Territories and to the Navy and navy-yards of the United States.

TH: JEFFERSON.

FEBRUARY 18, 1806.

To the House of Representatives of the United States:

On the 13th instant I approved and signed the act entitled "An act making provision for defraying any extraordinary expenses attending the intercourse between the United States and foreign nations," which originated in the House of Representatives, and I shall in due season deposit it among the rolls in the office of the Secretary of State.

TH: JEFFERSON.

To the Senate and House of Representatives of the United States:

I communicate to Congress a letter recently received from the minister plenipotentiary of the United States at London, stating some circumstances which bear relation to the subject of my messages of January 17.³⁶ This paper being original and to be communicated to both Houses, the return of it is requested.

TH: JEFFERSON.

MARCH 24, 1806.

DECEMBER 15, 1806.

To the Senate of the United States:

I lay before Congress a report of the Surveyor of the Public Buildings, stating the progress made on them during the last season and what is proposed for the ensuing one.

TH: JEFFERSON.

DECEMBER 23, 1806.

To the House of Representatives of the United States:

I now lay before you accounts of the sums which have been expended by the United States on the Capitol, the President's house, the public offices, the navy-yard, and the marine barracks, respectively, and the amount expended on other objects of public expense within the city of Washington, as requested by your resolution of the 15th instant.

TH: JEFFERSON.

JANUARY 5, 1807.

To the House of Representatives of the United States:

In compliance with the request of the House of Representatives communicated in their resolution of the 26th of December, I now lay before them a report of the Secretary of the Navy on the state of the frigates, supplementary to his former report of January 28 of the last year, communicated to the House of Representatives.

TH: JEFFERSON.

JANUARY 27, 1807.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operations of that establishment during the last year.

TH: JEFFERSON.

FEBRUARY 11, 1807.

To the Senate and House of Representatives of the United States:

I transmit to both Houses of Congress the laws adopted by the government and judges of the Territory of Michigan from the 1st day of July, 1806, to the 1st day of the present year.

TH: JEFFERSON.

JANUARY 8, 1808.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

TH: JEFFERSON.

JANUARY 30, 1808.

To the Senate of the United States:

The Senate having advised and consented to the ratification of the treaty with the Ottaways, Chippeways, Wyandots, and Pottawattamies concluded at Detroit on the 17th day of November last, and also to the treaty concluded with the Choctaws at Pooshapukanuck on the 16th of November, 1805, I now lay them before both Houses of Congress for the exercise of their constitutional powers as to the means of fulfilling them.

TH: JEFFERSON.

MARCH 30, 1808.

To the Senate of the United States:

I now transmit to the Senate the information requested in their resolutions of the 28th instant,[37](#) from the Secretaries of the Treasury and War.

TH: JEFFERSON.

MARCH 31, 1808.

To the Senate of the United States:

The confidential papers[38](#) desired by the resolution of yesterday are now again sent to the Senate.

TH: JEFFERSON.

APRIL 1, 1808.

To the House of Representatives of the United States:

In answer to the inquiries of the resolution of the House of Representatives of the 30th of March, relative to certain dates,[39](#) I transmit a report of the Secretary of State to me on that subject.

TH: JEFFERSON.

NOVEMBER 30, 1808.

To the House of Representatives of the United States:

According to the request of the House of Representatives expressed in their resolution of the 25th instant, I now lay before them a copy of my proclamation of the 19th of April last.[40](#)

TH: JEFFERSON.

DECEMBER 1, 1808.

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Surveyor of the Public Buildings of the progress made on them during the last season, of their present state, and the expenditures incurred and of those that may be requisite for their further prosecution.

TH: JEFFERSON.

DECEMBER 23, 1808.

To the House of Representatives of the United States:

According to the request of the House of Representatives in their resolution of November 11 that copies should be laid before them of all acts, decrees, orders, and proclamations affecting the commercial rights of neutral nations issued or enacted by Great Britain and France or any other belligerent power since the year 1791, and also of an act placing the commerce of America in English ports upon the footing of the most favored nation, I now transmit them a report of the Secretary of State of such of them as have been attainable in the Department of State and are supposed to have entered into the views of the House of Representatives.

TH: JEFFERSON.

JANUARY 5, 1809.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operations of that establishment during the last year.

TH: JEFFERSON.

DECEMBER 4, 1809.

To the Senate and House of Representatives of the United States:

I now transmit a report of the Secretary of the Navy, containing statements^{[41](#)} from that Department referred to in my message of the 29th ultimo.

JAMES MADISON.

DECEMBER 16, 1809.

To the Senate and House of Representatives of the United States:

I transmit to both Houses of Congress a report from the Surveyor of the Public Buildings of the progress made on them during the last season and of other explanations relative thereto.

JAMES MADISON.

JANUARY 5, 1810.

To the Senate and House of Representatives of the United States:

The Director of the Mint having made to me his report of the operations of the Mint for the year 1809, I lay the same before you for your information.

JAMES MADISON.

JANUARY 12, 1810.

To the House of Representatives of the United States:

I communicate to the House of Representatives the report^{[42](#)} of the Secretary of State on the subject of their resolution of the 3d instant.

JAMES MADISON.

JANUARY 12, 1810.

To the House of Representatives of the United States:

I communicate to the House of Representatives the report⁴³ of the Secretary of State on the subject of their resolution of the 6th of December last.

JAMES MADISON.

JANUARY 22, 1810.

To the Senate and House of Representatives of the United States:

I now transmit to Congress an account of the contingent expenses of the Government for the year 1809.

JAMES MADISON.

FEBRUARY 1, 1810.

To the House of Representatives of the United States:

I lay before the House a report⁴⁴ of the Secretary of the Treasury, conformably to their resolution of 18th January, 1810.

JAMES MADISON.

FEBRUARY 1, 1810.

To the House of Representatives of the United States:

I lay before the House a report^{[45](#)} of the Secretary of War, conformably to their resolution of January 22.

JAMES MADISON.

FEBRUARY 9, 1810.

To the House of Representatives of the United States:

I transmit to the House a report^{[46](#)} of the Secretary of State, complying with their resolution of the 22d of January.

JAMES MADISON.

FEBRUARY 17, 1810.

To the House of Representatives of the United States:

I transmit reports^{[47](#)} of the Secretaries of State and of the Treasury, complying with their resolution of the 5th instant.

JAMES MADISON.

FEBRUARY 17, 1810.

To the Senate of the United States:

I transmit a report^{[48](#)} of the Secretary of the Treasury, complying with their resolution of the 12th instant.

JAMES MADISON.

FEBRUARY 22, 1810.

To the Senate of the United States:

I transmit to the Senate a report^{[49](#)} of the Secretary of the Treasury, complying with their resolution of the 16th instant.

JAMES MADISON.

MARCH 14, 1810.

To the Senate of the United States:

I transmit a report^{[50](#)} of the Secretary of War, complying with their resolution of the 22d January last.

JAMES MADISON.

MARCH 20, 1810.

To the Senate and House of Representatives of the United States:

I lay before Congress a return of the militia of the United States as received by the Department of War from the several States and Territories.

JAMES MADISON.

MARCH 30, 1810.

To the Senate of the United States:

I transmit to the Senate a report^{[51](#)} of the Secretary of State, complying with their resolution of the 22d instant.

JAMES MADISON.

APRIL 4, 1810.

To the House of Representatives of the United States:

I transmit to the House a report^{[52](#)} of the Secretary of State, complying with their resolution of the 26th of March.

JAMES MADISON.

APRIL 27, 1810.

To the House of Representatives of the United States:

I transmit to the House a report^{[53](#)} of the Secretary of State, complying with their resolution of the 23d instant.

JAMES MADISON.

MAY 1, 1810.

To the House of Representatives of the United States:

I transmit to the House a report⁵⁴ of the Secretary of State, complying with their resolution of the 30th of April.

JAMES MADISON.

DECEMBER 28, 1810.

To the House of Representatives of the United States:

I lay before the House a report⁵⁵ from the Secretary of State, complying with their resolution of the 21st instant.

JAMES MADISON.

DECEMBER 31, 1810.

To the House of Representatives of the United States:

I lay before the House of Representatives a supplemental report⁵⁶ of the Secretary of State, containing information received since the date of my late message on the subject of their resolution of the 21st instant.

JAMES MADISON.

JANUARY 7, 1811.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

JAMES MADISON.

JANUARY 12, 1811.

To the Senate and House of Representatives of the United States.

I transmit to Congress copies of a letter from the minister plenipotentiary of the United States at London to the Secretary of State, and of another from the same to the British secretary for foreign affairs.[57](#)

JAMES MADISON.

JANUARY 14, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives reports of the superintendent of the city[58](#) and of the Surveyor of the Public Buildings on the subject of their resolution of the 28th of December last.

JAMES MADISON.

JANUARY 14, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives copies of the documents[59](#) referred to in their resolution of the 4th instant.

JAMES MADISON.

JANUARY 14, 1811.

To the Senate and House of Representatives of the United States:

I transmit to Congress an account of the contingent expenses of the Government for the year 1810.

JAMES MADISON.

JANUARY 14, 1811.

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Surveyor of the Public Buildings relative to the progress and present state of them.

JAMES MADISON.

JANUARY 25, 1811.

To the Senate of the United States:

I transmit to the Senate a report⁶⁰ from the Secretary of the Treasury on the subject of their resolution of the 21st instant.

JAMES MADISON.

JANUARY 25, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report of the superintendent of the city,[61](#) stating the expenditures under the act of April 28, 1810, for the better accommodation of the General Post-Office and Patent Office, and for other purposes.

JAMES MADISON.

JANUARY 31, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[62](#) of the Secretary of War, complying with their resolution of the 21st instant.

JAMES MADISON.

FEBRUARY 4, 1811.

To the Senate of the United States:

I transmit to the Senate a report[63](#) of the Secretary of the Treasury, complying with their resolution of December 20, 1810.

JAMES MADISON.

FEBRUARY 5, 1811.

To the Senate of the United States:

I transmit to the Senate a report[64](#) of the Secretary of State, complying with their resolution of the 1st instant.

JAMES MADISON.

FEBRUARY 7, 1811.

To the Senate of the United States:

I transmit to the Senate a report⁶⁵ of the Secretary of the Treasury, complying with their resolution of the 21st January last.

JAMES MADISON.

FEBRUARY 11, 1811.

To the Senate of the United States:

I transmit to the Senate a report⁶⁶ of the Secretary of the Treasury, complying with their resolution of the 7th instant.

JAMES MADISON.

FEBRUARY 19, 1811.

To the Senate and House of Representatives of the United States:

I lay before Congress a return of the militia of the United States as received by the Department of War from the several States and Territories.

JAMES MADISON.

FEBRUARY 19, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report⁶⁷ of the Secretary of State, complying with their resolution of the 18th instant.

JAMES MADISON.

FEBRUARY 25, 1811.

To the House of Representatives of the United States:

I transmit to the House of Representatives reports from the superintendent of the city⁶⁸ and the Surveyor of the Public Buildings, complying with their resolution of the 14th of January.

JAMES MADISON.

FEBRUARY 28, 1811.

To the Senate and House of Representatives of the United States:

I transmit and recommend to the attention of Congress a report of the Secretary of State relative to deficiencies in the returns of the census.

JAMES MADISON.

NOVEMBER 7, 1811.

To the Senate and House of Representatives of the United States:

I now lay before Congress two letters⁶⁹ to the Department of State—one from the present plenipotentiary of France, the other from his predecessor—which were not included among the documents accompanying my message of the 5th instant,⁷⁰ the translation of them being not then completed.

JAMES MADISON.

NOVEMBER 13, 1811.

To the Senate and House of Representatives of the United States:

I lay before Congress the result of the census lately taken of the inhabitants of the United States, with a letter from the Secretary of State relative thereto.

JAMES MADISON.

JANUARY 7, 1812.

To the Senate and House of Representatives of the United States:

I lay before Congress, for their information, a report of the Director of the Mint.

JAMES MADISON.

WASHINGTON, *January 15, 1812.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report⁷¹ of the Secretary of State, complying with their resolution of the 29th of November.

JAMES MADISON.

JANUARY 16, 1812.

To the Senate of the United States:

I transmit to the Senate a report⁷² of the Secretary of State, complying with their resolution of the 18th of November.

JAMES MADISON.

WASHINGTON, *January 22, 1812.*

To the Senate and House of Representatives of the United States:

I lay before Congress a letter from the envoy extraordinary and minister plenipotentiary of Great Britain to the Secretary of State, with the answer of the latter.⁷³

JAMES MADISON.

WASHINGTON, *January 22, 1812.*

To the Senate and House of Representatives of the United States:

At the request of the legislature of New Jersey, I communicate to Congress copies of its resolutions⁷⁴ transmitted by the governor of that State.

JAMES MADISON.

FEBRUARY 1, 1812.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Secretary of the Treasury, containing a statement of proceedings under the "act to regulate the laying out and making a road from Cumberland, in the State of Maryland, to the State of Ohio."

JAMES MADISON.

FEBRUARY 19, 1812.

To the House of Representatives of the United States:

I lay before the House of Representatives a report⁷⁵ of the Secretary of War, in pursuance of their resolution of the 17th of December, 1811.

JAMES MADISON.

MARCH 12, 1812.

To the Senate of the United States:

I transmit to the Senate a report⁷⁶ of the Secretary of State, complying with their resolution of the 10th instant.

JAMES MADISON.

MARCH 13, 1812.

To the Senate and House of Representatives of the United States:

I lay before Congress a letter⁷⁷ from the envoy extraordinary and minister plenipotentiary of Great Britain to the Secretary of State.

JAMES MADISON.

APRIL 6, 1812.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report of the superintendent of the city,⁷⁸ in compliance with their resolution of the 24th of March, to which I add a letter from B.H. Latrobe, connected with that subject.

JAMES MADISON.

APRIL 23, 1812.

To the Senate of the United States:

I transmit to the Senate a report⁷⁹ of the Secretary of State, complying with their resolution of the 4th of March last.

JAMES MADISON.

JULY 4, 1812.

To the Senate and House of Representatives of the United States:

I transmit, for the information of Congress, copies of a correspondence of the minister plenipotentiary of Great Britain with the Secretary of State.[80](#)

JAMES MADISON.

JUNE 8, 1812.

To the Senate and House of Representatives of the United States:

I lay before Congress copies of letters[81](#) which have passed between the Secretary of State and the envoy extraordinary and minister plenipotentiary of Great Britain.

JAMES MADISON.

JUNE 11, 1812.

To the Senate and House of Representatives of the United States:

I transmit, for the information of Congress, copies of letters[82](#) which have passed between the Secretary of State and the envoy extraordinary and minister plenipotentiary of Great Britain.

JAMES MADISON.

JUNE 15, 1812.

To the Senate and House of Representatives of the United States:

I transmit, for the information of Congress, copies of letters⁸³ which have passed between the Secretary of State and the envoy extraordinary and minister plenipotentiary of Great Britain.

JAMES MADISON.

JUNE 16, 1812.

To the Senate and House of Representatives of the United States:

I transmit, for the information of Congress, copies of a letter to the Secretary of State from the chargé d'affaires of the United States at London, accompanied by a letter from the latter to the British minister of foreign affairs.⁸⁴

JAMES MADISON.

JUNE 22, 1812.

To the Senate and House of Representatives of the United States:

I communicate to Congress copies of a letter to the Secretary of State from the chargé d'affaires of the United States at London and of a note⁸⁵ to him from the British secretary for foreign affairs.

JAMES MADISON.

JUNE 23, 1812.

To the Senate of the United States:

I transmit to the Senate a report^{[86](#)} of the Secretary of War, complying with their resolution of the 19th instant.

JAMES MADISON.

JULY 6, 1812.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report^{[87](#)} of the Secretary of State of this date, complying with their resolution of the 30th of January last.

JAMES MADISON.

NOVEMBER 6, 1812.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of the correspondence between the Department of War and the governors of Massachusetts and Connecticut referred to in my message of the 4th instant.^{[88](#)}

JAMES MADISON.

NOVEMBER 18, 1812.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of a communication from Mr. Russell to the Secretary of State. It is connected with the correspondence accompanying

my message of the 12th instant,[89](#) but had not at that date been received.

JAMES MADISON.

DECEMBER 21, 1812.

To the House, of Representatives of the United States:

I transmit to the House of Representatives a report[90](#) of the Secretary of State, complying with their resolution of the 9th instant.

JAMES MADISON.

DECEMBER 22, 1812.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[91](#) of the Secretary of the Navy, complying with their resolution of the 16th instant.

JAMES MADISON.

JANUARY 4, 1813.

To the Senate and House of Representatives of the United States:

I lay before Congress, for their information, a report of the Director of the Mint.

JAMES MADISON.

JANUARY 11, 1813.

To the Senate and House of Representatives of the United States:

I transmit to Congress an account of the contingent expenses of the Government for the year 1812.

JAMES MADISON.

JANUARY 11, 1813.

To the Senate of the United States:

I transmit to the Senate a report^{[92](#)} of the Secretary of War, complying with their resolution of the 24th December last.

JAMES MADISON.

JANUARY 13, 1813.

To the Senate and House of Representatives of the United States:

At the request of the general assembly of Maryland, communicated by the governor of that State, I lay before Congress copies of their act passed on the 2d instant.^{[93](#)}

JAMES MADISON.

JANUARY 13, 1813.

To the Senate of the United States:

I transmit to the Senate copies of the correspondence⁹⁴ called for by their resolution of the 7th instant.

JAMES MADISON.

JANUARY 14, 1813.

To the Senate of the United States:

I transmit to the Senate a report⁹⁵ of the Secretary of State, complying with their resolution of the 22d December.

JAMES MADISON.

JANUARY 23, 1813.

To the Senate of the United States:

I transmit to the Senate a report⁹⁶ of the Secretary of the Treasury, complying with their resolution of the 20th instant.

JAMES MADISON.

JANUARY 26, 1813.

To the Senate of the United States:

I transmit to the Senate a report⁹⁷ of the Secretary of State, complying with their resolution of the 18th instant.

JAMES MADISON.

JANUARY 27, 1813.

To the Senate of the United States:

I transmit to the Senate a report^{[98](#)} of the Secretary of War, complying with their resolution of the 7th instant.

JAMES MADISON.

JANUARY 30, 1813.

To the Senate and House of Representatives of the United States:

At the request of the legislature of Pennsylvania, conveyed through the governor of that State, I transmit to Congress copies of its resolutions of the 16th December, 1812.^{[99](#)}

JAMES MADISON.

FEBRUARY 13, 1813.

To the Senate and House of Representatives of the United States:

I lay before Congress a statement of the militia of the United States according to the latest returns received by the Department of War.

JAMES MADISON.

FEBRUARY 18, 1813.

To the Senate of the United States:

I transmit to the Senate a report^{[100](#)} of the Secretary of State, complying with their resolution of the 18th of January, 1813.

JAMES MADISON.

MARCH 1, 1813.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Secretary of the Treasury, containing a statement of proceedings under the "act to regulate the laying out and making a road from Cumberland, in the State of Maryland, to the State of Ohio."

JAMES MADISON.

MARCH 3, 1813.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report^{[101](#)} of the Secretary of State, complying with their resolution of the 1st instant.

JAMES MADISON.

WASHINGTON, May 29, 1813.

To the Senate of the United States:

Commissions having been granted during the recess of the Senate to the following persons, I now nominate them to the same offices respectively annexed to their names: Albert Gallatin, John Quincy Adams, and James A. Bayard to be jointly and severally envoys extraordinary and ministers plenipotentiary to negotiate and sign a treaty of peace with Great Britain under the mediation of the Emperor of Russia, to negotiate and sign a treaty of commerce with Great Britain; and the said John Quincy Adams, Albert Gallatin, and James A. Bayard to be jointly and severally envoys extraordinary and ministers plenipotentiary to negotiate and sign a treaty of commerce with Russia.

JAMES MADISON.

WASHINGTON, *June 3, 1813.*

To the Senate of the United States:

In compliance with their resolution of the 3d instant, the Senate are informed that the office of the Secretary of the Treasury is not vacated, and that in the absence of Albert Gallatin, commissioned as one of the envoys to treat with Great Britain and Russia, the duties of that office are discharged by William Jones, Secretary of the Navy, authorized therefor according to the provisions of the act of Congress entitled "An act making alterations in the Treasury and War Departments," passed May 8, 1792.

JAMES MADISON.

WASHINGTON, *June 5, 1813.*

To the Senate and House of Representatives of the United States:

I lay before Congress copies of certain legislative acts of Pennsylvania,[102](#) transmitted for that purpose by the governor of that State.

JAMES MADISON.

JUNE 7, 1813.

To the Senate of the United States:

I transmit to the Senate a report[103](#) of the Secretary of State, complying with their resolution of the 3d instant.

JAMES MADISON.

WASHINGTON, *July 12, 1813.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[104](#) of the Secretary of State, containing the information requested by their resolution of the 21st of June last.

JAMES MADISON.

WASHINGTON, *July 12, 1813.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[105](#) of the Secretary of State, containing the information requested by their resolutions of the 21st of June last.

JAMES MADISON.

WASHINGTON, *July 28, 1813.*

To the Senate of the United States:

I transmit to the Senate a report^{[106](#)} of the Acting Secretary of the Treasury, containing the information requested by their resolution of the 27th instant.

JAMES MADISON.

DECEMBER 20, 1813.

To the Senate of the United States:

I transmit to the Senate a report^{[107](#)} of the Acting Secretary of the Treasury, complying with the resolution of the 13th instant.

JAMES MADISON.

JANUARY 6, 1814.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

JAMES MADISON.

JANUARY 10, 1814.

To the Senate of the United States:

I transmit to the Senate a report^{[108](#)} of the Acting Secretary of the Treasury, complying with their resolution of the 31st December, 1813.

JAMES MADISON.

JANUARY 14, 1814.

To the Senate and House of Representatives of the United States:

I transmit to Congress an account of the contingent expenses of the Government for the year 1813.

JAMES MADISON.

JANUARY 15, 1814.

To the Senate of the United States:

I transmit to the Senate a report^{[109](#)} of the Acting Secretary of the Treasury, complying with their resolution of the 11th instant.

JAMES MADISON.

JANUARY 18, 1814.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Acting Secretary of the Treasury, containing a statement of proceedings under the "act to regulate the laying out and making a road from Cumberland, in the State of Maryland, to the State of Ohio."

JAMES MADISON.

JANUARY 18, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[110](#) of the Secretary of State, complying with their resolution of the 13th instant.

JAMES MADISON.

JANUARY 18, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[111](#) of the Secretary of State, complying with their resolution of the 11th instant.

JAMES MADISON.

JANUARY 19, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[112](#) of the Secretary of State, complying with their resolution of the 12th instant.

JAMES MADISON.

JANUARY 31, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[113](#) of the Secretary of War, complying with their resolution of the 31st of December last.

JAMES MADISON.

FEBRUARY 3, 1814.

To the Senate of the United States:

I transmit to the Senate of the United States reports[114](#) of the Secretary of War and Secretary of the Navy, complying with their resolution of the 3d ultimo.

JAMES MADISON.

FEBRUARY 10, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[115](#) of the Acting Secretary of the Treasury, complying with their resolution of the 30th July, 1813.

JAMES MADISON.

FEBRUARY 14, 1814.

To the Senate and House of Representatives of the United States:

At the request of the legislature of Pennsylvania, conveyed through the governor of that State, I transmit to Congress copies of its resolutions of the 18th ultimo.[116](#)

JAMES MADISON.

MARCH 22, 1814.

To the Senate and House of Representatives of the United States:

At the request of the legislature of Pennsylvania, conveyed through the governor of that State, I transmit to Congress copies of its resolutions of the 10th instant.[117](#)

JAMES MADISON.

MARCH 28, 1814.

To the Senate of the United States:

I transmit to the Senate a report[118](#) of the Secretary of State, complying with their resolution of the 26th instant.

JAMES MADISON.

APRIL 9, 1814.

To the Senate of the United States:

I transmit to the Senate a report^{[119](#)} of the Secretary of State, complying with their resolution of the 2d instant.

JAMES MADISON.

APRIL 16, 1814.

To the Senate of the United States:

I transmit to the Senate a report^{[120](#)} of the Secretary of State, complying with their resolutions of the 2d of February and 9th of March.

JAMES MADISON.

APRIL 16, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report^{[121](#)} of the Secretary of State, complying with their resolution of the 13th instant.

JAMES MADISON.

OCTOBER 3, 1814.

To the Senate of the United States:

I transmit to the Senate a report^{[122](#)} from the Department of State, complying with their resolution of the 26th ultimo.

JAMES MADISON.

WASHINGTON, *October 13, 1814.*

To the Senate and House of Representatives of the United States:

I now transmit to Congress copies of the instructions to the plenipotentiaries of the United States charged with negotiating a peace with Great Britain, as referred to in my message of the 10th instant.[123](#)

JAMES MADISON.

OCTOBER 28, 1814.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[124](#) from the Department of State, complying with their resolution of the 15th instant.

JAMES MADISON.

NOVEMBER 18, 1814.

To the Senate of the United States:

I lay before the Senate, for their consideration whether they will advise and consent to the ratification thereof, a treaty concluded on the 22d day of July last with the tribes of Indians called the Wyandots, Delawares, Shawanese, Senecas, and Miamies.

I lay before the Senate also, for the like purpose, an instrument entitled "Articles of agreement and capitulation made and concluded on the 9th day of August last between Major-General Jackson and the chiefs, deputies, and warriors of the Creek Nation of Indians."

These communications are accompanied by documents having relation to them.

JAMES MADISON.

JANUARY 2, 1815.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Secretary of the Treasury, containing a statement of proceedings under the "act to regulate the laying out and making a road from Cumberland, in the State of Maryland, to the State of Ohio."

JAMES MADISON.

JANUARY 10, 1815.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

JAMES MADISON.

JANUARY 10, 1815.

To the Senate and House of Representatives of the United States:

I transmit to Congress an account of the contingent expenses of the Government for the year 1814.

JAMES MADISON.

JANUARY 14, 1815.

To the Senate of the United States:

I transmit to the Senate a report of the Secretary of War, complying with their resolution of the 19th December.[125](#)

JAMES MADISON.

FEBRUARY 16, 1815.

To the Senate of the United States:

I transmit to the Senate a report[126](#) of the Acting Secretary of State, complying with their resolution of yesterday.

JAMES MADISON.

FEBRUARY 23, 1815.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report¹²⁷ from the Acting Secretary of State, complying with their resolution of the 15th instant.

JAMES MADISON.

WASHINGTON, *February 28, 1815.*

To the Senate of the United States:

I transmit to the Senate a report¹²⁸ from the Postmaster-General, complying with their resolution of the 15th of December last.

JAMES MADISON.

WASHINGTON, *February 28, 1815.*

To the Senate of the United States:

I transmit to the Senate a report¹²⁹ from the Acting Secretary of State, complying with their resolution of the 24th of October last.

JAMES MADISON.

JANUARY 8, 1816.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

JAMES MADISON.

JANUARY 26, 1816.

To the House of Representatives of the United States:

In compliance with the resolution of the 24th instant, I transmit two letters from the envoy extraordinary and minister-plenipotentiary of Spain to the Secretary of State, with his answer.[130](#)

JAMES MADISON.

WASHINGTON, *January 31, 1816.*

To the House of Representatives of the United States:

I transmit a report[131](#) of the Secretary of State, complying with the resolution of the 4th instant.

JAMES MADISON.

FEBRUARY 13, 1816.

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of War, complying with their resolution of the 5th instant.[132](#)

JAMES MADISON.

MARCH 11, 1816.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report^{[133](#)} of the Secretary of the Treasury, complying with their resolution of the 17th of February.

JAMES MADISON.

MARCH 12, 1816.

To the Senate and House of Representatives of the United States:

I lay before Congress a report of the Secretary of the Treasury, containing a statement of proceedings under the act to regulate the laying out and making a road from Cumberland, in the State of Maryland, to the State of Ohio, with a statement of past appropriations and an estimate of required appropriations.

JAMES MADISON.

MARCH 22, 1816.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report^{[134](#)} from the Secretary of the Treasury, complying with their resolution of the 29th of February last.

JAMES MADISON.

MARCH 26, 1816.

To the Senate of the United States:

I lay before the Senate, for their advice as to a ratification, articles of a treaty and of a convention which have been concluded with the Cherokee Nation, with documents relating to the losses by the Indians, for which indemnity is stipulated.

JAMES MADISON.

APRIL 4, 1816.

To the Senate of the United States:

I transmit to the Senate a report[135](#) from the Secretary of the Treasury, complying with their resolutions of the 26th March last.

JAMES MADISON.

APRIL 18, 1816.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[136](#) from the Secretary of State, complying with their resolution of the 17th February last.

JAMES MADISON.

APRIL 29, 1816.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report[137](#) of the Secretary of State on the subject of their resolution of February 28, 1816.

JAMES MADISON.

JANUARY 6, 1817.

To the Senate and House of Representatives of the United States:

I communicate, for the information of Congress, the report of the Director of the Mint of the operation of that establishment during the last year.

JAMES MADISON.

JANUARY 17, 1817.

To the Senate and House of Representatives of the United States:

I transmit to Congress an account of the contingent expenses of the Government for the year 1816.

JAMES MADISON.

JANUARY 23, 1817.

To the Senate of the United States:

I transmit to the Senate a report[138](#) of the Acting Secretary of War, in compliance with their resolution of the 8th instant.

JAMES MADISON.

FEBRUARY 7, 1817.

To the Senate of the United States:

I transmit to the Senate a report^{[139](#)} of the Secretary of State, complying with their resolution of the 28th of last month.

JAMES MADISON.

FEBRUARY 22, 1817.

To the Senate of the United States:

I transmit to the Senate a report^{[140](#)} of the Secretary of State, complying with their resolution of the 20th instant.

JAMES MADISON.

WASHINGTON, *February 4, 1818.*

To the House of Representatives:

Pursuant to a resolution of the House of Representatives of the 31st of December last, requesting information of the number of States which had ratified the thirteenth article of the amendments to the Constitution of the United States,^{[141](#)} I transmit to the House a detailed report from the Secretary of State, which contains all the information that has been received upon that subject.

No time will be lost in communicating to the House the answers of the governors of the States of South Carolina and Virginia to the inquiries

stated by the Secretary of State to have been recently addressed to them when they are received at that Department.

JAMES MONROE.

WASHINGTON, *February 6, 1818.*

To the Senate of the United States:

In compliance with a resolution of the Senate of the 13th of February, 1817, I now transmit copies of the reports in relation to the surveys and examinations made by naval officers in cooperation with officers of the Corps of Engineers.

JAMES MONROE.

WASHINGTON, *February 12, 1818.*

To the House of Representatives of the United States:

Conformably with a resolution of the House of Representatives of the 6th of this month, I now lay before that House a report received from the Secretary of State, with the copy of the correspondence [142](#) referred to and requested by that resolution.

JAMES MONROE.

WASHINGTON, *February 13, 1818.*

To the Senate of the United States:

In compliance with a resolution of the 28th of January last, I now transmit to the Senate a statement of the expenditures upon the public buildings and an account of their progress for the year 1818.

JAMES MONROE.

WASHINGTON, *February 18, 1818.*

To the House of Representatives of the United States:

Conformably with a resolution of the House of Representatives of the 12th instant, I lay before that House a report which I have received from the Department of State, with a copy of the letter communicated with it.[143](#)

JAMES MONROE.

MARCH 5, 1818.

To the Senate of the United States:

I lay before the Senate, for their consideration and the exercise of their constitutional power of advice and consent respecting the ratification thereof, a treaty concluded on the 22d of January last with the Creek Nation of Indians. This treaty is accompanied by certain documents having relation to it.

JAMES MONROE.

WASHINGTON, *March 24, 1818.*

To the House of Representatives of the United States:

In pursuance of a resolution of the House of Representatives of the 7th instant, I now transmit the report of the Secretary of State, with a statement of the expenses incurred under the fourth, fifth, sixth, and seventh articles of the treaty of Ghent, specifying the items of expenditure in relation to each.

JAMES MONROE.

NOVEMBER 26, 1818.

To the Senate of the United States:

I lay before the Senate a report from the Commissioner of the Public Buildings, made in compliance with a resolution of the 28th of January last, requiring a statement of the expenditures upon the public buildings and an account of their progress to be annually exhibited to Congress.

JAMES MONROE.

[The same message was sent to the House of Representatives.]

NOVEMBER 30, 1818.

To the Senate of the United States:

In compliance with the resolution of the 17th of April, I transmit to the Senate a report^{[144](#)} from the Acting Secretary of the Navy, which, with the documents accompanying it, will be found to contain all the information required.

JAMES MONROE.

DECEMBER 15, 1818.

To the House of Representatives of the United States:

I lay before the House of Representatives copies of the remainder of the documents^{[145](#)} referred to in the message of the 17th of last month.

JAMES MONROE.

[The same message was sent to the Senate.]

DECEMBER 18, 1818.

To the Senate of the United States:

In compliance with the resolution of the Senate of the 10th instant, I transmit copies of the instructions to the commissioners who negotiated the Indian treaties now before it.

JAMES MONROE.

DECEMBER 28, 1818.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 17th instant, I transmit to that House a report from the Secretary of State, with the papers and documents accompanying it.[146](#)

JAMES MONROE.

DECEMBER 28, 1818.

To the House of Representatives of the United States:

In compliance with a resolution of the 15th instant, I lay before the House of Representatives a report from the Secretary of State, with the papers and documents accompanying it.[147](#)

JAMES MONROE.

JANUARY 4, 1819.

To the Senate of the United States:

I lay before the Senate a report from the Secretary of State, accompanied with a copy of a letter from Governor Rabun,[148](#) which was not communicated on a former occasion from that Department.

JAMES MONROE.

DECEMBER 24, 1819.

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Commissioner of the Public Buildings, which, with the accompanying documents, will exhibit the present state of those buildings and the expenditures thereon during the year ending the 30th of September last.

JAMES MONROE.

JANUARY 18, 1820.

To the Senate of the United States:

In compliance with the resolution of the Senate of the 5th instant, the inclosed papers are transmitted to them *in confidence*, and contain all the information in possession of the Executive respecting the progress of the negotiation with the British Government in relation to the intercourse between the United States and the British colonies.

JAMES MONROE.

WASHINGTON, *March 8, 1820.*

THE SPEAKER OF THE HOUSE OF REPRESENTATIVES:

I transmit to the House of Representatives, in pursuance of their resolution of the 22d of last month, a report from the Secretary of State, with the papers containing the information requested by that resolution. [149](#)

JAMES MONROE.

MARCH 10, 1820.

To the Senate of the United States:

I transmit to Congress a report from the Director of the Mint of the operations of that institution during the last year.

JAMES MONROE.

MARCH 17, 1820.

To the Senate of the United States:

I transmit to Congress a report from the Secretary of the Treasury, accompanied with statements of the annual expenditures made in the construction of the road leading from Cumberland, in the State of Maryland, to the State of Ohio from the year 1806 to the year 1820.

JAMES MONROE.

WASHINGTON, *March 23, 1820.*

To the Senate of the United States:

I transmit to the Senate, in pursuance of their resolution of the 1st of February, a report^{[150](#)} from the Secretary of State, with the information required by that rotation.

JAMES MONROE.

WASHINGTON, *March 28, 1820.*

To the House of Representatives:

I transmit to the House of Representatives, in pursuance of their resolution of the 31st of January last, a report^{[151](#)} from the Secretary of the Treasury, with the documents which accompanied it.

JAMES MONROE.

MARCH 30, 1820.

To the Senate of the United States:

I transmit to Congress a general abstract of the militia of the United States, in pursuance of the act of March 2, 1803.

JAMES MONROE.

WASHINGTON, *April 18, 1820.*

To the Senate of the United States:

I lay before the Senate, in pursuance of their resolution of the 21st of last month, the accompanying report and documents^{[152](#)} from the Department of State.

JAMES MONROE.

WASHINGTON, *May 12, 1820.*

To the Senate and House of Representatives of the United States:

I communicate to Congress translations of letters from the minister of Spain to the Secretary of State, received since my message of the 9th instant.[153](#)

JAMES MONROE.

NOVEMBER 23, 1820.

The PRESIDENT OF THE SENATE:

In conformity with a resolution of the Senate passed the 28th of January, 1818, I communicate herewith to the Senate the report of the Commissioner of Public Buildings required by that resolution.

JAMES MONROE.

[The same message was addressed to the Speaker of the House of Representatives.]

JANUARY 26, 1821.

To the Senate of the United States:

I lay before the Senate, for their consideration and advice as to a ratification, a treaty concluded between the United States and the Creek Nation of Indians.

JAMES MONROE.

WASHINGTON, *February 13, 1821.*

To the Senate of the United States:

I transmit herewith to the Senate a copy of a memorial received from Richard W. Meade,[154](#) together with a report of the Secretary of State concerning it.

JAMES MONROE.

WASHINGTON, *February 14, 1821.*

To the Senate of the United States:

I transmit to Congress a report from the Director of the Mint, inclosing a statement of the Treasurer, submitting the operations of the Mint for the last year.

JAMES MONROE.

DECEMBER 24, 1821.

To the Senate of the United States:

I transmit to the Senate a treaty recently concluded with the Indian tribes at Chicago, with the papers relating thereto, which is submitted for consideration as to its ratification.

JAMES MONROE.

WASHINGTON, *January 7, 1822.*

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Director of the Mint, with a statement of the operations for the last year.

JAMES MONROE.

WASHINGTON, *January 15, 1822.*

To the Senate of the United States:

In compliance with a resolution of the Senate requesting the President "to cause a statement of expenditures upon the public buildings and an account of their progress to be annually laid before Congress at the commencement of each session," I herewith transmit the annual report of the Commissioner of the Public Buildings.

JAMES MONROE.

[The same message was sent to the House of Representatives.]

WASHINGTON, *January 28, 1822.*

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of State, containing the information required by the resolution of the Senate of the 3d instant, with the documents [155](#) which accompanied that report.

JAMES MONROE.

WASHINGTON, *January 28, 1822.*

To the House of Representatives:

I transmit a report from the Secretary of War, together with the documents which accompany it, containing the information requested by a resolution of the House of Representatives of the 22d instant.[156](#)

JAMES MONROE.

WASHINGTON, *February 6, 1822.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State on the subject required by the resolution of that House of the 22d ultimo,[157](#) with the documents which accompanied that report.

JAMES MONROE.

WASHINGTON, *February 7, 1822.*

To the House of Representatives of the United States:

In compliance with a resolution of the 17th ultimo, I transmit a report from the Secretary of War, which, with the accompanying documents,[158](#) contains the information requested.

JAMES MONROE.

FEBRUARY 8, 1822.

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of State, containing the information required by the resolution of the Senate of the 1st instant, with the documents which accompanied that report.[159](#)

JAMES MONROE.

WASHINGTON, *February 12, 1822.*

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of State, containing the information[160](#) required by the resolution of the Senate of the 4th instant.

JAMES MONROE.

WASHINGTON, *February 15, 1822.*

To the House of Representatives:

In compliance with a resolution of the House of Representatives "requesting the President of the United States to cause to be laid before this House any information which he may have of the condition of the several Indian tribes within the United States and the progress of the measures hitherto devised and pursued for their civilization," I now transmit a report from the Secretary of War.

JAMES MONROE.

FEBRUARY 21, 1822.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 7th instant, requesting the President of the United States to cause to be communicated to the Senate the instructions to the commissioners who negotiated the treaty concluded at Chicago with the Ottawa, Chippeway, and Potawatamie nations of Indians, I herewith transmit a report from the Secretary of War.

JAMES MONROE.

WASHINGTON, *February 21, 1822.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with the documents^{[161](#)} accompanying it, in pursuance of a resolution of the House of the 17th January last.

JAMES MONROE.

WASHINGTON, *March 4, 1822.*

To the House of Representatives of the United States:

I transmit a report from the Secretary of the Navy, communicating information in relation to the Navy of the United States^{[162](#)} requested by a resolution of the House of Representatives of the 14th ultimo.

JAMES MONROE.

WASHINGTON, *March 15, 1822.*

To the Senate of the United States:

In compliance with a resolution of the Senate of the 29th of January, I herewith transmit reports^{[163](#)} from the Treasury and War Departments, containing all the information in the possession of the Executive embraced by that resolution.

JAMES MONROE.

WASHINGTON, *April 1, 1822.*

To the Senate of the United States:

In compliance with two resolutions of the 11th ultimo, requesting that the President of the United States cause to be furnished to that House certain detailed information from the Navy Department, I herewith transmit a report from the Secretary of the Navy, with other documents.^{[164](#)}

JAMES MONROE.

APRIL 19, 1822.

To the Senate of the United States:

I transmit a letter from the Attorney-General on the subject of the resolution of the Senate of the 12th instant, which I have received this day, and which in consequence of his absence was not communicated with the message of the 15th instant.^{[165](#)}

JAMES MONROE.

DECEMBER 15, 1822.

To the Congress of the United States:

I now transmit to both Houses of Congress the report of the Commissioner of Public Buildings made in obedience to a resolution of the Senate passed the 28th day of January, 1818.

JAMES MONROE.

WASHINGTON, *January 20, 1823.*

To the House of Representatives:

In compliance with the resolution of the 20th of December, requesting information "what appropriations will be required to fortify Thompsons Island, usually called Key West, and whether a naval depot established at that island, protected by fortifications, will not afford facilities in defending the commerce of the United States and in clearing the Gulf of Mexico and the adjacent seas from pirates," I transmit a report from the Secretary of the Navy, which communicates all the information which I am at this time able to give.

JAMES MONROE.

FEBRUARY 6, 1823.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 28th of January, requesting the President to communicate the instructions to the

commissioners nominated to treat with the Indians for the extinguishment of Indian titles in the State of Georgia, I transmit to the Senate a report from the Secretary of War, with the documents referred to in it.

JAMES MONROE.

To the Senate of the United States.

In compliance with a resolution of the Senate of 28th January, 1818, I herewith transmit to Congress the report of the Commissioner of Public Buildings, showing the expenditures on public buildings and other objects committed to his care during the present year.

JAMES MONROE.

DECEMBER 19, 1823.

To the House of Representatives of the United States:

I transmit herewith to the House of Representatives a report from the Secretary of State, together with a digest of recent commercial regulations of foreign countries, prepared in compliance with a resolution of the House of the 30th of January, 1823.

JAMES MONROE.

FEBRUARY 2, 1824.

WASHINGTON, *February 2, 1824.*

The SPEAKER OF THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES:

I transmit to the House of Representatives a report from the Secretary of State, agreeably to a resolution of that House of the 11th of December last, with the papers¹⁶⁶ which accompanied that report.

JAMES MONROE.

FEBRUARY 24, 1824.

To the Senate of the United States:

I herewith transmit a report from the Secretary of War, which communicates all the information in possession of the Department which was called for by a resolution of the Senate of the 21st of January, 1824.¹⁶⁷

JAMES MONROE.

WASHINGTON, *March 19, 1824.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with the papers¹⁶⁸ therein referred to, in compliance with a resolution of the House of the 27th of January last.

JAMES MONROE.

WASHINGTON, *May 7, 1824.*

To the Senate of the United States:

I communicate to the Senate copies of additional documents relating to the convention for the suppression of the African slave trade, which have this day been received at the Department of State.

JAMES MONROE.

MAY 24, 1824.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with an appendix to a report [169](#) from him already communicated to the House.

JAMES MONROE.

WASHINGTON, *May 25, 1824.*

To the Senate of the United States:

I transmit to the Senate a report [170](#) from the Secretary of State, concerning two resolutions of the Senate of the 8th of January and 1st of March last, which had been referred to him.

JAMES MONROE.

MAY 25, 1824.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report¹⁷¹ from the Secretary of State, concerning a resolution of that House of the 20th of April last, which was referred to him.

JAMES MONROE.

WASHINGTON, *December 13, 1824.*

To the Senate of the United States:

I transmit to the Senate, for its advice and consent as to the ratification, the treaties concluded and signed on the 4th day of August last between the United States and the Ioway, the Sock, and Fox tribes of Indians.

JAMES MONROE.

WASHINGTON, *December 13, 1824.*

To the Senate of the United States:

Agreeably to a resolution of the Senate of 28th January, 1818, requesting the President "to cause a statement of expenditures upon the public buildings and an account of their progress to be annually laid before Congress at the commencement of each session," I herewith transmit a report from the Commissioner of Public Buildings, which contains the information required.

JAMES MONROE.

[The same message was sent to the House of Representatives.]

WASHINGTON, *January 5, 1825.*

To the Senate of the United States:

In compliance with the resolution of the Senate of the 17th May last, I transmit a report^{[172](#)} from the Secretary of the Navy, which contains the information requested.

JAMES MONROE.

WASHINGTON, *January 17, 1825.*

To the House of Representatives of the United States:

I herewith transmit to the House a report from the Secretary of State, containing the information required by the resolution of the House of the 16th ultimo, relating to the western boundary of the United States.

JAMES MONROE.

WASHINGTON, *January 17, 1825.*

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 28th ultimo, requesting the President to inform that House what terms were offered by applicants for the stock created by the act of the 24th of May last and by whom such terms were offered, I herewith transmit a report from the Secretary of the Treasury, with accompanying papers, which contains the information called for.

JAMES MONROE.

WASHINGTON, *January 18, 1825.*

To the House of Representatives of the United States:

I herewith transmit to the House of Representatives a report of the Secretary of War, with a report made to that Department by the commissioners who were appointed under the act of the 3d of March, 1823, entitled "An act to establish an armory on the western waters."

JAMES MONROE.

WASHINGTON, *January 18, 1825.*

To the House of Representatives of the United States:

I herewith transmit to the House of Representatives a report of the Secretary of War, with a report made to that Department by the commissioners who were appointed under the act of 3d March, 1823, entitled "An act to establish a national armory on the western waters."

JAMES MONROE.

JANUARY 19, 1825.

To the Senate of the United States:

I transmit herewith to the Senate a report from the Secretary of State, with the documents desired by their resolution of the 13th instant.^{[173](#)} In requesting that the originals may eventually be returned it may be unnecessary to add that the negotiations being by common consent to be hereafter resumed, it is important that this communication should be regarded by the Senate as strictly confidential.

JAMES MONROE.

WASHINGTON, *February 2, 1825.*

To the Senate and House of Representatives of the United States:

I herewith transmit a report from the Director of the Mint of the United States, showing the operations of that institution for the last year.

JAMES MONROE.

WASHINGTON, *March 1, 1826.*

To the Senate and House of Representatives of the United States:

I transmit herewith a report from the Director of the Mint of the United States, showing the operations of that institution for the year 1825.

JOHN QUINCY ADAMS.

WASHINGTON, *March 15, 1826.*

To the Senate and House of Representatives of the United States:

I now submit to the consideration of Congress the propriety of making the appropriation necessary for carrying into effect the appointment of a mission to the congress at Panama.

JOHN QUINCY ADAMS.

WASHINGTON, *December 8, 1826.*

To the Senate and House of Representatives of the United States:

In compliance with a resolution of the Senate of the 20th of January, 1818, I transmit a report of the Commissioner of the Public Buildings, containing the annual statement of expenditures on those buildings and the account of their progress, required by the said resolution.

JOHN QUINCY ADAMS.

WASHINGTON, *December 11, 1826.*

To the Senate and House of Representatives of the United States:

I transmit to Congress sundry additional papers appertaining to the report from the War Department relating to Indian affairs, communicated at the commencement of the session.

JOHN QUINCY ADAMS.

WASHINGTON, *December 28, 1826.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, containing the information requested by two resolutions of the House relating to certain negotiations^{[174](#)} with the Government of the United Mexican States.

JOHN QUINCY ADAMS.

WASHINGTON, *January 18, 1827.*

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 6th instant, I transmit herewith a report from the Secretary of State, together with copies of the correspondence with the Government of the Netherlands relating to discriminating duties.

JOHN QUINCY ADAMS.

WASHINGTON, *February 24, 1827.*

To the Senate and House of Representatives of the United States:

I transmit herewith to Congress a report from the Director of the Mint, with a statement of its operations during the year 1826.

JOHN QUINCY ADAMS.

WASHINGTON, *December 24, 1827.*

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice, a convention of friendship, navigation, and commerce between the United States and the Free Hanseatic Republics of Lubeck, Bremen, and Hamburg, signed by the respective plenipotentiaries of the parties on the 20th instant at this city. A copy of the convention is likewise inclosed.

JOHN QUINCY ADAMS.

WASHINGTON, *January 11, 1828.*

To the Senate and House of Representatives of the United States:

I transmit to Congress the annual report of the Commissioner of the Public Buildings, made in conformity with a resolution of the Senate of the 28th January, 1818.

JOHN QUINCY ADAMS.

WASHINGTON, *January 11, 1828.*

To the Senate of the United States:

In answer to the inquiry contained in a resolution of the Senate of the 9th instant, I readily express the opinion that the publication of the message^{[175](#)} and documents to which it alludes may be made without detriment to the public service.

JOHN QUINCY ADAMS.

WASHINGTON, *January 21, 1828.*

To the Senate and House of Representatives of the United States:

A report from the Director of the Mint, together with a statement of the operations of that institution during the year 1827, are herewith transmitted to Congress.

JOHN QUINCY ADAMS.

WASHINGTON, *December 8, 1828.*

To the Senate of the United States:

In compliance with a resolution of the Senate of the 26th of May last, I transmit a report of the Secretary of the Treasury, with statements relative to the estimates and appropriations for the expenses of the year 1828 at the last session of Congress.

JOHN QUINCY ADAMS.

WASHINGTON, *January 14, 1829.*

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Director of the Mint, with the annual statement exhibiting the operations of that institution during the year 1828.

JOHN QUINCY ADAMS.

WASHINGTON, *February 25, 1829.*

To the Senate of the United States:

I transmit herewith a statement of the expenses of the General Land Office for the year 1827, as desired by a resolution of the Senate of the 23d instant.

JOHN QUINCY ADAMS.

WASHINGTON, *February 8, 1830.*

To the Congress of the United States:

I transmit to Congress a report from the Director of the Mint, exhibiting the operations of that institution during the year 1829.

ANDREW JACKSON.

JANUARY 12, 1831.

To the Senate and House of Representatives of the United States:

I transmit to Congress a report from the Director of the Mint, exhibiting the operations of that institution during the year 1830.

ANDREW JACKSON.

JANUARY 25, 1831.

To the House of Representatives:

I beg leave to call the attention of Congress to the annual report of the inspectors of the penitentiary in the District of Columbia, herewith transmitted.

ANDREW JACKSON.

WASHINGTON, *January 16, 1832.*

To the Congress of the United States:

I transmit to Congress a report from the Director of the Mint, exhibiting the operations of that institution during the year 1831.

ANDREW JACKSON.

WASHINGTON, *January 31, 1832.*

To the Congress of the United States:

I herewith transmit, for the information of Congress, the third annual report of the inspectors of the penitentiary in the District of Columbia.

ANDREW JACKSON.

WASHINGTON, *January 19, 1833.*

To the Senate and House of Representatives:

I transmit herewith the fourth annual report of the board of inspectors of the penitentiary in the District of Columbia, which is required by the act of the 3d of March, 1829, to be laid before Congress.

ANDREW JACKSON.

WASHINGTON, *January 19, 1833.*

The Honorable the PRESIDENT OF THE SENATE UNITED STATES:

I transmit to Congress a report from the Director of the Mint, exhibiting the operations of that institution during the year 1832.

ANDREW JACKSON.

[The same message was sent to the House of Representatives.]

WASHINGTON, D.C., *January 15, 1834.*

The Honorable the PRESIDENT OF THE SENATE.

SIR: I transmit to Congress a report from the Director of the Mint, exhibiting the operations of that institution during the year 1833.

ANDREW JACKSON.

[The same message was addressed to the Speaker of the House of Representatives.]

WASHINGTON, *January 28, 1834.*

To the House of Representatives:

I herewith transmit the annual report of the inspectors of the penitentiary in the District of Columbia, which, agreeably to the act for the government and discipline of the same, is to be laid before Congress.

ANDREW JACKSON.

WASHINGTON, *January 10, 1835.*

The Honorable the PRESIDENT OF THE SENATE UNITED STATES.

SIR: I herewith transmit to the Senate a report from the Director of the Mint, showing the operations of that institution during the year 1834.

ANDREW JACKSON.

[The same message was addressed to the Speaker of the House of
Representatives.]

WASHINGTON, *January 12, 1835.*

To the Congress of the United States:

I transmit, for the information of Congress, the sixth annual report of the inspectors of the penitentiary for the District of Columbia, made in compliance with the act of the 3d of March, 1829.

ANDREW JACKSON.

WASHINGTON, *December 10, 1835.*

To the Senate of the United States:

I transmit to the Senate of the United States a report¹⁷⁶ of the Secretary of State, to whom was referred the resolutions of that body passed on the 2d and 13th days of February last, together with such portion of the correspondence and instructions requested by the said resolutions as has not been heretofore transmitted and as can be communicated without prejudice to the public interest.

ANDREW JACKSON.

WASHINGTON, *January 28, 1836.*

Hon. JAMES K. POLK,
Speaker of the House of Representatives.

SIR: I transmit herewith the seventh annual report of the board of inspectors of the penitentiary in the District of Columbia, which, in pursuance of the act of the 3d of March, 1829, is submitted to Congress.

ANDREW JACKSON.

JANUARY 16, 1838.

To the House of Representatives:

I herewith transmit a report from the Director of the Mint, showing the operations of that institution during the year 1837 and also the progress made toward the completion of the branch mints in North Carolina, Georgia, and Louisiana.

M. VAN BUREN.

WASHINGTON, *January 29, 1838.*

To the Senate and House of Representatives of the United States:

In compliance with the act of Congress of the 3d March, 1829, I herewith transmit to Congress the ninth annual report of the board of inspectors of the penitentiary of Washington.

M. VAN BUREN.

WASHINGTON, *January 18, 1839.*

To the Senate of the United States:

I transmit to the Senate a report of the Director of the Mint, exhibiting the operations of that institution during the year 1838.

M. VAN BUREN.

[The same message was sent to the House of Representatives.]

WASHINGTON, *February 6, 1839.*

To the Senate and House of Representatives of the United States:

In compliance with the act of Congress of the 3d March, 1829, I herewith transmit to Congress the tenth annual report of the board of inspectors of the penitentiary of Washington.

M. VAN BUREN.

WASHINGTON, D.C., *February 1, 1840.*

To the Senate of the United States:

I transmit to the Senate a report from the Director of the Mint, showing the operations of that institution for the year 1839.

M. VAN BUREN.

[The same message was sent to the House of Representatives.]

WASHINGTON, *February 5, 1840.*

To the Senate and House of Representatives of the United States:

In compliance with the act of Congress of the 3d of March, 1829, I herewith transmit to Congress the eleventh annual report of the board of inspectors of the penitentiary of the District of Columbia.

M. VAN BUREN.

FEBRUARY 10, 1840.

To the Senate of the United States:

I transmit to the Senate a supplementary report received from the Director of the Mint, containing a complete statement of the operations of the branch mint at New Orleans for the year 1839.

M. VAN BUREN.

[The same message was sent to the House of Representatives.]

WASHINGTON, *January 27, 1841.*

To the Senate and House of Representatives of the United States:

In compliance with an act of Congress of the 3d of March, 1829, I herewith transmit to Congress the twelfth annual report of the board of inspectors of the penitentiary of the District of Columbia.

M. VAN BUREN.

WASHINGTON, *January 31, 1842.*

To the Senate of the United States:

I transmit herewith to the Senate a report of the Director of the Mint, showing the operations of the institution for the year 1841.

JOHN TYLER.

[The same message was sent to the House of Representatives.]

WASHINGTON, *January 17, 1843.*

To the House of Representatives:

I transmit herewith the report of the inspectors of the penitentiary for the District of Columbia, made in pursuance of the act of Congress of the 3d March, 1829, with the accompanying documents.

JOHN TYLER.

WASHINGTON, *March 1, 1843.*

To the Senate of the United States:

I transmit herewith to the Senate a copy of a report received from the Director of the Mint, showing the operations of that institution for the year 1842.

JOHN TYLER.

[The same message was sent to the House of Representatives.]

WASHINGTON, D.C. *January 19, 1844.*

To the House of Representatives:

I transmit herewith the report of the inspectors of the penitentiary of the District of Columbia for the past year, with the accompanying documents.

JOHN TYLER.

WASHINGTON, D.C., *January 20, 1844.*

To the House of Representatives:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, exhibiting the operations of the Mint and branch mints for the past year.

JOHN TYLER.

WASHINGTON, *February 3, 1845.*

To the Senate of the United States:

I transmit herewith to the Senate a report from the Director of the Mint, showing the operations of the institution for the year 1844.

JOHN TYLER.

[The same message was sent to the House of Representatives.]

WASHINGTON, *February 11, 1845.*

To the House of Representatives:

I herewith transmit the annual report of the inspectors of the penitentiary for this District, together with accompanying documents.

JOHN TYLER.

WASHINGTON, *January 28, 1846.*

To the House of Representatives of the United States:

I herewith transmit the annual report of the inspectors of the penitentiary for the District of Columbia, made in compliance with the act of the 3d March, 1829.

JAMES K. POLK.

WASHINGTON, D.C., *February 10, 1846.*

To the Senate and House of Representatives of the United States:

I transmit herewith the report of the Director of the Mint at Philadelphia, showing the operation of the Mint and branch mints for the year 1845.

JAMES K. POLK.

WASHINGTON, *January 16, 1847.*

To the House of Representatives of the United States:

In compliance with the resolutions of the 3d of March, 1829, I transmit herewith the annual report of the inspectors of the penitentiary for the District of Columbia.

JAMES K. POLK.

WASHINGTON, *February 4, 1847.*

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Director of the Mint, showing the operations of that institution for the year 1846.

JAMES K. POLK.

WASHINGTON, *January 18, 1848.*

To the House of Representatives of the United States:

I herewith transmit the annual report of the inspectors of the penitentiary for the District of Columbia, made in compliance with the act of the 3d March, 1829.

JAMES K. POLK.

WASHINGTON, *January 31, 1848.*

To the Senate and House of Representatives of the United States:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operation of the Mint and branch mints for the year 1847.

JAMES K. POLK.

WASHINGTON, *January 11, 1849.*

To the House of Representatives:

I herewith transmit the annual report of the inspectors of the penitentiary for the District of Columbia, made in compliance with the act of the 3d March, 1829.

JAMES K. POLK.

WASHINGTON, *January 22, 1849.*

To the House of Representatives of the United States:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operations of the Mint and branch mints for the year 1848.

JAMES K. POLK.

WASHINGTON, *January 28, 1850.*

To the Senate and House of Representatives of the United States:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operations of the Mint and its branches for the year 1849.

Z. TAYLOR.

EXECUTIVE OFFICE, *February 5, 1850.*

To the House of Representatives of the United States:

I herewith transmit the annual report of the inspectors of the penitentiary for the District of Columbia, made in compliance with the act of the 3d March, 1829.

Z. TAYLOR.

WASHINGTON, *January 30, 1851.*

To the Senate and House of Representatives of the United States:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operation of the Mint and branch mints for the year 1850.

MILLARD FILLMORE.

WASHINGTON, *February 15, 1851.*

The SPEAKER OF THE HOUSE OF REPRESENTATIVES:

I have the honor herewith to transmit to the House of Representatives the report of the inspectors of the penitentiary of the United States in this District for the year ending December 31, 1850.

MILLARD FILLMORE.

WASHINGTON, D.C., *February 10, 1852.*

To the Senate and House of Representatives of the United States:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operations of the Mint and its branches for the year 1851.

MILLARD FILLMORE.

WASHINGTON, *April 2, 1852.*

To the House of Representatives:

I transmit herewith the report of the inspector of the penitentiary of the United States in the District of Columbia for the year ending the 31st of December last.

MILLARD FILLMORE.

WASHINGTON, *February 8, 1853.*

To the Senate and House of Representatives:

I herewith communicate, for the information of Congress, a copy of the report of the Director of the Mint for the past year.

MILLARD FILLMORE.

WASHINGTON CITY, *February 10, 1853.*

The SPEAKER OF THE HOUSE OF REPRESENTATIVES:

I transmit to the House of Representatives herewith a communication from the Secretary of the Interior, accompanied by the annual report of the board of inspectors of the penitentiary of the District of Columbia for the year ending 31st December, 1852, as required by law.

MILLARD FILLMORE.

WASHINGTON, *February 1, 1854.*

The SPEAKER OF THE HOUSE OF REPRESENTATIVES:

I transmit herewith the annual report of the Director of the Mint at Philadelphia, showing the operation of the Mint and branch mints for the year 1853.

FRANKLIN PIERCE.

WASHINGTON, *March 3, 1854.*

To the Senate and House of Representatives of the United States:

I transmit herewith the annual report of the board of inspectors of the penitentiary for the District of Columbia for the year ending December 31, 1853.

FRANKLIN PIERCE.

WASHINGTON, *February 8, 1855.*

To the House of Representatives:

I transmit herewith the report of the Director of the Mint, showing the operations of the Mint and its branches for the past year.

FRANKLIN PIERCE.

WASHINGTON, *March 27, 1856.*

To the Senate and House of Representatives of the United States:

I transmit herewith a report of the operations of the Mint of the United States and its branches, including the assay office, for the year 1855.

FRANKLIN PIERCE.

WASHINGTON, *February 3, 1857.*

To the Senate and House of Representatives of the United States:

I transmit herewith the report of the Director of the Mint, showing the operations of the Mint and its branches for the last year.

FRANKLIN PIERCE.

PROCLAMATIONS.

[From Laws of the United States of America (John Bioren and W. John Duane, Philadelphia, and R.C. Weightman, Washington City, 1815), Vol. V, p. 511.]

BY GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas by an act supplementary to the act entitled "An act establishing a mint and regulating the coins of the United States," passed on the 3d day of March, 1795, "the President of the United States is authorized, whenever he shall think it for the benefit of the United States, to reduce the weight of the copper coin of the United States, provided such reduction shall not in the whole exceed 2 pennyweights in each cent and in like proportion in a half cent; of which he shall give notice by proclamation;" and

Whereas, on account of the increased price of copper and expense of coinage, I have thought it would be for the benefit of the United States to reduce the weight of the copper coin of the United States 1 pennyweight and 16 grains in each cent and in like proportion in each half cent, and the same has since the 27th day of December last been reduced accordingly:

I hereby give notice thereof and that all cents and half cents coined and to be coined at the Mint of the United States from and after the said 27th day of December are to weigh, the cents each 7 pennyweights and the half cents each 3 pennyweights and 12 grains.

In testimony whereof I, the said George Washington, President of the United States, have caused the seal of the United States to be hereto affixed and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia on the 26th day of January, A.D. 1796,
and of the Independence of the United States the twentieth.

Go. WASHINGTON.

By the President:
TIMOTHY PICKERING,
Secretary of State.

[From Claypoole's American Daily Advertiser, Philadelphia, December 28,
1799.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the Congress of the United States, "in honor of the memory of General George Washington," have this day "*Resolved*, That it be recommended to the people of the United States to wear crape on the left arm as mourning for thirty days," and "that the President of the United States be requested to issue a proclamation notifying to the people throughout the United States the said recommendation:"

Now, therefore, I, John Adams, President of the United States, do hereby proclaim the same accordingly.

[SEAL.]

Given under my hand and the seal of the United States, at Philadelphia, the 24th day of December, A.D. 1799, and of the Independence of the United States the twenty-fourth.

JOHN ADAMS.

By the President:
TIMOTHY PICKERING,
Secretary of State.

[From the Daily National Intelligencer, December 15, 1860.]

TO THE PEOPLE OF THE UNITED STATES.

A RECOMMENDATION.

WASHINGTON, *December 14, 1860.*

Numerous appeals have been made to me by pious and patriotic associations and citizens, in view of the present distracted and dangerous condition of our country, to recommend that a day be set apart for humiliation, fasting, and prayer throughout the Union.

In compliance with their request and my own sense of duty, I designate Friday, the 4th day of January, 1861, for this purpose, and recommend that the people assemble on that day, according to their several forms of worship, to keep it as a solemn fast.

The Union of the States is at the present moment threatened with alarming and immediate danger; panic and distress of a fearful character prevail throughout the land; our laboring population are without employment, and consequently deprived of the means of earning their bread. Indeed, hope seems to have deserted the minds of men. All classes are in a state of confusion and dismay, and the wisest counsels of our best and purest men are wholly disregarded.

In this the hour of our calamity and peril to whom shall we resort for relief but to the God of our fathers? His omnipotent arm only can save us from the awful effects of our own crimes and follies—our own ingratitude and guilt toward our Heavenly Father.

Let us, then, with deep contrition and penitent sorrow unite in humbling ourselves before the Most High, in confessing our individual and national sins, and in acknowledging the justice of our punishment. Let us implore Him to remove from our hearts that false pride of opinion which would impel us to persevere in wrong for the sake of consistency rather than yield a just submission to the unforeseen exigencies by which we are now surrounded. Let us with deep reverence beseech Him to restore the friendship and good will which prevailed in former days among the people of the several States, and, above all, to save us from the horrors of civil war and "blood guiltiness." Let our fervent prayers ascend to His throne that He would not desert us in this hour of extreme peril, but remember us as He did our fathers in the darkest days of the Revolution, and preserve our Constitution and our Union, the work of their hands, for ages yet to come.

An omnipotent Providence may overrule existing evils for permanent good. He can make the wrath of man to praise Him, and the remainder of wrath He can restrain. Let me invoke every individual, in whatever sphere of life he may be placed, to feel a personal responsibility to God and his country for keeping this day holy and for contributing all in his power to remove our actual and impending calamities.

JAMES BUCHANAN.

EXECUTIVE ORDERS.

[From Sparks's Washington, Vol. X, pp. 11-12.]

NEW YORK, *June 8, 1789.*

SIR:[177](#) Although in the present unsettled state of the Executive Departments under the Government of the Union I do not conceive it expedient to call upon you for information officially, yet I have supposed that some informal communications from the Office of Foreign Affairs might neither be improper nor unprofitable. Finding myself at this moment less occupied with the duties of my office than I shall probably be at almost any time hereafter, I am desirous of employing myself in obtaining an acquaintance with the real situation of the several great Departments at the period of my acceding to the administration of the General Government. For this purpose I wish to receive in writing such a clear account of the Department at the head of which you have been for some years past as may be sufficient (without overburthening or confusing the mind, which has very many objects to claim its attention at the same instant) to impress me with a full, precise, and distinct general idea of the affairs of the United States so far as they are comprehended in or connected with that Department.

As I am now at leisure to inspect such papers and documents as may be necessary to be acted upon hereafter or as may be calculated to give me an insight into the business and duties of that Department, I have thought fit to address this notification to you accordingly.

I am, etc.,

GO. WASHINGTON.

[From American State Papers, Indian Affairs, Vol. I, pp. 96-97.]

INSTRUCTIONS FROM THE PRESIDENT OF THE UNITED STATES
TO THE GOVERNOR OF THE WESTERN TERRITORY—6TH
OCTOBER, 1789.

ARTHUR ST. CLAIR, Esq.,

*Governor of the Territory of the United States Northwest of the Ohio and
Superintendent of Indian Affairs for the Northern District.*

SIR: Congress having by their act of the 29th of September last empowered me to call forth the militia of the States, respectively, for the protection of the frontiers from the incursions of the hostile Indians, I have thought proper to make this communication to you, together with the instructions herein contained.

It is highly necessary that I should as soon as possible possess full information whether the Wabash and Illinois Indians are most inclined for war or peace. If for the former, it is proper that I should be informed of the means which will most probably induce them to peace. If a peace can be established with the said Indians on reasonable terms, the interests of the United States dictate that it should be effected as soon as possible.

You will therefore inform the said Indians of the dispositions of the General Government on this subject and of their reasonable desire that there should be a cessation of hostilities as a prelude to a treaty. If, however, notwithstanding your intimations to them, they should continue their hostilities or meditate any incursions against the frontiers of Virginia and Pennsylvania or against any of the troops or posts of the United States, and it should appear to you that the time of execution would be so near as to forbid your transmitting the information to me and receiving my further orders thereon, then you are hereby authorized and empowered in my name to call on the lieutenants of the nearest counties of Virginia and Pennsylvania for such detachments of militia as you may judge proper, not exceeding, however, 1,000 from Virginia and 500 from Pennsylvania.

I have directed letters to be written to the executives of Virginia and Pennsylvania informing them of the before-recited act of Congress and that I have given you these conditional directions, so that there may not be any

obstructions to such measures as shall be necessary to be taken by you for calling forth the militia agreeably to the instructions herein contained.

The said militia to act in conjunction with the Federal troops in such operations, offensive or defensive, as you and the commanding officer of the troops conjointly shall judge necessary for the public service and the protection of the inhabitants and the posts.

The said militia while in actual service to be on the continental establishment of pay and rations. They are to arm and equip themselves, but to be furnished with public ammunition if necessary; and no charge for the pay of said militia will be valid unless supported by regular musters, made by a field or other officer of the Federal troops, to be appointed by the commanding officer of the troops.

I would have it observed forcibly that a war with the Wabash Indians ought to be avoided by all means consistently with the security of the frontier inhabitants, the security of the troops, and the national dignity. In the exercise of the present indiscriminate hostilities it is extremely difficult, if not impossible, to say that a war without further measures would be just on the part of the United States.

But if, after manifesting clearly to the Indians the dispositions of the General Government for the preservation of peace and the extension of a just protection to the said Indians, they should continue their incursions, the United States will be constrained to punish them with severity.

You will also proceed, as soon as you can with safety, to execute the orders of the late Congress respecting the inhabitants at St. Vincennes and at the Kaskaskias and the other villages on the Mississippi. It is a circumstance of some importance that the said inhabitants should as soon as possible possess the lands to which they are entitled by some known and fixed principles.

I have directed a number of copies of the treaty made by you at Fort Harmar with the Wyandots, etc., on the 9th of January last to be printed and forwarded to you, together with the ratification and my proclamation enjoining the observance thereof.

As it may be of high importance to obtain a precise and accurate knowledge of the several waters which empty into the Ohio on the northwest and of those which discharge themselves in the Lakes Erie and Michigan, the length of the portages between, and nature of the ground, an early and pointed attention thereto is earnestly recommended.

Given under my hand, in the city of New York, this 6th day of October, A.D. 1789, and in the thirteenth year of the Sovereignty and Independence of the United States.

Go. WASHINGTON.

[From The Freeman's Journal; or, The North American Intelligencer,
Philadelphia, October 21, 1789.]

CONGRESS OF THE UNITED STATES.

AN ACT providing for the payment of the invalid pensioners of the United States.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the military pensions which have been granted and paid by the States, respectively, in pursuance of the acts of the United States in Congress assembled, to the invalids who were wounded and disabled during the late war shall be continued and paid by the United States from the 4th day of March last for the space of one year under such regulations as the President of the United States may direct.

FREDERICK AUGUSTUS MUHLENBERG,
Speaker of the House of Representatives.

JOHN ADAMS,
Vice-President of the United States and President of the Senate.

Approved, September 29, 1789.

Go. WASHINGTON,
President of the United States.

WAR OFFICE, *October 13, 1789.*

In pursuance of the above-recited law, information is hereby given to all the invalid pensioners of the United States that the amount of one year's

pension from the 4th day of March last will be paid to them or their attorneys, respectively, in two equal payments, the first of which will be made on the 5th day of March, 1790, and the second on the 5th day of June following, at such places in each State and by such persons as shall hereafter in due season be publicly made known.

The payments will be made according to the following regulations, to wit:

The returns which have been or shall be made to the Secretary for the Department of War by the several States of the pensions which have been granted and paid by them, respectively, will, together with the vouchers herein required, be considered as the evidence whereon the payments are to be made.

Every application for payment must be accompanied by the following vouchers:

First. The certificate given by the State, specifying that the person possessing it is in fact an invalid and ascertaining the sum to which as such he is annually entitled.

Secondly. An affidavit agreeably to the following form, to wit:

A.B. came before me, one of the justices for the county of —, in the State of —, and made oath that he is the same A.B. to whom the original certificate in his possession was given, of which the following is a copy: [The certificate given by the State to be recited.]

That he served in — [regiment or vessel] at the time he was disabled, and that he now resides in the — and county of —, and has resided there for the last — years, previous to which he resided in —.

In case an invalid should apply for payment by an attorney the said attorney must, besides the certificate and oath before recited, produce a special letter of attorney agreeably to the following form:

I, A.B., of —, county of —, State of —, do hereby constitute and appoint C.D., of —, my lawful attorney to receive in my behalf — [the first or second moiety] of my annual pension as an invalid of the United States from the 4th day of March, 1789.

In testimony whereof I have hereunto set my hand and seal this —.

Signed and sealed in the presence of — —.

Acknowledged before me — —.

Applications of executors or administrators must be accompanied with legal evidence of their respective offices and also the time the invalid died whose pension they may claim.

By command of the President of the United States of America:

H. KNOX,
Secretary for the Department of War.

[From Annals of Congress, Second Congress, 1247-1248.]

George Washington, President of the United States of America, to the Secretary of the Treasury for the time being:

By virtue of the several acts, the one entitled "An act making provision for the debt of the United States" and the other entitled "An act making provision for the reduction of the public debt," I do hereby authorize and empower you, by yourself or any other person or persons, to borrow on behalf of the United States, within the said States or elsewhere, a sum or sums not exceeding in the whole \$14,000,000, and to make or cause to be made for that purpose such contract or contracts as shall be necessary and for the interest of the said States, subject to the restrictions and limitations in the said several acts contained; and for so doing this shall be your sufficient warrant.

In testimony whereof I have caused the seal of the United States to be hereunto affixed.

[SEAL.]

Given under my hand, at the city of New York, this 28th day of August, A.D. 1790.

Go. WASHINGTON.

By the President:

TH: JEFFERSON.

[From Annals of Congress, Second Congress, 1249-1250.]

George Washington, President of the United States of America, to the Secretary of the Treasury for the time being:

Having thought fit to commit to you the charge of borrowing on behalf of the United States a sum or sums not exceeding in the whole \$14,000,000, pursuant to the several acts, the one entitled "An act making provision for the debt of the United States," the other entitled "An act making provision for the reduction of the public debt"—

I do hereby make known to you that in the execution of the said trust you are to observe and follow the orders and directions following, viz: Except where otherwise especially directed by me you shall employ in the negotiation of any loan or loans which may be made in any foreign country William Short, esq. You shall borrow or cause to be borrowed, on the best terms which shall be found practicable (and within the limitations prescribed by law as to time of repayment and rate of interest), such sum or sums as shall be sufficient to discharge as well all installments or parts of the principal of the foreign debt which now are due or shall become payable to the end of the year 1791 as all interest and arrears of interest which now are or shall become due in respect to the said debt to the same end of the year 1791; and you shall apply or cause to be applied the moneys which shall be so borrowed with all convenient dispatch to the payment of the said installments and parts of the principal and interest and arrears of the interest of the said debt. You shall not extend the amount of the loan which you shall make or cause to be made beyond the sum which shall be necessary for completing such payment unless it can be done upon terms more advantageous to the United States than those upon which the residue of the said debt shall stand or be; but if the said residue or any part of the same can be paid off by new loans upon terms of advantage to the United States you shall cause such further loans as may be requisite to that end to be made and the proceeds thereof to be applied accordingly. And for carrying

into effect the objects and purposes aforesaid I do hereby further empower you to make or cause to be made with whomsoever it may concern such contract or contracts, being of a nature relative thereto, as shall be found needful and conducive to the interest of the United States.

If any negotiation with any prince or state to whom any part of the said debt may be due should be requisite, the same shall be carried on through the person who in capacity of minister, chargé d'affaires, or otherwise now is or hereafter shall be charged with transacting the affairs of the United States with such prince or state, for which purpose I shall direct the Secretary of State, with whom you are in this behalf to consult and concert, to cooperate with you.

Given under my hand, at the city of New York, this 28th day of August, A.D. 1790.

Go. WASHINGTON.

[From Annals of Congress, Second Congress, 1046.]

UNITED STATES, *January 16, 1792.*

The SECRETARY FOR THE DEPARTMENT OF WAR.

SIR: As the circumstances which have engaged the United States in the present Indian war¹⁷⁸ may some of them be out of the public recollection and others perhaps be unknown, it may appear advisable that you prepare and publish from authentic documents a statement of those circumstances, as well as of the measures which have been taken from time to time for the reestablishment of peace and friendship.

When the community are called upon for considerable exertions to relieve a part which is suffering under the hand of an enemy, it is desirable to manifest that due pains have been taken by those intrusted with the administration of their affairs to avoid the evil.

Go. WASHINGTON.

[From Annals of Congress, Sixth Congress, 1335.]

SEPTEMBER 29, 1792.

The President of the United States doth hereby order and direct that any lot or lots in the city of Washington may, after the public sale to commence on the 8th day of October, be sold and agreed for by the commissioners, or any two of them, at private sale for such price and on such terms as they may think proper.

Go. WASHINGTON.

[From Sparks's Washington, Vol. X, pp. 546-548.]

RULES ADOPTED BY THE CABINET AS TO THE EQUIPMENT OF VESSELS IN THE PORTS OF THE UNITED STATES BY BELLIGERENT POWERS, AND PROCEEDINGS ON THE CONDUCT OF THE FRENCH MINISTER.

AUGUST 3, 1793.

1. The original arming and equipping of vessels in the ports of the United States by any of the belligerent parties for military service, offensive or defensive, is deemed unlawful.

2. Equipments of merchant vessels by either of the belligerent parties in the ports of the United States purely for the accommodation of them as such is deemed lawful.

3. Equipments in the ports of the United States of vessels of war in the immediate service of the Government of any of the belligerent parties which if done to other vessels would be of a doubtful nature, as being applicable either to commerce or war, are deemed lawful, except those which shall have made prize of the subjects, people, or property of France

coming with their prizes into the ports of the United States pursuant to the seventeenth article of our treaty of amity and commerce with France.

4. Equipments in the ports of the United States by any of the parties at war with France of vessels fitted for merchandise and war, whether with or without commissions, which are doubtful in their nature, as being applicable either to commerce or war, are deemed lawful, except those which shall be made prize, etc.

5. Equipments of any of the vessels of France in the ports of the United States which are doubtful in their nature, as being applicable to commerce or war, are deemed lawful.

6. Equipments of every kind in the ports of the United States of privateers of the powers at war with France are deemed lawful.

7. Equipments of vessels in the ports of the United States which are of a nature solely adapted to war are deemed unlawful, except those stranded or wrecked, as mentioned in the eighteenth article of our treaty with France, the sixteenth of our treaty with the United Netherlands, the ninth of our treaty with Prussia, and except those mentioned in the nineteenth article of our treaty with France, the seventeenth of our treaty with the United Netherlands, the eighteenth of our treaty with Prussia.

8. Vessels of either of the parties not armed, or armed previous to their coming into the ports of the United States, which shall not have infringed any of the foregoing rules, may lawfully engage or enlist their own subjects or citizens, not being inhabitants of the United States, except privateers of the powers at war with France and except those vessels which shall have made prize, etc.

The foregoing rules having been considered by us at several meetings and being now unanimously approved, they are submitted to the President of the United States.

THOMAS JEFFERSON.
ALEXANDER HAMILTON.
HENRY KNOX.
EDMUND RANDOLPH.

RESTITUTION OF PRIZES

AUGUST 5, 1793.

That the minister of the French Republic be informed that the President considers the United States as bound, pursuant to positive assurances given in conformity to the laws of neutrality, to effectuate the restoration of or to make compensation for prizes which shall have been made of any of the parties at war with France subsequent to the 5th day of June last by privateers fitted out of their ports.

That it is consequently expected that he will cause restitution to be made of all prizes taken and brought into our ports subsequent to the above-mentioned day by such privateers, in defect of which the President considers it as incumbent upon the United States to indemnify the owners of those prizes, the indemnification to be reimbursed by the French nation.

That besides taking efficacious measures to prevent the future fitting out of privateers in the ports of the United States they will not give asylum therein to any which shall have been at any time so fitted out, and will cause restitution of all such prizes as shall be hereafter brought within their ports by any of the said privateers.

That instructions be sent to the respective governors in conformity to the above communication.

The foregoing having been duly considered, and being now unanimously approved, they are submitted to the President of the United States.

THOMAS JEFFERSON.
ALEXANDER HAMILTON.
HENRY KNOX.
EDMUND RANDOLPH.

CONCERNING THE CONDUCT OF THE FRENCH MINISTER.

At a meeting of the heads of Departments and the Attorney-General at the President's on the 1st and 2d of August, 1793, on a review of the whole of M. Genet's correspondence and conduct, it was unanimously agreed that a letter should be written to the minister of the United States at Paris stating the same to him, resuming the points of difference which had arisen between the Government of the United States and M. Genet, assigning the reasons for the opinions of the former and desiring the recall of the latter; and that this letter, with those which have passed between M. Genet and the Secretary of State, and other necessary documents, shall be laid by Mr. Morris before the Executive of the French Government.

At a meeting of the same at the President's August 15 the rough draft of the said letter, having been prepared by the Secretary of State, was read for consideration, and it was agreed that the Secretary of the Treasury should take measures for obtaining a vessel, either by hire or purchase, to be sent to France express with the dispatches when ready.

At a meeting of the same at the President's August 20 the said letter was read and corrected by paragraphs, and finally agreed to.

At a meeting of the same at the President's August 23 it was agreed that the preceding letter should bear the date of the last document which is to accompany it, to wit, August 16; and the draft of a second letter to our minister at Paris was read and unanimously approved, and to bear date this day.

Sealed and signed, this 23d day of August, 1793.

THOMAS JEFFERSON.
ALEXANDER HAMILTON.
HENRY KNOX.
EDMUND RANDOLPH.

[From the original, Department of State.]

PHILADELPHIA, *August 4, 1793.*

The SECRETARY OF STATE.

SIR: If the heads of Departments and the Attorney-General, who have prepared the eight rules which you handed to me yesterday, are well satisfied that they are not repugnant to treaties or to the laws of nations, and, moreover, are the best we can adopt to maintain neutrality, I not only give them my approbation, but desire they may be made known without delay for the information of all concerned.

The same expression will do for the other paper, which has been subscribed as above and submitted to my consideration, for restoring or making restitution of prizes under the circumstances therein mentioned.

It is proper you should be informed that the minister of France intends to leave this city for New York to-morrow, and not amiss, perhaps, to know that in mentioning the seasonable aid of hands which the *Ambuscade* received from the French Indiaman the day preceding her meeting the *Boston* he added that seamen would no longer be wanting, as he had *now* 1,500 at his command. This being the case (although the allusion was to the subject he was then speaking upon), some of these men may be employed in the equipment of privateers other than those *now* in existence, as the right of fitting out such *in our ports* is asserted in unequivocal terms.

Was the propriety of convening the Legislature at an earlier day than that on which it is to assemble by law considered yesterday?

The late decree of the National Convention of France, dated the 9th of May, authorizing their ships of war and armed vessels to stop any neutral vessel loaded in whole or part with provisions and send them into their ports, adds another motive for the adoption of this measure.

Go. WASHINGTON.

[From Annals of Congress, Seventh Congress, second session, 746-747.]

JOHN ADAMS, PRESIDENT OF THE UNITED STATES OF AMERICA.

INSTRUCTIONS TO THE COMMANDERS OF ARMED VESSELS BELONGING TO THE UNITED STATES, GIVEN AT PHILADELPHIA THIS 28TH DAY OF MAY, A.D. 1798, AND IN THE TWENTY-SECOND YEAR OF THE INDEPENDENCE OF THE SAID STATES.

Whereas it is declared by an act of Congress passed the 28th day of May, 1798, that armed vessels sailing under authority or pretense of authority from the French Republic have committed depredations on the commerce of the United States and have recently captured the vessels and property of citizens thereof on and near the coasts, in violation of the law of nations and treaties between the United States and the French nation:

Therefore, and in pursuance of the said act, you are instructed and directed to seize, take, and bring into any port of the United States, to be proceeded against according to the laws of nations, any armed vessel sailing under authority or pretense of authority from the French Republic which shall have committed, or which shall be found hovering on the coasts of the United States for the purpose of committing, depredations on the vessels belonging to citizens thereof, and also to retake any ship or vessel of any citizen or citizens of the United States which may have been captured by any such armed vessel.

By command:

JAMES M'HENRY,
Secretary of War.

[From American State Papers, Foreign Relations, Vol. II, pp. 365-367.]

INSTRUCTIONS FOR THE PRIVATE ARMED VESSELS OF THE UNITED STATES.

First. In exercising the powers granted by the act of Congress entitled "An act further to protect the commerce of the United States," passed the 9th day of July, 1798, and which is hereto annexed, the regulations therein prescribed are to be strictly attended to and observed.

Second. The powers of capturing and recapturing granted by the said act being pointed solely and exclusively against French armed vessels and those vessels, goods, and effects of citizens of the United States or of persons resident therein which shall have been captured by the French, the rights of all other nations are to be duly respected, and they are not to be molested in their persons or property; consequently American vessels and property captured by the commissioned vessels of such of those other nations as are at war are not to be recaptured by the armed vessels of the United States. Nevertheless, any vessels found on the high seas may be examined in such manner as shall be necessary to ascertain whether they are or are not armed French vessels, or "vessels the property of or employed by any citizen of the United States or person resident therein, or having on board any goods or effects belonging to any such citizen or resident," that have been captured by the French. But if they are of neither of these descriptions they are to be dismissed with as little delay as possible. And in making such examination care is to be taken that no injury be done to the vessel or to the persons or property on board her. It peculiarly becomes a nation like the American, contending for her just rights and defending herself against insults and injuries, to respect the rights of others and studiously to avoid not only the outrage and the inhumanity but even the incivility of which itself complains. It is hoped that Americans will be as distinguished for their justice and humanity as for their bravery and love of true liberty. If, on the contrary, any of the officers or crews of American armed vessels shall practice any cruelty or inhumanity contrary to the usage of civilized nations, the offenders will be severely punished.

Third. For the purposes of the act aforesaid you will consider the "high seas" to extend to low-water mark on all the coasts of France and her dominions and of all places subject to her power in any part of the world, and exercise accordingly the powers of capturing and recapturing granted by the act aforesaid. By the same rule, seeing a war exists between Great Britain and France, you may capture and recapture as aforesaid on all the coasts of the British dominions and of all places subject to the British

power. But you are to refrain from exercising the aforesaid powers of capturing and recapturing in waters which are under the protection of any other nations, that their peace and sovereignty may remain unviolated. If, however, any armed French vessel, regardless of the rights of these other nations, shall within their jurisdictional limits attack or capture any vessel, goods, or effects the property of citizens of or residents in the United States, and you are able to attack and take such armed French vessel or to retake her prize within the jurisdictional limits of such nations, you are to do it, provided their governments, respectively, or the commanders or governors in chief in such places give their permission.

Fourth. The master or pilot and one or more of the principal persons of the company of every armed French vessel captured as aforesaid are to be sent as soon after the capture as may be to the judge or judges of the proper court in the United States to be examined upon oath touching the interest or property of the captured vessel and her lading, and at the same time are to be delivered to the judge or judges all passes, charter parties, bills of lading, invoices, letters, and other documents and writings found on board; the said papers to be proved by the affidavit of the commander of the capturing vessel or some other person present at the capture, to be produced as they were received, without fraud, addition, subduction, or embezzlement.

Fifth. The commanders of American private armed ships are by all convenient opportunities to send to the Secretary of the Navy written accounts of the captures they shall make, with the number and names of the captives and intelligence of what may occur or be discovered concerning the designs of the French and the destinations, motions, and operations of their fleets, cruisers, and armies.

Sixth. Where it can be done without injury or great inconvenience, the armed French vessels captured as aforesaid are to be sent to some port in the United States to be tried according to law. But such captures may happen in places remote from the United States or under circumstances which would render the sending of the captured vessels thither extremely inconvenient, while, from the vicinity of the ports of the British dominions or those of any other power in friendship with the United States, but at war with France, or from other circumstances, it would be easy to send such captured vessels into those friendly ports. In such cases it will be lawful to

send such prizes into those friendly ports where they will find an asylum; and if the laws of those countries admit of it and it can be done to the satisfaction of the captors, there will be no objection on the part of the American Government to the libeling and trying such captured armed French vessels by the proper courts of those, countries, where also may be delivered to the proper officers all French persons and others who shall be found acting on board of any French armed vessel which shall be captured or on board of any vessel of the United States which shall be recaptured as aforesaid.

Seventh. With respect to American vessels, goods, and effects recaptured, it seems not necessary to bring them immediately into a port of the United States. If brought in, they are to be restored to the owners on the payment of salvage. But such recaptured vessels, goods, and effects may at the time of recapture be so remote from the United States and so near a market, or the goods and effects may be of a nature so perishable, that to send such vessels, goods, and effects back to the United States may prove extremely injurious to the owners and recaptors, whereas, if permitted to proceed to their destined ports, or other places, to a market, greater advantages may result to all concerned therein; and as either the master, mate, or supercargo of any such recaptured vessel is usually left on board, and with the aid of the prizemaster and hands of the recaptors, which would be necessary to bring her home, might proceed and complete their original or other beneficial voyage, the commanders of the private armed vessels will in such case consider maturely the course most proper to be pursued, as well for the benefit of their fellow-citizens whose property they shall thus recapture as of themselves in respect to the salvage to which they and their crews and owners will be entitled. Nothing on this subject is enjoined; the commanders of the private armed vessels are to use their sound discretion.

Eighth. If any vessel of the United States, public or private, shall be found in distress by being attacked or taken by the French, the commanders, officers, and company of the private armed vessels aforesaid are to use their utmost endeavors to aid, succor, relieve, and free every such vessel in distress.

AN ACT further to protect the commerce of the United States.

SECTION 1. *Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That the President of the United States shall be, and he is hereby, authorized to instruct the commanders of the public armed vessels which are or which shall be employed in the service of the United States to subdue, seize, and take any armed French vessel which shall be found within the jurisdictional limits of the United States or elsewhere on the high seas; and such captured vessel, with her apparel, guns, and appurtenances and the goods or effects which shall be found on board the same, being French property, shall be brought within some port of the United States and shall be duly proceeded against and condemned as forfeited, and shall accrue and be distributed as by law is or shall be provided respecting the captures which shall be made by the public armed vessels of the United States.

SEC. 2. *And be it further enacted,* That the President of the United States shall be, and he is hereby, authorized to grant to the owners of private armed ships and vessels of the United States who shall make application therefor special commissions in the form which he shall direct and under the seal of the United States; and such private armed vessels, when duly commissioned as aforesaid, shall have the same license and authority for the subduing, seizing, and capturing any armed French vessel and for the recapture of the vessels, goods, and effects of the people of the United States as the public armed vessels of the United States may by law have, and shall be in like manner subject to such instructions as shall be ordered by the President of the United States for the regulation of their conduct; and the commissions which shall be granted as aforesaid shall be revocable at the pleasure of the President of the United States.

SEC. 3. *Provided, and be it further enacted,* That every person intending to set forth and employ an armed vessel and applying for a commission as aforesaid shall produce in writing the name and a suitable description of the tonnage and force of the vessel and the name and place of residence of each owner concerned therein, the number of the crew, and the name of the commander and the two officers next in rank appointed for such vessel, which writing shall be signed by the person or persons making such application and filed with the Secretary of State, or shall be delivered to any other officer or person who shall be employed to deliver out such commissions, to be by him transmitted to the Secretary of State.

SEC. 4. *And provided, and be it further enacted,* That before any commission as aforesaid shall be issued the owner or owners of the ship or vessel for which the same shall be requested and the commander thereof for the time being shall give bond to the United States, with at least two responsible sureties not interested in such vessel, in the penal sum of \$7,000, or, if such vessel be provided with more than 150 men, then in the penal sum of \$14,000, with condition that the owners and officers and crews who shall be employed on board of such commissioned vessel shall and will observe the treaties and laws of the United States and the instructions which shall be given them for the regulation of their conduct, and will satisfy all damages and injuries which shall be done or committed contrary to the tenor thereof by such vessel during her commission, and to deliver up the same when revoked by the President of the United States.

SEC. 5. *And be it further enacted,* That all armed French vessels, together with their apparel, guns, and appurtenances and any goods or effects which shall be found on board the same, being French property, and which shall be captured by any private armed vessel or vessels of the United States duly commissioned as aforesaid, shall be forfeited and shall accrue to the owners thereof and the officers and crews by whom such captures shall be made, and on due condemnation had shall be distributed according to any agreement which shall be between them, or, in failure of such agreement, then by the discretion of the court before whom such condemnation shall be.

SEC. 6. *And be it further enacted,* That all vessels, goods, and effects the property of any citizen of the United States or person resident therein which shall be recaptured as aforesaid shall be restored to the lawful owners upon payment by them, respectively, of a just and reasonable salvage, to be determined by the mutual agreement of the parties concerned or by the decree of any court of the United States having maritime jurisdiction, according to the nature of each case: *Provided,* That such allowance shall not be less than one-eighth or exceeding one-half of the full value of such recapture, without any deduction. And such salvage shall be distributed to and among the owners, officers, and crews of the private armed vessel or vessels entitled thereto according to any agreement which shall be between them, or, in case of no agreement, then by the decree of the court who shall determine upon such salvage.

SEC. 7. *And be it further enacted*, That before breaking bulk of any vessel which shall be captured as aforesaid, or other disposal or conversion thereof, or of any articles which shall be found on board the same, such capture shall be brought into some port of the United States and shall be libeled and proceeded against before the district court of the same district; and if, after a due course of proceeding, such capture shall be decreed as forfeited in the district court, or in the circuit court of the same district in the case of any appeal duly allowed, the same shall be delivered to the owners and captors concerned therein, or shall be publicly sold by the marshal of the same court, as shall be finally decreed and ordered by the court; and the same court, who shall have final jurisdiction of any libel or complaint of any capture as aforesaid, shall and may decree restitution, in whole or in part, when the capture and restraint shall have been made without just cause as aforesaid, and if made without probable cause or otherwise unreasonably may order and decree damages and costs to the party injured, and for which the owners, officers, and crews of the private armed vessel or vessels by which such unjust capture shall have been made, and also such vessel or vessels, shall be answerable and liable.

SEC. 8. *And be it further enacted*, That all French persons and others who shall be found acting on board any French armed vessel which shall be captured, or on board of any vessel of the United States which shall be recaptured as aforesaid, shall be reported to the collector of the port in which they shall first arrive, and shall be delivered to the custody of the marshal or of some civil or military officer of the United States or of any State in or near such port, who shall take charge for their safe-keeping and support, at the expense of the United States.

Enacted into a law July 9, 1798.

By command of the President of the United States of America:

_____,
Secretary of State.

[From Annals of Congress, Seventh Congress, second session, 747.]

JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

INSTRUCTIONS TO COMMANDERS OF ARMED VESSELS
BELONGING TO THE UNITED STATES, GIVEN AT PHILADELPHIA
THE 10TH DAY OF JULY, A.D. 1798, AND IN THE TWENTY-THIRD
YEAR OF OUR INDEPENDENCE.

In pursuance of the acts of Congress passed the 27th day of May, the 20th day of June, and the 9th day of July—

You are hereby authorized, instructed, and directed to subdue, seize, and take any armed French vessel or vessels sailing under authority or pretense of authority from the French Republic which shall be found within the jurisdictional limits of the United States or elsewhere on the high seas, and such captured vessel, with her apparel, guns, and appurtenances and the goods and effects which shall be found on board of the same, to bring within some port of the United States; and also retake any vessel, goods, and effects of the United States or persons resident therein which may have been captured by any French vessel, in order that proceedings may be had concerning such capture or recapture in due form of law and as to right shall appertain.

By command of the President of the United States of America:

BEN. STODDERT.

[From C.F. Adams's Works of John Adams, Vol. IX, p. 160.]

CIRCULAR TO THE COMMANDERS OF ARMED VESSELS IN THE
SERVICE OF THE UNITED STATES, GIVEN AT THE NAVY
DEPARTMENT DECEMBER 29, 1798.

SIR: It is the positive command of the President that on no pretense whatever you permit the public vessel of war under your command to be detained or searched nor any of the officers or men belonging to her to be taken from her by the ships or vessels of any foreign nation so long as you

are in a capacity to repel such outrage on the honor of the American flag. If force should be exerted to compel your submission, you are to resist that force to the utmost of your power, and when overpowered by superior force you are to strike your flag and thus yield your vessel as well as your men, but never your men without your vessel.

You will remember, however, that your demeanor be respectful and friendly to the vessels and people of all nations in amity with the United States, and that you avoid as carefully the commission of as the submission to insult or injury.

I have the honor to be, etc.,

BEN STODDERT.

[From Annals of Congress, Seventh Congress, second session, 747-748.]

CIRCULAR INSTRUCTIONS TO THE CAPTAINS AND
COMMANDERS OF VESSELS IN THE SERVICE OF THE UNITED
STATES.

NAVY DEPARTMENT, *March 12, 1799.*

SIR: Herewith you will receive an act of Congress "further to suspend the commercial intercourse between the United States and France and the dependencies thereof," the whole of which requires your attention; but it is the command of the President that you consider particularly the fifth section as part of your instructions and govern yourself accordingly.

A proper discharge of the important duties arising out of this act will require the exercise of a sound and an impartial judgment. You are not only to do all that in you lies to prevent all intercourse, whether direct or circuitous, between the ports of the United States and those of France or her dependencies in cases where the vessels or cargoes are apparently, as well as really, American and protected by American papers only, but you are to be vigilant that vessels or cargoes really American, but covered by Danish or other foreign papers and bound to or from French ports, do not escape

you. Whenever, on just suspicion, you send a vessel into port to be dealt with according to the aforementioned law, besides sending with her all her papers send all the evidence you can obtain to support your suspicions and effect her condemnation. At the same time that you are thus attentive to fulfill the objects of the law you are to be extremely careful not to harass or injure the trade of foreign nations with whom we are at peace nor the fair trade of our own citizens.

A misconstruction of his authority by Captain Nicholson in relation to vessels of friendly nations captured by the French renders it necessary that I should make some explanatory observations on that subject. Our laws direct the capture of all armed vessels sailing under authority or pretense of authority from the French Republic. A vessel captured by the citizens of France must be considered as sailing under the authority of France, and it is scarcely to be supposed that in times like the present, when few vessels sail without arms, a captured vessel in possession of the captors will be so circumstanced as not to come under the description of an armed vessel within the meaning of our laws. To justify a recapture nothing is necessary but that the vessel be provided with such means of annoyance as will render her dangerous to an unarmed American vessel in pursuit of lawful commerce. If, however, the vessel can not be considered an armed vessel within the meaning of our laws, you are not to recapture her unless you should have probable cause to suspect that the citizens of the United States or persons resident therein have some interest in the vessel or cargo.

It is always your duty to recapture American property and property of persons resident within the United States whenever found in possession of the French on the high seas.

I have the honor to be, sir, your most obedient servant,

BEN. STODDERT.

[From Claypoole's American Daily Advertiser, Philadelphia, December 20, 1799.]

The President with deep regret announces to the Army the death of its beloved chief, General George Washington. Sharing in the grief which every heart must feel for so heavy and afflicting a public loss, and desirous to express his high sense of the vast debt of gratitude which is due to the virtues, talents, and ever-memorable services of the illustrious deceased, he directs that funeral honors be paid to him at all the military stations, and that the officers of the Army and of the several corps of volunteers wear crape on the left arm by way of mourning for six months. Major-General Hamilton will give the necessary orders for carrying into effect the foregoing directions.

Given at the War Office of the United States, in Philadelphia, this 19th day of December, A.D. 1799, and in the twenty-fourth year of the Independence of the said States.

By command of the President:

JAMES M'HENRY,
Secretary of War.

[From Claypoole's American Daily Advertiser, Philadelphia, December 21, 1799.]

NAVY DEPARTMENT, *December 20, 1799.*

The President with deep affliction announces to the Navy and to the marines the death of our beloved fellow-citizen, George Washington, commander of our armies and late President of the United States, but rendered more illustrious by his eminent virtues and a long series of the most important services than by the honors which his grateful country delighted to confer upon him.

Desirous that the Navy and marines should express, in common with every other description of American citizens, the high sense which all feel of the loss our country has sustained in the death of this good and great man, the President directs that the vessels of the Navy in our own and

foreign ports be put in mourning for one week by wearing their colors half-mast high, and that the officers of the Navy and of the marines wear crape on the left arm below the elbow for six months.

BEN. STODDERT.

[From Claypoole's American Daily Advertiser, Philadelphia, December 24, 1799.]

Impressed with unspeakable grief and under the influence of an affectionate sympathy which must pervade the hearts of his beloved fellow citizen soldiers, the Blues, Brigadier-General MacPherson announces the following communication:

PHILADELPHIA, *December 21, 1799.*

Major-General Hamilton has received through the Secretary of War the following order from the President of the United States:

[For order see preceding page.]

The impressive terms in which this great national calamity is announced by the President could receive no new force from anything that might be added. The voice of praise would in vain endeavor to exalt a character unrivaled on the lists of true glory. Words would in vain attempt to give utterance to that profound and reverential grief which will penetrate every American bosom and engage the sympathy of an admiring world. If the sad privilege of preeminence in sorrow may justly be claimed by the companions in arms of our lamented Chief, their affections will spontaneously perform the dear though painful duty. 'Tis only for me to mingle my tears with those of my fellow-soldiers, cherishing with them the precious recollection that while others are paying a merited tribute to "The Man of the Age" we in particular, allied as we were to him by a closer tie, are called to mourn the irreparable loss of a kind and venerated patron and father!

In obedience to the directions of the President, the following funeral honors will be paid at the several stations of the Army:

At daybreak sixteen guns will be fired in quick succession and one gun at a distance of each half hour till sunset.

During the procession of the troops to the place representing that of the interment and until the conclusion of the ceremonial minute guns will be fired.

The bier will be received by the troops formed in line presenting their arms and the officers, drums, and colors saluting. After this the procession will begin, the troops marching by platoons in inverted order and with arms reversed to the place of interment, the drums muffled and the music playing a dead march.

The bier, carried by four sergeants and attended by six pallbearers, where there is cavalry will be preceded by the cavalry and will be followed by the troops on foot. Where there is no cavalry, a detachment of infantry will precede the bier, which itself will in every case be preceded by such of the clergy as may be present. The officers of the general staff will immediately succeed the bier.

Where a numerous body of citizens shall be united with the military in the procession, the whole of the troops will precede the bier, which will then be followed by the citizens.

When arrived near the place of interment, the procession will halt, the troops in front of the bier will form in line, and, opening their ranks, will face inwards, to admit the passage of the bier, which will then pass through the ranks, the troops leaning on their arms, reversed, while the bier passes. When the bier shall have passed, the troops will resume their position in line, and, reversing their arms, will remain leaning upon them until the ceremonial shall be closed.

The music will now perform a solemn air, after which the introductory part of this order shall be read.

At the end of this a detachment of infantry, appointed for the purpose, will advance and fire three volleys over the bier.

The troops will then return, the music playing the President's march, the drums previously unmuffled.

The uniform companies of militia are invited to join in arms the volunteer corps.

The commanders at particular stations, conforming generally to this plan, will make such exceptions as will accommodate it to situation. At places where processions of unarmed citizens shall take place it is the wish of the Major-General that the military ceremonial should be united, and the particular commanders at those places are authorized to vary the plan so as to adapt it to the circumstances.

Brigadier-General MacPherson is charged to superintend the ceremonial in the city of Philadelphia; Major Tousard will attend to Fort Mifflin and will cooperate with him.

The day of performing the ceremonial at each station is left to the particular commander.

Major-General Pinckney will make such further arrangements within his district as he shall deem expedient.

PHILIP CHURCH,
Aid-de-Camp.

In conformity to the above the volunteers of the city and county of Philadelphia in the service of the United States will parade, completely equipped, at the manege, in Chesnut street, on Thursday next, the 26th instant, at 10 o'clock a.m. The officers, together with the uniform companies of militia who may think proper to join on this mournful occasion, will please to signify their intention to Brigadier-General MacPherson at his quarters on or before Tuesday next at 1 o'clock p.m., in order that the necessary arrangement may be made to pay the last sad tribute of veneration to the manes of the late Commander in Chief of the Armies of the United States.

By order of Brigadier-General MacPherson:

JONATHAN WILLIAMS,
Aid-de-Camp.

[The following interesting paper is extracted from a speech of Senator W.C. Rives, of Virginia, delivered in the United States Senate February 12, 1839, on a bill to prevent the interference of certain Federal officers in elections. (See Congressional Globe, Twenty-fifth Congress, third session, Vol. VII, Appendix, p. 409.) This order President Jefferson caused to be issued by the heads of the several Departments shortly after his inauguration, March 4, 1801. References are made to it in several publications, but the originals could not be found.]

The President of the United States has seen with dissatisfaction officers of the General Government taking on various occasions active parts in elections of the public functionaries, whether of the General or of the State Governments. Freedom of elections being essential to the mutual independence of governments and of the different branches of the same government, so vitally cherished by most of our constitutions, it is deemed improper for officers depending on the Executive of the Union to attempt to control or influence the free exercise of the elective right. This I am instructed, therefore, to notify to all officers within my Department holding their appointments under the authority of the President directly, and to desire them to notify to all subordinate to them. The right of any officer to give his vote at elections as a qualified citizen is not meant to be restrained, nor, however given, shall it have any effect to his prejudice; but it is expected that he will not attempt to influence the votes of others nor take any part in the business of electioneering, that being deemed inconsistent with the spirit of the Constitution and his duties to it.

[From the Writings of Thomas Jefferson, Paul Leicester Ford, Vol. VIII, pp. 99-101.]

CIRCULAR TO THE HEADS OF THE DEPARTMENTS.

WASHINGTON, *November 6, 1801.*

DEAR SIR: Coming all of us into executive office new and unfamiliar with the course of business previously practiced, it was not to be expected we should in the first outset adopt in every part a line of proceeding so perfect as to admit no amendment. The mode and degrees of communication, particularly between the Presidents and heads of Departments, have not been practiced exactly on the same scale in all of them. Yet it would certainly be more safe and satisfactory for ourselves as well as the public that not only the best but also an uniform course of proceeding as to manner and degree should be observed. Having been a member of the first Administration under General Washington, I can state with exactness what our course then was. Letters of business came addressed sometimes to the President, but most frequently to the heads of Departments. If addressed to himself, he referred them to the proper Department to be acted on. If to one of the Secretaries, the letter, if it required no answer, was communicated to the President simply for his information. If an answer was requisite, the Secretary of the Department communicated the letter and his proposed answer to the President. Generally they were simply sent back after perusal, which signified his approbation. Sometimes he returned them with an informal note, suggesting an alteration or a query. If a doubt of any importance arose, he reserved it for conference. By this means he was always in accurate possession of all facts and proceedings in every part of the Union, and to whatsoever Department they related; he formed a central point for the different branches; preserved an unity of object and action among them; exercised that participation in the suggestion of affairs which his office made incumbent on him, and met himself the due responsibility for whatever was done. During Mr. Adams's Administration his long and habitual absences from the seat of Government rendered this kind of communication impracticable, removed him from any share in the transaction of affairs, and parceled out the Government, in fact, among four independent heads, drawing sometimes in opposite directions. That the former is preferable to the latter course can not be doubted. It gave, indeed, to the heads of Departments the trouble of making up once a day a packet of all their communications for the perusal of the President; it commonly also retarded one day their dispatches by mail; but in pressing cases this injury was

prevented by presenting that case singly for immediate attention, and it produced us in return the benefit of his sanction for every act we did. Whether any change of circumstances may render a change in this procedure necessary a little experience will show us. But I can not withhold recommending to heads of Departments that we should adopt this course for the present, leaving any necessary modifications of it to time and trial. I am sure my conduct must have proved better than a thousand declarations would that my confidence in those whom I am so happy as to have associated with me is unlimited, unqualified, and unabated. I am well satisfied that everything goes on with a wisdom and rectitude which I could not improve. If I had the universe to choose from, I could not change one of my associates to my better satisfaction. My sole motives are those before expressed, as governing the first Administration in chalking out the rules of their proceeding, adding to them only a sense of obligation imposed on me by the public will to meet personally the duties to which they have appointed me. If this mode of proceeding shall meet the approbation of the heads of Departments, it may go into execution without giving them the trouble of an answer. If any other can be suggested which would answer our views and add less to their labors, that will be a sufficient reason for my preferring it to my own proposition, to the substance of which only, and not the form, I attach any importance.

TH: JEFFERSON.

[From Annals of Congress, Tenth Congress, second session, 332-333.]

By virtue of the act entitled "An act making provision for defraying any extraordinary expenses attending the intercourse between the United States and foreign nations," passed on the 13th day of February, 1806, and of which the annexed is an official exemplification, I, Thomas Jefferson, President of the United States of America, do hereby authorize and empower Albert Gallatin, Secretary of the Treasury of the United States, to take all proper and necessary measures for placing the \$2,000,000 appropriated by the act above recited at the joint disposal of John Armstrong and James Bowdoin, commissioners plenipotentiary and extraordinary for settling all matters of difference between the United States and the Government of Spain, and, in case of the death of one of them, at the disposal of the survivor, to be jointly applied by the said John Armstrong and James Bowdoin, or, in case of the death of one of them, by the survivor, to such purposes as I may think proper to direct in my instructions to them; and for so doing this shall be his sufficient warrant.

In testimony whereof I have caused the seal of the United States to be hereunto affixed.

[SEAL.]

Given under my hand, at the city of Washington, this 18th day of March, 1806.

TH: JEFFERSON.

By the President:
JAMES MADISON,
Secretary of State.

[From the Writings of Thomas Jefferson, Paul Leicester Ford, Vol. IX, pp. 34-35.]

CIRCULAR LETTER TO THE GOVERNORS OF KENTUCKY,
TENNESSEE, OHIO, AND MISSISSIPPI.

WASHINGTON, *March 21, 1807.*

SIR: Although the present state of things on the western side of the Mississippi does not threaten any immediate collision with our neighbors in that quarter and it is our wish they should remain undisturbed until an amicable adjustment may take place, yet as this does not depend on ourselves alone it has been thought prudent to be prepared to meet any movements which may occur. The law of a former session of Congress for keeping a body of 100,000 militia in readiness for service at a moment's warning is still in force, but by an act of the last session, a copy of which I now inclose, the Executive is authorized to accept the services of such volunteers as shall offer themselves on the conditions of the act, which may render a resort to the former act unnecessary. It is for the execution of this act that I am now to solicit your zealous endeavors. The persons who shall engage will not be called from their homes until some aggression, committed or intended, shall render it necessary. When called into action it will not be for a lounging but for an active and perhaps distant service. I know the effect of this consideration in kindling that ardor which prevails for this service, and I count on it for filling up the numbers requisite without delay. To yourself I am sure it must be as desirable as it is to me to transfer this service from the great mass of our militia to that portion of them to whose habits and enterprise active and distant service is most congenial. In using, therefore, your best exertions toward accomplishing the object of this act you will render to your constituents as well as to the nation a most acceptable service.

With respect to the organizing and officering those who shall be engaged within your State the act itself will be your guide, and as it is desirable that we should be kept informed of the progress in this business I must pray you to report the same from time to time to the Secretary of War, who will correspond with you on all the details arising out of it.

I salute you with great consideration and respect.

TH: JEFFERSON.

[From American State Papers, Finance, Vol. II, p. 449.]

James Madison, President of the United States of America, to Albert Gallatin, Secretary of the Treasury:

By virtue of the act entitled "An act authorizing a loan of money for a sum not exceeding the amount of the principal of the public debt reimbursable during the year 1810," passed on the 1st day of May, 1810, I do hereby authorize and empower you, by yourself or any other person or persons, to borrow on behalf of the United States, of the Bank of the United States, any sum not exceeding in the whole \$3,750,000, and to make or cause to be made for that purpose such contract as shall be necessary and for the interest of the said States, pursuant to the act aforesaid; and for so doing this shall be your warrant.

Given under my hand, at Washington, this 28th day of May, A.D. 1810.

JAMES MADISON.

[From Annals of Congress, Thirteenth Congress, Vol. II, 2544-2545.]

NAVY DEPARTMENT, *July 29, 1813.*

Commanding Officers of Stations or Vessels of United States Navy:

The palpable and criminal intercourse held with the enemy's forces blockading and invading the waters and shores of the United States is, in a military view, an offense of so deep a dye as to call for the vigilant interposition of all the naval officers of the United States.

This intercourse is not only carried on by foreigners, under the specious garb of friendly flags, who convey provisions, water, and succors of all kinds (ostensibly destined for friendly ports, in the face, too, of a declared and rigorous blockade) direct to the fleets and stations of the enemy, with

constant intelligence of our naval and military force and preparation and the means of continuing and conducting the invasion, to the greatest possible annoyance of the country, but the same traffic, intercourse, and intelligence is carried on with great subtlety and treachery by profligate citizens, who, in vessels ostensibly navigating our own waters from port to port, under cover of night or other circumstances favoring their turpitude, find means to convey succors or intelligence to the enemy and elude the penalty of the law. This lawless traffic and intercourse is also carried on to a great extent in craft whose capacity exempts them from the regulations of the revenue laws and from the vigilance which vessels of greater capacity attract.

I am therefore commanded by the President of the United States to enjoin and direct all naval commanding officers to exercise the strictest vigilance and to stop and detain all vessels or craft whatsoever proceeding or apparently intending to proceed toward the enemy's vessels within the waters or hovering about the harbors of the United States, or toward any station occupied by the enemy within the jurisdiction of the United States, from which vessels or craft the enemy might derive succors or intelligence.

W. JONES.

[From Congressional Globe, Vol. V, p. 323.]

TREASURY DEPARTMENT, *February 22, 1836.*

To Receivers of Public Moneys, Collectors, Disbursing Officers, and the Deposit Banks of the United States:

The established policy of the Treasury Department, so far as may be practicable under its present powers over the collection, keeping, and disbursement of the public money, is to diminish the circulation of small bank notes and to substitute specie, and especially gold, for such notes, with the view of rendering the currency of the country, through which its fiscal operations are performed, more safe, sound, and uniform. In pursuance of that policy, a circular was issued last April which prohibited after the 30th September, 1835, the receipt on account of the Government of any bank

notes of a less denomination than \$5, and which intimated that other steps to promote the desirable objects before named would in due time be taken.

Consequently, in further pursuance of the same policy, you are hereby required after the 1st of May next not to pay the demands of any public officer or creditor in any bank notes of a less denomination than \$5, and, except when it may be otherwise prescribed by law, after the 4th of July next not to receive or pay on account of the Government any bank notes of a less denomination than \$10.

All the deposit banks are requested to supply themselves with such a quantity of American gold coin as to be able to pay, and when a public officer or creditor prefers it, and his demand does not exceed \$500, to pay at least one-fifth of such demand in that coin. It is also requested that the deposit banks will not after the 4th of July next issue any notes of a less denomination than \$5, and that after the 3d of March, 1837, they will not, unless the subject be otherwise regulated by Congress, issue any notes of a less denomination than \$10. It is believed that the amount of gold which by that time shall be coined at the Mint will be sufficient to admit of the convenient substitution of it for small notes in a much greater extent than at present; and it is deemed reasonable that while the deposit banks have the use, without interest, of unusually large sums of the public money they should make some further temporary sacrifices to obtain and circulate gold and in other respects to enlarge the specie basis of our circulating medium.

From these considerations and from the liberal spirit evinced by most of the public depositories in a late correspondence with them on this subject, it is confidently expected that in this state of things they will cheerfully comply with the above requests and with all others which have been made by the Department with a view of improving the currency; nor will it, I trust, be considered unjust or impolitic, while the deposit banks shall continue to enjoy great privileges from the Treasury, to regard a neglect or refusal by any of them to comply with those requests as sufficient cause for discontinuing the employment of such banks as fiscal agents.

At a proper time it will be decided under what circumstances and at what periods these restrictions on the agents and officers of the Treasury shall be extended to notes of any denomination under \$20.

This communication is made with the sanction of the President of the United States, and it is hoped that till otherwise prescribed by Congress or by this Department these requirements and requests will be faithfully complied with by all the fiscal agents of this Department and all the collecting and disbursing officers of the Government.

LEVI WOODBURY,
Secretary of the Treasury.

[From Senate Doc. No. 15, Twenty-fourth Congress, second session.]

CIRCULAR FROM THE SECRETARY OF THE TREASURY TO
RECEIVERS OF PUBLIC MONEY AND TO THE DEPOSIT BANKS.

TREASURY DEPARTMENT, *July 11, 1836.*

In consequence of complaints which have been made of frauds, speculations, and monopolies in the purchase of the public lands, and the aid which is said to be given to effect these objects by excessive bank credits and dangerous, if not partial, facilities through bank drafts and bank deposits, and the general evil influence likely to result to the public interests, and especially the safety of the great amount of money in the Treasury, and the sound condition of the currency of the country from the further exchange of the national domain in this manner, and chiefly for bank credits and paper money, the President of the United States has given directions, and you are hereby instructed, after the 15th day of August next, to receive in payment of the public lands nothing except what is directed by the existing laws, viz, gold and silver, and in the proper cases Virginia land scrip: *Provided*, That till the 15th of December next the same indulgences heretofore extended as to the kind of money received may be continued for any quantity of land not exceeding 320 acres to each purchaser who is an actual settler or *bona fide* resident in the State where the sales are made.

In order to insure the faithful execution of these instructions, all receivers are strictly prohibited from accepting for land sold any draft, certificate, or other evidence of money or deposit, though for specie, unless signed by the

Treasurer of the United States in conformity to the act of April 24, 1820; and each of those officers is required to annex to his monthly returns to this Department the amount of gold and of silver, respectively, as well as the bills, received under the foregoing exception; and each deposit bank is required to annex to every certificate given upon a deposit of money the proportions of it actually paid in gold, in silver, and in bank notes. All former instructions on these subjects, except as now modified, will be considered as remaining in full force.

The principal objects of the President in adopting this measure being to repress alleged frauds and to withhold any countenance or facilities in the power of the Government from the monopoly of the public lands in the hands of speculators and capitalists, to the injury of the actual settlers in the new States and of emigrants in search of new homes, as well as to discourage the ruinous extension of bank issues and bank credits by which those results are generally supposed to be promoted, your utmost vigilance is required and relied on to carry this order into complete execution.

LEVI WOODBURY,
Secretary of the Treasury.

[From American State Papers, Military Affairs, Vol. VII, p. 554.]

HERMITAGE, *September 7, 1836.*

General J.E. WOOL,
East Tennessee.

SIR: Your letter of the 30th ultimo has just been handed to me by Mr. Rogers, the express. Being in a state of preparation for setting out for Washington and surrounded by much company, I have but a moment to reply to it.

In relation to your observations respecting the apportionment of the 10,000 volunteers, I need not say more here than that the requisition on the governor of the State was a sufficient guide for the organization of the part

allotted to Tennessee. This requisition was for 2,500 men, to be raised in two brigades, one in the East and the other in West Tennessee, and there could be no authority to muster more into the service. The remainder of the 10,000 had been required from other States and Territories.

I have turned to the letter of the Adjutant-General to which you have called my attention. You will find, I think, that it relates to the volunteers called for agreeably to the requisition on the governor of Tennessee for 2,500. I can not suppose that it was expected of you to receive a greater number than this into the service.

As you have the treaty before you and the instructions of the Acting Secretary of War, I do not see that I can add anything more on this subject at present. The treaty is to be religiously fulfilled. You may assure all concerned that no modification or alteration in it will be made by me. Of this Mr. John Ross is fully advised. His friend, Mr. Standefer, who waited upon me at Washington and made the inquiry whether I would agree to a supplemental article admitting the Rosses and their delegation in as chiefs, was informed that I would not. You will therefore make known to the Cherokee people that no alteration in the treaty will be made, but that all its terms and conditions will be faithfully and fully executed. Should you find any evil-disposed white man in the nation exciting the Indians not to comply with the treaty, you will forthwith order him or them out of the nation, and if they refuse to go, the facts being thoroughly established, you will take the steps necessary to put them out. Such characters must be considered in the light of intruders, prohibited by the treaty from living within the limits of the nation.

You will caution John Ross from calling any council of the Cherokee people with the view of opposing or altering the treaty. He knows that there will be no further negotiation on the subject; that the Cherokees are to emigrate in two years from the ratification of the treaty, and will be obliged to go within that period; that the collisions between them and the whites have been too long continued for the gratification of himself at the expense of the poor in the nation.

I have had a letter from Governor Carroll. He will leave Pontotoc at as early a moment as he can, and expects to meet Governor Lumpkin early in

October next.

With these hasty remarks, I remain, your obedient servant,

ANDREW JACKSON.

[From Congressional Globe, Vol. VII, Appendix, p. 245.]

DEPARTMENT OF STATE, *Washington, December 7, 1837.*

SIR:[179](#) In the course of the contest which has commenced in a portion of the territory of Great Britain between portions of the population and the Government some of our citizens may, from their connection with the settlers and from their love of enterprise and desire of change, be induced to forget their duty to their own Government and its obligations to foreign powers. It is the fixed determination of the President faithfully to discharge, so far as his power extends, all the obligations of this Government, and that obligation especially which requires that we shall abstain under every temptation from intermeddling with the domestic disputes of other nations. You are therefore earnestly enjoined to be attentive to all movements of a hostile character contemplated or attempted within your district, and to prosecute without discrimination all violators of those laws of the United States which have been enacted to preserve peace with foreign powers and to fulfill all the obligations of our treaties with them.

I am, sir, your obedient servant,

JOHN FORSYTH.

[From Congressional Globe, Vol. VII, Appendix, p. 245.]

DEPARTMENT OF STATE, *Washington, December 7, 1837.*

His Excellency WILLAM L. MARCY,
Governor of the State of New York.

SIR: A contest having commenced in a territory of Great Britain adjoining the United States between portions of the population and government, during which attempts may be made to violate the laws of the United States passed to preserve the relations of amity with foreign powers and to fulfill the obligations of our treaties with them, by the directions of the President I have the honor to request the attention of your excellency to any movements of that character that may be contemplated in the State of New York and your prompt interference to arrest the parties concerned if any preparations are made of a hostile nature against any foreign power in amity with the United States.

I have the honor to be, sir, your obedient servant,

JOHN FORSYTH.

[Sent also to the governors of Vermont and Michigan.]

[From House Ex. Doc. No. 163, Fiftieth Congress, first session, p. 6.]

EXECUTIVE ORDERS TOUCHING DISPOSAL OF FLAGS
CAPTURED IN WAR WITH MEXICO.

DECEMBER 26, 1848.

Pursuant to the second section of act approved April 18, 1814, directing that all flags, standards, and colors taken by the Army and Navy of the United States from their enemies be preserved and displayed under the direction of the President of the United States in such public place as he shall deem proper, the Secretary of War is directed to take measures to cause the flags, standards, and colors taken by the Army of the United States from their enemies in the recent war with Mexico to be deposited for the purpose specified in the act in the Military Academy at West Point.

JAMES K. POLK.

[From official records, War Department.]

WASHINGTON, *September 11, 1861.*

Major-General JOHN C. FRÉMONT.

SIR: Yours of the 8th, in answer to mine of the 2d instant, is just received. Assuming that you, upon the ground, could better judge of the necessities of your position than I could at this distance, on seeing your proclamation of August 30 I perceived no general objection to it. The particular clause, however, in relation to the confiscation of property and the liberation of slaves appeared to me to be objectionable in its nonconformity to the act of Congress passed the 6th of last August upon the same subjects, and hence I wrote you expressing my wish that that clause should be modified accordingly. Your answer, just received, expresses the preference on your part that I should make an open order for the modification, which I very cheerfully do. It is therefore ordered that the said clause of said proclamation be so modified, held, and construed as to conform to and not to transcend the provisions on the same subject contained in the act of Congress entitled "An act to confiscate property used for insurrectionary purposes," approved August 6, 1861, and that said act be published at length with this order.

Your obedient servant,

A. LINCOLN.

[From McPherson's History of the Rebellion, p. 248.]

DEPARTMENT OF STATE, *Washington, December 4, 1861.*

Major-General GEORGE B. McCLELLAN,
Washington.

GENERAL: I am directed by the President to call your attention to the following subject:

Persons claimed to be held to service or labor under the laws of the State of Virginia and actually employed in hostile service against the Government of the United States frequently escape from the lines of the enemy's forces and are received within the lines of the Army of the Potomac.

This Department understands that such persons afterwards coming into the city of Washington are liable to be arrested by the city police upon the presumption, arising from color, that they are fugitives from service or labor.

By the fourth section of the act of Congress approved August 6, 1861, entitled "An act to confiscate property used for insurrectionary purposes," such hostile employment is made a full and sufficient answer to any further claim to service or labor. Persons thus employed and escaping are received into the military protection of the United States, and their arrest as fugitives from service or labor should be immediately followed by the military arrest of the parties making the seizure.

Copies of this communication will be sent to the mayor of the city of Washington and to the marshal of the District of Columbia, that any collision between the civil and military authorities may be avoided.

I am, General, your very obedient servant,

WILLIAM H. SEWARD.

[From McPherson's History of the Rebellion, p. 252.]

WAR DEPARTMENT, *Washington City, July 3, 1862.*

Major-General B.F. BUTLER,
Commanding, etc., New Orleans, La.

GENERAL: I wrote you last under date of the 29th ultimo, and have now to say that your dispatch of the 18th ultimo, with the accompanying report of General Phelps concerning certain fugitive negroes that have come to his pickets, has been considered by the President.

He is of opinion that under the law of Congress they can not be sent back to their master; that in common humanity they must not be permitted to suffer for want of food, shelter, or other necessities of life; that to this end they should be provided for by the Quartermaster's and Commissary's departments, and that those who are capable of labor should be set to work and paid reasonable wages.

In directing this to be done the President does not mean at present to settle any general rule in respect to slaves or slavery, but simply to provide for the particular case under the circumstances in which it is now presented.

I am, General, very respectfully, your obedient servant,

EDWIN M. STANTON,
Secretary of War.

[From official records, War Department.]

WASHINGTON, *May 1, 1863.*

Major-General WOOL,
Commanding at New York:

By virtue of the act of Congress authorizing the President to take possession of railroad and telegraph lines, etc., passed February 4, 1862, the President directs that you take immediate military possession of the telegraph lines lately established between Philadelphia and Boston, called the Independent Telegraph Company, and *forbid* the transmission of any intelligence relating to the movements of the Army of the Potomac or any military forces of the United States. In case this order is violated arrest and imprison the perpetrators in Fort Delaware, reporting to the Department. If the management of the line will stipulate to transmit no military intelligence

without the sanction of the War Department, they need not be interfered with so long as the engagement is fulfilled. This order will be executed so as not to interfere with the ordinary business of the telegraph company.

By order of the President:

E.M. STANTON,
Secretary of War.

[From McPherson's History of the Rebellion, p. 436.]

Hon. ANDREW JOHNSON,
Military Governor of Tennessee:

You are hereby authorized to exercise such powers as may be necessary and proper to enable the loyal people of Tennessee to present such a republican form of State government as will entitle the State to the guaranty of the United States therefor and to be protected under such State government by the United States against invasion and domestic violence, all according to the fourth section of the fourth article of the Constitution of the United States.

ABRAHAM LINCOLN.

SEPTEMBER 19, 1863.

[From official records, War Department.]
GENERAL ORDERS, No. 329.

WAR DEPARTMENT,
ADJUTANT-GENERAL'S OFFICE,
Washington, October 3, 1863.

Whereas the exigencies of the war require that colored troops should be recruited in the States of Maryland, Missouri, and Tennessee, it is—

Ordered by the President, That the chief of the bureau for organizing colored troops shall establish recruiting stations at convenient places within said States and give public notice thereof, and be governed by the following regulations:

First. None but able-bodied persons shall be enlisted.

Second. The State and county in which the enlistments are made shall be credited with the recruits enlisted.

Third. All persons enlisted into the military service shall forever thereafter be free.

Fourth. Free persons, and slaves with the written consent of their owners, and slaves belonging to those who have been engaged in or given aid and comfort to the rebellion may be now enlisted, the owners who have not been engaged in or given aid to the rebellion being entitled to receive compensation as hereafter provided.

Fifth. If within thirty days from the date of opening enlistments, notice thereof and of the recruiting stations being published, a sufficient number of the description of persons aforesaid to meet the exigencies of the service shall not be enlisted, then enlistments may be made of slaves without requiring consent of their owners; but they may receive compensation as herein provided for owners offering their slaves for enlistment.

Sixth. Any citizen of said States who shall offer his or her slave for enlistment into the military service shall if such slave be accepted receive from the recruiting officer a certificate thereof and become entitled to compensation for the service or labor of said slave, not exceeding the sum of \$300, upon filing a valid deed of manumission and of release and making satisfactory proof of title; and the recruiting officer shall furnish to any claimant a descriptive list of any person enlisted and claimed under oath to be his or her slave, and allow anyone claiming under oath that his or her slave has been enlisted without his or her consent the privilege of inspecting the enlisted men for the purpose of identification.

Seventh. A board of three persons shall be appointed by the President, to whom the rolls and recruiting lists shall be furnished for public information, and on demand exhibited to any person claiming that his or her slave has been enlisted against his or her will.

Eighth. If any person shall within ten days after the filing of said rolls make a claim for the service of any person so enlisted, the board shall proceed to examine the proofs of title, and if valid shall award just compensation, not exceeding \$300, for each slave enlisted belonging to the claimant, and upon the claimant's filing a valid deed of manumission and release of service the board shall give the claimant a certificate of the sum awarded, which on presentation shall be paid by the chief of the bureau.

Ninth. All enlistments of colored troops in the State of Maryland otherwise than in accordance with these regulations are forbidden.

Tenth. No person who is or has been engaged in rebellion against the Government of the United States, or who in any way has given or shall give aid or comfort to the enemies of the Government, shall be permitted to present any claim or receive any compensation for the labor or service of any slave, and all claimants shall file with their claim an oath of allegiance to the United States.

By order of the President:

E.D. TOWNSEND,
Assistant Adjutant-General.

[From McPherson's History of Reconstruction, p. 122.]

WASHINGTON, *March 3, 1865—12 p.m.*

Lieutenant-General GRANT:

The President directs me to say to you that he wishes you to have no conference with General Lee unless it be for the capitulation of General Lee's army or on some minor and purely military matter. He instructs me to

say that you are not to decide, discuss, or confer upon any political question. Such questions the President holds in his own hands and will submit them to no military conferences or conventions. Meantime you are to press to the utmost your military advantages.

EDWIN M. STANTON,
Secretary of War.

[From McPherson's History of Reconstruction, p. 13.]

EXECUTIVE OFFICE, *August 16, 1865.*

O.O. HOWARD,
Major-General, Commissioner Freedmen's Affairs:

Respectfully returned to the Commissioner of Bureau Refugees, Freedmen, etc. The records of this office show that B.B. Leake was specially pardoned by the President on the 27th ultimo, and was thereby restored to all his rights of property except as to slaves. Notwithstanding this, it is understood that the possession of his property is withheld from him. I have therefore to direct that General Fisk, assistant commissioner at Nashville, Tenn., be instructed by the Chief Commissioner of Bureau of Freedmen, etc., to relinquish possession of the property of Mr. Leake held by him as assistant commissioner, etc., and that the same be immediately restored to the said Leake. The same action will be had in all similar cases.

ANDREW JOHNSON,
President United States.

[From McPherson's History of Reconstruction, p. 12.]
CIRCULAR No. 15.

WAR DEPARTMENT,
BUREAU REFUGEES, FREEDMEN, AND ABANDONED LANDS,
Washington, D.C., September 12, 1865.

I. Circular No. 13, of July 28, 1865, from this Bureau, and all portions of circulars from this Bureau conflicting with the provisions of this circular are hereby rescinded.

II. This Bureau has charge of such "tracts of land within the insurrectionary States as shall have been abandoned or to which the United States shall have acquired title by confiscation or sale or otherwise," and no such lands now in its possession shall be surrendered to any claimant except as hereinafter provided.

III. Abandoned lands are defined in section 2 of the act of Congress approved July 2, 1864, as lands "the lawful owner whereof shall be voluntarily absent therefrom and engaged, either in arms or otherwise, in aiding or encouraging the rebellion."

IV. Land will not be regarded as confiscated until it has been condemned and sold by decree of the United States court for the district in which the property may be found, and the title thereto thus vested in the United States.

V. Upon its appearing satisfactorily to any assistant commissioner that any property under his control is not abandoned as above defined and that the United States has acquired no title to it by confiscation, sale, or otherwise, he will formally surrender it to the authorized claimant or claimants, promptly reporting his action to the Commissioner.

VI. Assistant commissioners will prepare accurate descriptions of all confiscated and abandoned lands under their control, keeping a record thereof themselves and forwarding monthly to the Commissioner copies of these descriptions in the manner prescribed in Circular No. 10, of July 11, 1865, from this Bureau.

They will set apart so much of said lands as is necessary for the immediate use of loyal refugees and freedmen, being careful to select for this purpose those lands which most clearly fall under the control of this Bureau, which selection must be submitted to the Commissioner for his approval.

The specific division of lands so set apart into lots and the rental or sale thereof, according to section 4 of the law establishing the Bureau, will be completed as soon as practicable and reported to the Commissioner.

VII. Abandoned lands held by this Bureau may be restored to owners pardoned by the President by the assistant commissioners, to whom applications for such restoration should be forwarded, so far as practicable, through the superintendents of the districts in which the lands are situated.

Each application must be accompanied by—

First. Evidence of special pardon by the President or a copy of the oath of amnesty prescribed in the President's proclamation of May 29, 1865,[180](#) when the applicant is not included in any of the classes therein excepted from the benefits of said oath.

Second. Proof of title.

Officers of the Bureau through whom the application passes will indorse thereon such facts as may assist the assistant commissioner in his decision, stating especially the use made by the Bureau of the land.

VIII. No land under cultivation by loyal refugees or freedmen will be restored under this circular until the crops now growing shall be secured for the benefit of the cultivators unless full and just compensation be made for their labor and its products and for their expenditures.

O.O. HOWARD,
Major-General, Commissioner.

Approved:

ANDREW JOHNSON,
President of the United States.

[From McPherson's History of Reconstruction, p. 8.]

WAR DEPARTMENT,
ADJUTANT-GENERAL'S OFFICE,
Washington, April 17, 1866.

Major-General N.A. MILES,
Commanding, etc., Fortress Monroe, Va.:

Ordered, That Clement C. Clay, jr., is hereby released from confinement and permitted to return to and remain in the State of Alabama and to visit such other places in the United States as his personal business may render absolutely necessary, upon the following conditions, viz, that he takes the oath of allegiance to the United States and gives his parole of honor to conduct himself as a loyal citizen of the same and to report himself in person at any time and place to answer any charges that may hereafter be prepared against him by the United States.

Please report receipt and execution of this order.

By order of the President of the United States:

E.D. TOWNSEND,
Assistant Adjutant-General.

[From McPherson's History of Reconstruction, p. 198.]
GENERAL ORDERS, No. 46.

WAR DEPARTMENT,
ADJUTANT-GENERAL'S OFFICE,
Washington, July 13, 1866.

Ordered, That all persons who are undergoing sentence by military courts and have been imprisoned six months, except those who are under sentence for the crimes of murder, arson, or rape, and excepting those who are under sentence at the Tortugas, be discharged from imprisonment and the residue of their sentence remitted. Those who belong to the military service and their term unexpired will be returned to their command if it is still in

service, and their release is conditional upon their serving their full term and being of good behavior.

By order of the President of the United States:

E.D. TOWNSEND,
Assistant Adjutant-General.

[From Senate Ex. Doc. No. 82, Forty-ninth Congress, second session, pp. 3-5.]

Whereas, pursuant to the convention between the United States and Spain for the adjustment of the question of reclamation arising from the capture of the *Virginius*, entered into upon the 27th February, 1875, and duly ratified upon the 11th day of March, 1875, the Spanish Government engaged to deliver to the United States the sum of \$80,000, or 400,000 pesetas, for the purpose of the relief of the families of those of the ship's company and of such of the passengers as were citizens of the United States who were executed, and to afford compensation to such of the ship's company and to such passengers as in like manner were citizens of the United States who were detained and suffered loss, excluding from any participation therein all individuals indemnified as British subjects; and

Whereas it was therein further provided that when such amount should have been received the President of the United States would proceed to distribute the same among the parties entitled thereto, in the form and manner which he may judge most equitable; and

Whereas such amount has been duly paid at Madrid and the proceeds thereof are now in possession of the Government of the United States:

Now, therefore, pursuant to the provisions of article 3 of said convention, I, Ulysses S. Grant, President of the United States, do hereby direct that such amount so received shall be distributed among the parties entitled thereto in the following amounts and proportions and pursuant to the following rules:

I. The amounts allowed are determined with a general reference to the rates of wages of officers and crew. All of the ship's company (constituting the crew) are to be regarded and considered as American seamen; but inasmuch as the British Government has demanded and received from Spain certain indemnity and promises of further conditional indemnity for and on account of certain of the crew as being British subjects, those of the crew or passengers who were British subjects, or who have been claimed as such by the British Government, and for whom the British Government demanded or received indemnity from Spain, are to be excluded from the distribution to be made of the indemnity above referred to.

II. Distribution will be made on account of those who were executed as follows:

For each one (being thirteen in number) of the ship's company rated or serving as fireman, mariner, cook, cabin boy, or otherwise than as one of the officers or petty officers hereafter mentioned, who was executed, and excluding those referred to above, and also to each passenger who was executed, being at the time an American citizen, the sum of \$2,500.

For each assistant engineer, second, third, fourth engineer or third mate, 40 per cent in addition to the above sum; that is to say, \$3,500 each.

For the first mate and first engineer, 80 per cent in addition to the said above-mentioned sum; that is to say, \$4,500 each.

For the captain, 150 per cent in addition to the said above-mentioned sum; that is to say, \$6,250.

III. The several amounts allowed as above are to be paid to the widow, children, parents, or brothers and sisters of the deceased, as follows:

(1) To the widow of the deceased.

(2) If no widow, to the children of the deceased in equal shares.

Where such children shall be minors, the same shall be paid to a legally appointed guardian.

(3) If no children, then to the father; if no father, to the mother.

(4) If no father or mother, then to the brothers and sisters in equal shares.

(5) If the deceased shall have left no widow, child, parent, brother, or sister, no amount is to be paid on his account.

There shall be allowed to each of the ship's company and to such of the passengers as were citizens of the United States who were detained and suffered loss, to be paid on the conditions hereinafter provided, as follows:

To each of the ship's crew who was under the age of 21 years at the time of the capture, or who was reported at the time as under that age, and to each passenger who was an American citizen, the sum of \$250.

To each of the ship's crew who was over the age of 21 years, and who was rated as being a fireman, mariner, cook, cabin boy, or otherwise than as one of the officers or petty officers hereafter mentioned, 40 per cent in addition to the above-allowed sum; that is to say, \$350 each.

To any engineer, second or other assistant engineer, mate, purser, assistant purser, or surgeon, 86 per cent in addition to the above-allowed sum; that is to say, \$450 to each.

In case any of such persons so entitled to payment shall have died, such amount shall be paid to the family of the deceased as provided in Article III.

IV. The proofs as to all the necessary facts in each case, including identity, relationship, and citizenship, shall be made to the satisfaction of the Department of State as a condition of payment, and a naturalized citizen, where proof of citizenship is necessary, shall produce his certificate of naturalization and furnish satisfactory proof, if required, as to residence and his right, to such certificate.

V. Payments will be made to the parties entitled thereto through the Department of State, or in checks to their order, and will not be made to attorneys.

VI. Prior to any payment being made the party entitled thereto shall sign and duly acknowledge before some competent officer a receipt and release, stating that the sum so paid is received in full satisfaction of any claim or reclamations of any sort which may exist or which might be advanced

against the Spanish Government by reason of the capture of the *Virginius* or the acts of the Spanish authorities connected therewith.

VII. Should any further order or direction be required, the same will hereafter be made as an addition hereto.

In witness whereof I have hereunto set my hand, at the city of Washington, this 21st day of July, A.D. 1875, and of the Independence of the United States of America the one hundredth.

U.S. GRANT.

[From Letters and Messages of Rutherford B. Hayes, pp. 19-22.]

WASHINGTON, *April 2, 1877.*

The Honorables CHARLES B. LAWRENCE, JOSEPH R. HAWLEY, JOHN M. HARLAN, JOHN C. BROWN, AND WAYNE MACVEAGH, *Commissioners.*

GENTLEMEN: I am instructed by the President to lay before you some observations upon the occasion and objects which have led him to invite you as members of the commission about to visit the State of Louisiana to undertake this public service.

Upon assuming his office the President finds the situation of affairs in Louisiana such as to justly demand his prompt and solicitous attention, for this situation presents as one of its features the apparent intervention of the military power of the United States in the domestic controversies which unhappily divide the opinions and disturb the harmony of the people of that State. This intervention, arising during the term and by the authority of his predecessor, throws no present duty upon the President except to examine and determine the real extent and form and effect to which such intervention actually exists, and to decide as to the time, manner, and conditions which should be observed in putting an end to it. It is in aid of his intelligent and prompt discharge of this duty that the President has sought the service of this commission to supply by means of its

examination, conducted in the State of Louisiana, some information that may be pertinent to the circumspection and security of any measure he may resolve upon.

It will be readily understood that the service desired of and intrusted to this commission does not include any examination into or report upon the facts of the recent State election or of the canvass of the votes cast at such election. So far as attention to these subjects may be necessary the President can not but feel that the reports of the committees of the two Houses of Congress and other public information at hand will dispense with and should preclude any original exploration by the commission of that field of inquiry.

But it is most pertinent and important in coming to a decision upon the precise question of Executive duty before him that the President should know what are the real impediments to regular, legal, and peaceful procedures under the laws and constitution of the State of Louisiana by which the anomalies in government there presented may be put in course of settlement without involving the element of military power as either an agent or a makeweight in such solution. The successful ascertainment of these impediments the President would confidently expect would indicate to the people of that State the wisdom and the mode of their removal. The unusual circumstances which attended and followed the State election and canvass, from its relation to the excited feelings and interests of the Presidential election, may have retarded within the State of Louisiana the persuasive influences by which the great social and material interests common to the whole people of a State, and the pride of the American character as a law-abiding nation, ameliorate the disappointments and dissolve the resentments of close and zealous political contests. But the President both hopes and believes that the great body of the people of Louisiana are now prepared to treat the unsettled results of their State election with a calm and conciliatory spirit. If it be too much to expect a complete concurrence in a single government for that State, at least the President may anticipate a submission to the peaceful resources of the laws and the constitution of the State of all their discussions, at once relieving themselves from the reproach and their fellow-citizens of the United States from the anxieties which must ever attend a prolonged dispute as to the title and the administration of the government of one of the States of the Union.

The President therefore desires that you should devote your first and principal attention to a removal of the obstacles to an acknowledgment of one government for the purpose of an exercise of authority within the State and a representation of the State in its relations to the General Government under section 4 of Article IV of the Constitution of the United States, leaving, if necessary, to judicial or other constitutional arbitrament within the State the question of ultimate right. If these obstacles should prove insuperable, from whatever reason, and the hope of a single government in all its departments be disappointed, it should be your next endeavor to accomplish the recognition of a single legislature as the depositary of the representative will of the people of Louisiana. This great department of government rescued from dispute, the rest of the problem could gradually be worked out by the prevalent authority which the legislative power, when undisputed, is quite competent to exert in composing conflict in the coordinate branches of the government.

An attentive consideration of the conditions under which the Federal Constitution and the acts of Congress provide or permit military intervention by the President in protection of a State against domestic violence has satisfied the President that the use of this authority in determining or influencing disputed elections in a State is most carefully to be avoided. Undoubtedly, as was held by the Supreme Court in the case of *Luther vs. Borden*, the appeal from a State may involve such an inquiry as to the lawfulness of the authority which invokes the interference of the President in supposed pursuance of the Constitution; but it is equally true that neither the constitutional provision nor the acts of Congress were framed with any such design. Both obviously treated the case of domestic violence within a State as of outbreak against law and the authority of established government which the State was unable to suppress by its own strength. A case wherein every department of the State government has a disputed representation, and a State therefore furnishes to the Federal Government no internal political recognition of authority upon which the Federal Executive can rely, will present a case of so much difficulty that it is of pressing importance to all interests in Louisiana that it should be avoided. A single legislature would greatly relieve this difficulty, for that department of the State government is named by the Constitution as the

necessary applicant, when it can be convened, for military intervention by the United States.

If, therefore, the disputing interests can concur in or be reduced to a single legislature for the State of Louisiana, it would be a great step in composing this unhappy strife.

The President leaves entirely to the commission the conciliatory influences which, in their judgment formed on the spot, may seem to conduce to the proposed end. His own determination that only public considerations should inspire and attend this effort to give the ascendancy in Louisiana to the things that belong to peace is evinced by his selection of commissioners who offer to the country in their own character every guaranty of the public motives and methods of the transactions which they have undertaken. Your report of the result of this endeavor will satisfy the President, he does not doubt, of the wisdom of his selection of and of his plenary trust in the commission.

A second and less important subject of attention during your visit to New Orleans will be the collection of accurate and trustworthy information from the public officers and prominent citizens of all political connections as to the state of public feeling and opinion in the community at large upon the general questions which affect the peaceful and safe exercise within the State of Louisiana of all legal and political rights and the protection of all legal and political privileges conferred by the Constitution of the United States upon all citizens. The maintenance and protection of these rights and privileges by all constitutional means and by every just, moral, and social influence are the settled purpose of the President in his administration of the Government. He will hope to learn from your investigations that this purpose will be aided and not resisted by the substantial and effective public opinion of the great body of the people of Louisiana.

The President does not wish to impose any limit upon your stay in Louisiana that would tend to defeat the full objects of your visit. He is, however, extremely desirous to find it in his power at the earliest day compatible with a safe exercise of that authority to put an end to even the appearance of military intervention in the domestic affairs of Louisiana, and

he awaits your return with a confident hope that your report will enable him promptly to execute a purpose he has so much at heart.

The President desires me to add that the publication of the results of your visit he shall hope to make immediately after their communication to him.

I have the honor to be, with great respect, your obedient servant,

WM. M. EVARTS.

[From Letters and Messages of Rutherford B. Hayes, p. 25.]

EXECUTIVE MANSION, *Washington, April 20, 1877.*

Hon. GEO. W. McCRARY,
Secretary of War.

SIR: Prior to my entering upon the duties of the Presidency there had been stationed, by order of my predecessor, in the immediate vicinity of the building used as a statehouse in New Orleans, La., and known as Mechanics' Institute, a detachment of United States infantry. Finding them in that place, I have thought proper to delay a decision of the question of their removal until I could determine whether the condition of affairs is now such as to either require or justify continued military intervention of the National Government in the affairs of the State.

In my opinion there does not now exist in Louisiana such domestic violence as is contemplated by the Constitution as the ground upon which the military power of the National Government may be invoked for the defense of the State. The disputes which exist as to the right of certain claimants to the chief executive office of that State are to be settled and determined, not by the Executive of the United States, but by such orderly and peaceable methods as may be provided by the constitution and the laws of the State.

Having the assurance that no resort to violence is contemplated, but, on the contrary, the disputes in question are to be settled by peaceful methods

under and in accordance with law, I deem it proper to take action in accordance with the principles announced when I entered upon the duties of the Presidency.

You are therefore directed to see that the proper orders are issued for the removal of said troops at an early date from their present position to such regular barracks in the vicinity as may be selected for their occupation.

R.B. HAYES.

EXPLANATORY NOTES TO SPECIAL MESSAGES, VOLUMES I AND II.

Message of February 8, 1792, Vol. I, p. 116: Transmitting an account of John B. Cutting for expenditures incurred in liberating seamen of the United States in British ports during the impressments by the British Government in 1790.

Message of February 7, 1794, Vol. I, p. 151: Extraordinary commission of Guadeloupe apply to Congress for aid in men, provisions, and ammunition.

Message of March 18, 1794, Vol. I, p. 152: Transmitting an application by the minister of France for an advance of \$1,000,000 on account of the debt due by the United States, correspondence between the Secretary of State and the minister of France relative thereto, etc.

Message of February 4, 1795, Vol. I, p. 175: Transmitting letters from the Secretaries of State and the Treasury concerning the negotiation of a loan in Holland.

Message of January 5, 1798, Vol. I, p. 260: Transmitting a report of the Secretary of War stating that the five clerks in his office were insufficient to transact the business and asking a larger appropriation to enable him to increase the number.

Message of March 5, 1798, Vol. I, pp. 263-264: Transmitting a message of the Executive Directory of France to the Council of Five Hundred and decree of that council of January 11, 1798, declaring neutral vessels laden with English merchandise lawful prize.

Message of January 28, 1799, Vol. I, pp. 281-282: Edict declaring that "every individual, native of friendly countries allied to the French Republic, or neutral, bearing a commission granted by the enemies of France or making part of the crews of ships of war, and others, enemies, shall be by this single fact declared a pirate and treated as such without being permitted

in any case to allege that he had been forced into such service by violence, threats, or otherwise."

Message of January 13, 1800, Vol. I, p. 301: Relating to the Military Academy and the reorganization of the Army.

Message of January 14, 1800, Vol. I, pp. 301-302: Letter from John Randolph, jr., demanding that certain officers of the Army or Navy be punished for grossly and publicly insulting him for advocating in the House of Representatives a reduction of the military establishment.

Message of April 20, 1802, Vol. I, p. 341: Relating to spoliations committed on the commerce of the United States under Spanish authority and to the imprisonment of the American consul at St. Jago de Cuba.

Message of December 22, 1802, Vol. I, p. 346: Transmitting letters from the governors of the Mississippi Territory and of Kentucky, etc., relative to the prohibition by authorities of Spain to land American cargoes at New Orleans, in violation of treaty rights.

Message of December 31, 1804, Vol. I, p. 375: Relating to the bombardment of Tripoli, vessels engaged, number of men, etc.

Message of December 30, 1808, Vol. I, p. 458: Resolutions of the legislature of Pennsylvania expressing confidence in the General Government in its attitude toward foreign powers, indorsing the embargo as a wise measure, etc.

Message of June 4, 1809, Vol. I, p. 471: Transmitting resolutions of the Pennsylvania assembly protesting against the decision of the Supreme Court in the case of Gideon Olmstead.

Message of December 16, 1809, Vol. I, p. 478: Transmitting documents connected with the arrangement between D.M. Erskine, minister plenipotentiary of Great Britain, and the Secretary of State of the United States, making reparation for the attack on the *Chesapeake* and providing for the suspension of the embargo and nonintercourse laws and the withdrawal of the orders in council, etc.

Message of January 31, 1811, Vol. I, p. 489: Transmitting documents relative to negotiations with France for the repeal of decrees violating the neutral commerce of the United States, etc.

Message of December 27, 1811, Vol. I, p. 497: Transmitting resolutions of the legislature of Pennsylvania expressing confidence in the wisdom, patriotism, and firmness of the President and Congress relative to affairs with Great Britain and pledging support in case of an appeal to arms.

Message of September 26, 1814, Vol. I, p. 551: Transmitting correspondence relative to an order of the British admiral, Alex. Cochrane, "to destroy and lay waste such towns and districts upon the coast as may be found assailable," in retaliation for acts of the United States Army in Upper Canada.

Message of February 5, 1821, Vol. II, p. 83: Transmitting correspondence with Great Britain relative to the commercial relations between the United States and the British colonies in the West Indies and in North America, etc.

Message of February 3, 1823, Vol. II, p. 200: Transmitting a memorial of the legislative council of Florida relative to the expediency and necessity for further legislative provision for the government and improvement of Florida.

Message of February 17, 1825, Vol. II, p. 284: Transmitting correspondence with France relative to the interpretation of the eighth article of the treaty for the cession of Louisiana.

Footnotes

1 ([return](#))

See message of August 21, 1789, Vol. I, p. 61.

2 ([return](#))

Omitted.

3 ([return](#))

Relating to land claimants in the Northwest Territory.

4 ([return](#))

Respecting the relation between district attorneys and the Attorney-General.

5 ([return](#))

Decree of the National Assembly of France of March 26, 1793, "exempting from all duties the subsistence and other objects of supply in the colonies relatively to the United States," and extract of an ordinance of Spain of June 9, 1793, "for regulating provisionally the commerce of Louisiana and the Floridas."

6 ([return](#))

Relating to affairs with Indians on the southern frontier.

7 ([return](#))

Relating to enlistments in South Carolina for the service of the French Republic.

8 ([return](#))

Respecting relations between the United States and France.

9 ([return](#))

Relating to commercial restrictions.

10 ([return](#))

Relating to lands ceded to the United States by North Carolina.

11 ([return](#))

Relating to the declaration of war of March 23, 1793, against France by Spain and to expeditions of United States citizens against East Florida.

12 ([return](#))

Relating to the capture of American vessels by British ships of war.

13 ([return](#))

Relating to a speech of Lord Dorchester, Governor-General of Canada, tending to an incitement of the Indians to hostilities against the United States, to complaints against alleged acts of violence by citizens of Vermont, etc.

14 ([return](#))

Relating to a speech of Lord Dorchester, Governor-General of Canada, tending to an incitement of the Indians to hostilities against the United States; justifying

the measures pursued by the United States to enforce their neutrality, and rebutting the accusation of partiality to France.

15 ([return](#))

For the Army and Navy.

16 ([return](#))

Relating to the justice of compensating owners of negroes taken by the Creek Indians from the conclusion of the Revolutionary War to 1790.

17 ([return](#))

See Vol. I, p. 192.

18 ([return](#))

See message of June 22, 1797, Vol. I, p. 247.

19 ([return](#))

Relating to affairs between the United States and France.

20 ([return](#))

Relating to affairs between the United States and France.

21 ([return](#))

Inclosing correspondence with the French minister of foreign relations relative to affairs between the United States and France.

22 ([return](#))

Reorganization of the Army.

23 ([return](#))

See message of January 18, 1799, Vol. I, p.281.

24 ([return](#))

Commerce.

25 ([return](#))

Relating to the surrender by the United States to Great Britain of Thomas Nash, charged with murder and piracy on the British frigate *Hermione*.

26 ([return](#))

Relating to the inconveniences arising from the want of a competent general staff of the Army.

27 ([return](#))

Relating to depredations on American commerce by British ships of war; lists of captured American vessels, etc.

28 ([return](#))

Estimates of the necessary expenditures for the purchase and fabrication of arms and cannon and establishment of foundries and armories, 1798-1801, and statement of appropriations for above purposes and of warrants drawn on same to December 31, 1800.

29 ([return](#))

Relating to claims of American citizens against Great Britain and of British

subjects against the United States for illegal captures of vessels, etc.

30 ([return](#))

See message of January 5, 1803, Vol. I, p. 350.

31 ([return](#))

Importation of slaves into Louisiana.

32 ([return](#))

By Great Britain and France.

33 ([return](#))

See Vol. I, pp. 376-377.

34 ([return](#))

Relating to depredations on American commerce by Spanish privateers, etc.

35 ([return](#))

See Vol. I, pp. 392-394.

36 ([return](#))

See Vol. I, pp. 395-396.

37 ([return](#))

Relating to paying United States troops in the Territory of Michigan in bills issued by the Bank of Detroit after Congress had rejected the law of that Territory for establishing said bank, etc.

38 ([return](#))

Concerning the relations of the United States with England and France.

39 ([return](#))

Of certain letters from the French ministry to the United States minister at Paris, and the date of the receipt of said letters by said minister.

40 ([return](#))

See Vol. I, pp. 450-451.

41 ([return](#))

Showing the condition of the Navy and the application of appropriations made for the Navy and Marine Corps.

42 ([return](#))

Transmitting translations of a ukase of Russia relating to neutral commerce and regulations of Denmark for vessels commissioned as privateers.

43 ([return](#))

Relating to seizures, captures, and condemnations of ships and merchandise of citizens of the United States under authority of Denmark, Great Britain, and France.

44 ([return](#))

Transmitting copies of instructions issued relative to foreign armed ships within the waters of the United States.

45 ([return](#))

Relating to the military force and its disposition in 1810.

46 ([return](#))

Relating to the free navigation of the Mobile River to its confluence with the ocean.

47 ([return](#))

Transmitting communications relative to certain orders and decrees of France and Great Britain violating the lawful commerce and neutral rights of the United States, etc.

48 ([return](#))

Transmitting statement showing value and amount of duties which accrued in consequence of the duty of 2-1/2 per cent laid on all goods, wares, and merchandise imported into the United States paying a duty *ad valorem* from July 1, 1804, to December 31, 1808, and statement showing amount of duties which accrued on merchandise imported into the United States from Mediterranean ports for years ending September 30, 1805, 1806, 1807, and 1808.

49 ([return](#))

Transmitting copy of instructions to collectors under the act to interdict commercial intercourse with Great Britain and France.

50 ([return](#))

Relating to the treaty with the Great and Little Osage Indians.

51 ([return](#))

Relating to the capture of Danish vessels by United States war ships.

52 ([return](#))

Relating to the impressment of American seamen by British ships of war.

53 ([return](#))

Transmitting list of United States consuls and commercial agents, etc.

54 ([return](#))

Relating to affairs between the United States and France.

55 ([return](#))

Transmitting a decree of the Emperor of France of July 15, 1810, and correspondence relative to affairs between the United States and France.

56 ([return](#))

Relating to affairs between the United States and France.

57 ([return](#))

Relating to affairs between the United States and Great Britain.

58 ([return](#))

Washington.

59 ([return](#))

Proclamation of November 2, 1810 (see Vol. I, pp. 481-482), and circular letter

from the Secretary of the Treasury to the collectors of the customs in pursuance of said proclamation.

60 ([return](#))

Stating that there are no documents in his Department showing the amount of property of citizens or subjects of Great Britain or France confiscated under the acts of March 1, 1809, and May 1, 1810; that inquiry of the several district attorneys for such information has been made, and that the result will be communicated as soon as received; that an account of the goods, wares, and merchandise imported into the United States during the last three quarters of 1809 will be immediately prepared, but that such account for the year 1810 can not be prepared during the present session.

61 ([return](#))

Washington.

62 ([return](#))

Transmitting a general return of the Army.

63 ([return](#))

Transmitting correspondence relative to the execution of the act to provide for surveying the coasts of the United States.

64 ([return](#))

Transmitting copies of the latest census of the Territory of Orleans and of the latest militia returns of said Territory.

65 ([return](#))

Transmitting a statement of importations in American and foreign vessels from April 1 to December 31, 1809.

66 ([return](#))

Transmitting account of George W. Erving relative to awards under the seventh article of the treaty with Great Britain of November 19, 1794.

67 ([return](#))

Relating to affairs between the United States and Great Britain.

68 ([return](#))

Washington.

69 ([return](#))

Relating to affairs between the United States and France.

70 ([return](#))

See Third Annual Message, Vol. I, pp. 491-493.

71 ([return](#))

Relating to the impressment of American seamen by foreign powers.

72 ([return](#))

Relating to the commercial regulations of France applying to the trade of the United States.

73 ([return](#))

Relating to the agency of the British Government in the hostile measures of the Indian tribes toward the United States.

74 ([return](#))

Expressing confidence in the wisdom and integrity of the President and Congress and pledging the support of New Jersey should the United States determine to resist by force the lawless aggressions by Great Britain.

75 ([return](#))

Transmitting rules and regulations for training and disciplining the regular troops and militia of the United States.

76 ([return](#))

Stating that his Department is not in possession of any names of persons in the United States who entered into or countenanced the project for the fomentation of sectional divisions in the United States and the dissolution of the Union for the execution of which John Henry was in the year 1809 employed by Sir James Craig, then Governor-General of the British Provinces in North America.

77 ([return](#))

Disclaiming any knowledge of the employment of a secret agent by Great Britain to foment disaffection to the constituted authorities of the United States, etc. (See message of March 9, 1812, Vol. I, p. 498.)

78 ([return](#))

Washington.

79 ([return](#))

Relating to captures by belligerent European Governments of American vessels bound to or from the Baltic or within that sea.

80 ([return](#))

Relating to the revocation of the Berlin and Milan decrees by France, to the British orders in council, etc.

81 ([return](#))

Relating to impressment of American seamen in British ships of war, detention of British seamen in American ships of war, British orders in council, aid given by American citizens to deserters from British ships, etc.

82 ([return](#))

Relating to the alleged agency of British authorities in Canada in atrocities committed on the frontiers of the United States by Indians.

83 ([return](#))

Relating to the revocation of the Berlin and Milan decrees by France, to the British orders in council, etc.

84 ([return](#))

Relating to the British declaration and order in council of April 21, 1812, to the hostile attitude of Great Britain toward American commerce, etc.

85 ([return](#))

Inclosing copy of a declaration accompanying the British order in council of April 21, 1812.

86 ([return](#))

Transmitting extracts from letters of governors of Territories and other agents respecting the hostile and friendly movements and intentions of the Indians toward the United States.

87 ([return](#))

Transmitting lists of captures, seizures, and condemnations of the ships and merchandise of citizens of the United States under authority of Governments of Europe.

88 ([return](#))

Relating to the refusal of the governors of Massachusetts and Connecticut to furnish their quotas of militia.

89 ([return](#))

See Vol. I, p. 521.

90 ([return](#))

Relating to the conduct of British officers toward persons taken in American armed ships.

91 ([return](#))

Relating to the presentation to Commodore Edward Preble of a gold medal emblematical of the attacks on the town, batteries, and naval force of Tripoli by the squadron under his command, pursuant to a resolution of Congress of March 3, 1805.

92 ([return](#))

Transmitting correspondence relative to murders committed by Indians in Tennessee and vicinity.

93 ([return](#))

Relating to the Chesapeake and Delaware Canal Company.

94 ([return](#))

Relating to capture of the British brigs *Detroit* and *Caledonia* on Lake Erie October 8, 1812.

95 ([return](#))

Relating to East Florida.

96 ([return](#))

Transmitting statements of purchases of Treasury notes by banks.

97 ([return](#))

Transmitting correspondence, etc., relative to the revocation by France of the Berlin and Milan decrees in so far as they affected American vessels.

98 ([return](#))

Relating to enlistments under the "act authorizing the President of the United States to accept and organize certain volunteer military corps," etc.

99 ([return](#))

Approving of the declaration of war against Great Britain, etc.

100 ([return](#))

Transmitting correspondence relative to affairs between the United States and Spain, etc.

101 ([return](#))

Transmitting correspondence relative to and text of decree of repeal of the Berlin and Milan decrees.

102 ([return](#))

"A supplement to an act to incorporate a company for the purpose of cutting and making a canal between the river Delaware and the Chesapeake Bay" and extracts from the act mentioned.

103 ([return](#))

Transmitting correspondence relative to an interchange of ministers with the Swedish Government.

104 ([return](#))

Relating to the British declaration and order in council of April 21, 1812.

105 ([return](#))

Relating to the French decree of April 28, 1811, purporting to be a definitive repeal of the Berlin and Milan decrees, etc.

106 ([return](#))

Relating to the loan of \$16,000,000 authorized by act of February 8, 1813.

107 ([return](#))

Transmitting statement of amount of duties accruing on goods, wares, and merchandise imported into the United States from July 1 to December 31, 1812, etc.

108 ([return](#))

Transmitting a statement of the quantity and estimated value of spirits distilled from materials other than grain imported into the United States from the West Indies and American colonies from October 1, 1804, to September 30, 1812.

109 ([return](#))

Transmitting a digest of the number, nature, extent, situation, and value of the arts and manufactures of the United States.

110 ([return](#))

Relating to the mediation of Russia in the war between the United States and Great Britain.

111 ([return](#))

Relating to the reception by the French Government of the United States minister to that court.

112 ([return](#))

Stating that no communication from the French minister prescribing the

conditions on which his sovereign would treat of amity and commerce with the United States is on file in the Department of State.

113 ([return](#))

Relating to the cause of the failure of the army on the northern frontier.

114 ([return](#))

Transmitting statements of foreign and domestic articles consumed in clothing the Army and Navy of the United States in 1813, and estimates for 1814.

115 ([return](#))

Transmitting accounts of United States ministers, consuls, etc., from commencement of present Government expenses incurred in and payments made under treaty with Algiers, and accounts of all other expenditures in relation to the Barbary Powers, including those occasioned by war with Tripoli and making of peace with that Regency.

116 ([return](#))

Commending the "decisive spirit and firmness which the national authorities have manifested in securing hostages for the safety of those defenders of the Republic who are threatened with the penalties of treason against Great Britain," and pledging under all circumstances to support the Government in every measure of just retaliation.

117 ([return](#))

Expressing disapprobation of the action of the governor of a sister State in issuing a proclamation ordering a detachment of militia of that State then in the United States service to desert and return to their respective homes, and also expressing disapprobation of the threatened resistance of another State to any action of Congress directing an inquiry by the President into the constitutionality of the act of said governor, and pledging to support the General Government in all lawful and constitutional measures to bring to justice all infractors of the Constitution and laws of the United States and all abettors and aiders of the enemies thereof.

118 ([return](#))

Transmitting copies of certain commissions granted by Presidents Washington and Madison during the recess of the Senate.

119 ([return](#))

Transmitting lists of ministers, their secretaries, and consuls appointed by the several Presidents during the recess of the Senate.

120 ([return](#))

Transmitting list of American prisoners sent to England for trial by the British commander in Canada; statement of the grounds on which the British Government refused to deliver up American seamen impressed into the British service, and statement of the conduct of the British Government toward American seamen on board British ships of war.

121 ([return](#))

Transmitting extract of a letter from the United States minister at Paris touching relations with France.

122 ([return](#))

Stating that the relations of the United States with the continental powers of Europe continue to be those of peace and amity; that measures have been taken to continue diplomatic relations with France under the existing Government and to renew those with Spain and the United provinces of the Low Countries.

123 ([return](#))

See Vol. I, p. 551.

124 ([return](#))

Relating to retaliation upon prisoners of war.

125 ([return](#))

Relating to measures authorized by the President in pursuance of the "act to enable the President of the United States, under certain contingencies, to take possession of the country lying east of the river Perdido and south of the State of Georgia and the Mississippi Territory, and for other purposes," for the purpose of possessing and occupying any part of the country mentioned in said act.

126 ([return](#))

Transmitting correspondence and protocols of conferences between United States envoys at Ghent and ministers of Great Britain.

127 ([return](#))

Relating to affairs between the United States and the Barbary Powers.

128 ([return](#))

Transmitting statement of number of post-offices and miles of post-roads in each State, net amount of postages for six months ending June 30, 1814, etc.

129 ([return](#))

Relating to the sale of negroes taken from the United States by British forces.

130 ([return](#))

Relating to demand of Spain for possession of West Florida; to unlawful expeditions against Spanish possessions; to the exclusion from ports of the United States of the flags of revolting provinces of Spain; to the attitude of the United States toward the Mexican revolution; to vessels of the United States condemned in ports of Spain; to the free navigation of the Mississippi; to the boundaries of Louisiana, etc.

131 ([return](#))

Relating to the massacre of American prisoners at Dartmoor prison, England.

132 ([return](#))

Relating to the reduction of the late Army to a peace establishment.

133 ([return](#))

Transmitting statements of receipts and expenditures of the city of Washington from 1791 to 1815, inclusive, and of moneys advanced by the United States to said city.

134 ([return](#))

Relating to the employment of counsel to assist the Attorney-General in

prosecuting cases in the Supreme Court, names of persons so employed, fees paid, etc.

135 ([return](#))

Relating to the survey of the coasts of the United States.

136 ([return](#))

Relating to obstructions to American commerce in the provincial and colonial possessions of Great Britain.

137 ([return](#))

Transmitting lists of impressed American seamen transferred from British ships of war to Dartmoor and other prisons in England and the West Indies and Nova Scotia, and those discharged in England since the treaty of peace.

138 ([return](#))

Transmitting statement of claims of New Hampshire, Rhode Island, Pennsylvania, Virginia, and North Carolina for militia services during the late war.

139 ([return](#))

Relating to the deportation of slaves by Great Britain in contravention of the treaty of Ghent, etc.

140 ([return](#))

Transmitting correspondence between the Governments of the United States and Spain relative to settlement of boundaries, to cession of East Florida by Spain, to indemnification for injuries to American commerce by Spanish vessels, etc.

141 ([return](#))

"If any citizen of the United States shall accept, claim, receive, or retain any title of nobility or honor, or shall, without the consent of Congress, accept and retain any present, pension, office, or emolument of any kind whatever from any emperor, king, prince, or foreign power, such person shall cease to be a citizen of the United States, and shall be incapable of holding any office of profit or trust under them, or either of them." This proposed amendment did not become a part of the Constitution, failing of ratification by three-fourths of the States.

142 ([return](#))

Relating to a blockade of the Spanish coast in South America by Spanish forces.

143 ([return](#))

Relative to the claims of the heirs of Caron de Beaumarchais.

144 ([return](#))

Relating to the navy pension fund.

145 ([return](#))

Reports of Theodorick Bland and J.R. Poinsett, commissioners, on the condition of South America, correspondence between the Secretary of State and the Spanish minister relative to affairs between the United States and Spain, etc.

146 ([return](#))

Relating to affairs between the United States and Spain, the prosecution of

Captain Obed Wright for the murder of friendly Indians, etc.

147 ([return](#))

Relating to affairs between the United States and Spain.

148 ([return](#))

Relating to the case of Captain Obed Wright, charged with the murder of friendly Indians.

149 ([return](#))

Relating to the Florida treaty.

150 ([return](#))

Relating to the construction of the first article of the treaty of Ghent, relative to slaves.

151 ([return](#))

Relating to the marine-hospital fund.

152 ([return](#))

Relating to the seizure, sequestration, or confiscation of the ships or other property of citizens of the United States by authority of Sweden.

153 ([return](#))

See Vol. II, pp. 70-72.

154 ([return](#))

Relating to his claim against Spain for imprisonment.

155 ([return](#))

Relating to relief of sick, disabled, and destitute American seamen in foreign ports in 1818, 1819, and 1820.

156 ([return](#))

Relating to Indian affairs.

157 ([return](#))

Relating to that part of the boundary line between the United States and the British Provinces which extends "from the source of the river St. Croix to the northwesternmost head of Connecticut River."

158 ([return](#))

Statements of ordnance and ordnance stores in fortifications, arsenals, etc., and estimates of amounts required, contracted for, etc.

159 ([return](#))

Relating to the appointment of William B. Irish as marshal of the western district of Pennsylvania.

160 ([return](#))

Relating to the lease of a building on Capitol Hill for the temporary use and accommodation of Congress.

161 ([return](#))

Correspondence leading up to and protocol of treaty of Ghent, etc.

162 ([return](#))

List of the navy yards and stations, number and grade of officers attached to each, etc.

163 ([return](#))

Relating to lands granted to officers and soldiers of Virginia who served in the Revolutionary War.

164 ([return](#))

Statements showing names and number of officers belonging to the Navy attached to each navy-yard in the United States, and their compensation for two years ending January 1, 1822.

165 ([return](#))

See Vol. II, p. 136.

166 ([return](#))

Relating to French spoliations.

167 ([return](#))

Relating to sites for fortifications at St. Marys and Patuxent rivers, plans for same, and estimates of cost of each fortification.

168 ([return](#))

Relating to the suppression of the African slave trade.

169 ([return](#))

Addition to digest of foreign commercial law.

170 ([return](#))

Relating to foreign spoliations on American commerce.

171 ([return](#))

Stating that the correspondence relative to French spoliations and to the claims of France upon the United States for noncompliance with the treaties of alliance and commerce of February 6, 1778, would be communicated at the next session of Congress.

172 ([return](#))

Relating to the use of canvas, cables, and cordage made of hemp grown in the United States in the equipment vessels of the American Navy.

173 ([return](#))

Relating to commercial intercourse with the British colonies of the West Indies and Canada; to the boundary under the fifth article of the treaty of Ghent, and the navigation of the St. Lawrence River; to admission of United States consuls into British colonial ports; to the Newfoundland fishery; to maritime questions; to the northwest coast of America.

174 ([return](#))

Concerning the boundary line between the United States and Mexico and the return of slaves escaping from the former country into the latter.

175 ([return](#))

Of December 24, 1827 (see Vol. II, p. 393), relative to the negotiation of the

convention of November 13, 1826, with Great Britain.

176 ([return](#))

Transmitting correspondence which passed between the Governments of the United States and Spain in the negotiation of the treaty of February 17, 1834, instructions given to the minister of the United States during the course of the negotiation, etc.

177 ([return](#))

Addressed to the Secretary of Foreign Affairs, the Secretary of War, the Board of the Treasury, and the Postmaster-General.

178 ([return](#))

With certain tribes of Indians northwest of the Ohio.

179 ([return](#))

Sent to the United States attorney at Rockingham, Vt., and to the district attorneys for the northern district of New York and the Michigan district.

180 ([return](#))

See Vol. VI, pp. 310-312.

*** END OF THE PROJECT GUTENBERG EBOOK A COMPILATION
OF THE MESSAGES AND PAPERS OF THE PRESIDENTS. SECTION 1
(OF 3) OF VOLUME 10. ***

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